



Republic of the Philippines
SENATE
Pasay City

JOURNAL

**SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE**

**IMPEACHMENT TRIAL NO. 18
MONDAY, 24 AUGUST 2026**

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 18

Monday, August 24, 2026

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at-Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

CALL TO ORDER

At 10:02 a.m., Monday, August 24, 2026, with the Senate sitting as an Impeachment Court, the Senate President, Win Gatchalian, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PRAYER

Sen. Joel Villanueva led the prayer, to wit:

Dakilang Diyos, Ama naming sumasalangit, Diyos na may gawa ng langit at lupa, Diyos na nagsabing kung may dalawa o tatlo na nagkakatipon sa Kaniyang Pangalan, Siya ay nasa kanilang kalagitnaan.

Kami po ay naninikluhod at lumalapit sa Iyong trono ng biyaya, hinihingi ng kapatawaran ang anumang kasalanan sa isip, sa salita, o sa gawa, kasalanang sinasadya man o hindi. Patawarin N'yo po kami, linisin N'yo po kami ng Iyong banal na dugo na nabuhos sa krus ng kalbaryo, at hayaan Mong makalapit po kami ngayong araw na ito sa Iyong kabanalan.

Ipaalala Mo po sa amin ang sinabi Mo sa Aklat ng Salmo 89:14: "Ang katuwiran at katarungan ang saligan ng Iyong luklukan, ang tapat na pag-ibig at katotohanan ay nauuna sa Iyong harapan."

Panginoong Diyos, ngayon pong ika-17 araw ng Impeachment Trial, gabayan N'yo po at tulungan ang bawat isa sa amin, lalo na ang aming buong Senado, na tumatayo bilang hurado. Tulungan Mo po kaming pairalin ang katotohanan, katarungan, at katuwiran. Ilayo Mo po ang bawat isa sa amin sa pagkiling at maging sa pansariling interes upang makapagpasya po kami nang obhetibo at may banal na integridad.

Hinihingi po namin ang Iyong gabay na magbigay sa amin ng puso na may pagpapakumbaba, puso ng paggalang, at puso para sa tunay na malasakit at pagmamahal sa aming Inang Bayan, lalo na po ngayong mga panahon na ito na



marami sa aming mga kababayan ay nakararanas ng hagupit at epekto ng mga bagyo at habagat.

Nawa po ang aming mga pasya ay magmula sa hangaring makabubuti lamang sa nakararami naming mga kababayan, hindi lamang po dito sa Luzon, Visayas, at Mindanao, maging sa ibayong dagat. Higit po sa lahat ngayong araw na ito, hinihingi po namin na pagkalooban Mo kami ng ibayong karunungan upang makita, makilala, at sa tuwina'y panghawakan po namin ang katotohanan. Nawa po ito ay maging gabay namin at batayan namin sa bawat pagpapasya namin.

Hinihiling po namin ito sa ngalan ng pinakamataas na Pangalan, sa Ngalan ng aming Panginoong Hesus.

Ang lahat po'y makiisa at magsabing "Amen."

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Pangilinan, F. N.
Ejercito, J. V.	Sotto III, V. C.
Escudero, F. G.	Tulfo, E. T.
Hontiveros, R.	Tulfo, R. T.
Gatchalian, W. T.	Villanueva, J.
Lacson, P. M.	Villar, C. A.
Lapid, M. M.	Villar, M. A.
Marcos, I. R.	Zubiri, J. M. F.
Padilla, R.	

With 17 senators present, the Chair declared the presence of a quorum.

Senator-Judges Cayetano (A), Cayetano (P) and Go were also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Legarda was on medical leave.

Senator-Judge Dela Rosa was absent.

In accordance with the *Rules of Procedure on Impeachment Trials*, Senate President Gatchalian recognized the duly-elected Presiding Officer, Senator-Judge Francis "Chiz" G. Escudero, to preside over the proceedings of the Impeachment Court.

APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, Hon. Francis "Chiz" G. Escudero, there being no objection, the Body dispensed with the reading of *Journal No. 17* of the Senate sitting as an Impeachment Court on August 17, 2026 and considered the same as approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court called Case No. 004-2026, titled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

Rep. Joel Chua entered the appearances previously entered on behalf of the Prosecution.

Atty. Lindon Bacquel entered the same appearances on behalf of the Respondent.

INSTRUCTION OF THE CHAIR

The Presiding Officer directed the Clerk of Court, through the Office of the Sergeant-At-Arms (OSAA), to escort Ms. Gina Acosta, Special Disbursement Officer (SDO) of the Office of the Vice President (OVP), to the witness stand for the continuation of her testimony. Ms. Acosta was reminded that she would testify under the same oath administered during the previous trial day's proceedings.

Upon the request of Representative Chua, the Presiding Officer recognized Atty. Amando Ligutan, Counsel for the Panel of Prosecutors.

DIRECT EXAMINATION OF THE WITNESS

(Continuation)

Mr. Ligutan. *Magandang umaga.*

Good morning again, Ms. Gina Acosta. *Kamusta po kayo?*

Ms. Acosta. Good morning *po*, Sir.

Mr. Ligutan. How are you?

Ms. Acosta. *Medyo kabado po.*

Mr. Ligutan. *Kabado pa rin.* Now, let's continue.

Now, *nasabi mo* during the previous hearing *na na-withdraw iyong P125 million in cold cash sa isang araw lang. Hindi po ba iyong rason doon* that you had to withdraw P125 million in one day on December 20, 2022 *kasi nga hindi na siya magagamit ng opisina ninyo* from—after December 31, 2022, *hindi po ba?*

Ms. Acosta. *Ang pagkakaalam ko po na iyong confidential fund for 2022 dapat po magamit po* within the year 2022.

Mr. Ligutan. Okay. Until December 31, *tama po ba?*

Now—by the way, *nasabi mo na* you put *iyong P125 million sa apat na traveling bags, tama po ba?*

Ms. Acosta. *Tama po*, Your Honor.

Mr. Ligutan. And then, *saan galing itong mga traveling bags na ito?*

Ms. Acosta. *Iyong naimungkahi ko po iyon kay Ma'am VP Sara at saka kay Asec Ortonio, and then nasabi ko din iyon kay Colonel Lachica.*

Mr. Ligutan. Okay. *Naimungkahi ninyo kay VP Sara iyong apat na traveling bags. Iyong tanong, ano ba iyong naging tugon ng Vice President pagkatapos mong imungkahi sa kaniya iyong apat na traveling bags na ito?*

Ms. Acosta. *Nagsabi lang po siya na, "okay."*

Mr. Ligutan. Okay.

Ms. Acosta. *Tapos iyong kay Sir Lachica po—*

Mr. Ligutan. *Kay Ma'am Sara lang po. Kay VP Sara lang muna, ha. Iyon lang ang tanong.*

Ms. Acosta. *Opo.*

Mr. Ligutan. Now, Ma'am, *hindi po ba na noong araw na iyon, nagpunta kayo sa bangko dala-dala na iyong apat na traveling bags, tama po ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. *Apat lang iyong dinala ninyo, hindi ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. Now, *ito iyong tanong now—Kasyang-kasya iyong P125 million into four traveling bags. Iyong tanong is ganito: Paano n'yo po nalaman na saktong-sakto sa apat na traveling bags iyong P125 million? Paano ninyo nalaman?*

Mr. Bacquel. Objection, Your Honor. The question is misleading. The witness has not testified as to the—*na saktong-sakto iyong bag.*

Mr. Ligutan. But, Your Honor—

The Presiding Officer. Overruled. Witness testified that it fit, and she brought four traveling bags, and that they brought out the four traveling bags from the bank with the assistance of the security guards of the bank.

Witness may answer. *Pakisagot po, Ma'am Gina. Paano ninyo nalaman na apat na bag ang kailangan ninyong dalhin para sa P125 million?*

Ms. Acosta. *Ano po, tinantiya ko lang po.*

The Presiding Officer. Estimate lang?

Ms. Acosta. *Opo, estimate lang.*

The Presiding Officer. *Hindi pa po ninyo iyon nagawa sa talang buhay ninyo?*

Ms. Acosta. *Wala po, Sir. Dili pa po. Wala pa po.*

The Presiding Officer. Please proceed, Counsel.

Mr. Ligutan. Okay, now. *Hindi po ba?* This is a probing question, Your Honor. *Hindi po ba na saktong-sakto iyong apat na bags dinala ninyo kasi po na-experience n'yo na iyong pag-encash ng around the same amount, P500 million, iyong panahon na kayo ay SDO ng Davao City. Tama po ba?*

Mr. Bacquel. Objection, Your Honor. Asked and answered, Your Honor.

Mr. Ligutan. That is a probing question.

The Presiding Officer. Asked and answered, Counsel. She said, "*Hindi pa.*" Try to elicit a contrary answer from her another way.

Mr. Ligutan. We will, Your Honor. Now, Madam Witness, *hindi po ba na para sa taong 2019—okay, 2019, Ma'am, ha—iyong Davao City, under sa pamumuno ng mayor at that time, Sara Duterte, in 2019, Ma'am, binigyan din ng P460 million in confidential funds iyong Davao City.*

Now, before you answer that, I'm showing you an infographic, okay, of the yearly confidential funds allocated to Davao City from 2016 to 2022.

Now, *ito iyong tanong: Hindi po ba in 2019, iyong allocated na confidential funds para sa Davao City is P460 million? Naaalala n'yo po ba iyan?*

Ms. Acosta. *Hindi ko maaalala, Your Honor.*

Mr. Ligutan. For 2020, P460 million *din iyong na-allocate to Davao City as confidential funds. Naaalala n'yo po ba iyan?*

Ms. Acosta. *Hindi ko maaalala, Your Honor, kasi hindi po ganiyan ng aking na-withdraw as SDO po sa Davao City.*

Mr. Ligutan. All right. Ma'am, so, *iyong tanong, hindi iyong how much iyong na-withdraw ninyo, iyong tanong is, how much iyong na-allocate?*

Ms. Acosta. *Hindi ko maaalala, Your Honor.*

Mr. Ligutan. All right. *Sige, sige.*

For 2021, *hindi mo na rin maalala na iyong na-allocate na amount as confidential funds sa Davao City is P460 million? Hindi mo rin maalala iyan, Ma'am?*

Ms. Acosta. *Hindi ko na maalala, Your Honor, dugay na—ay, tagal naman kasi iyon, Your Honor. Tapos, may edad na pod ako, Your Honor.*

Mr. Ligutan. All right. Anyways, okay, that is your answer.

For 2022, so, Ma'am, *sinasabi ninyo—Okay, what about for 2022? Before you transfer to the OVP, okay, iyong Davao City nabigyan din ng P460 million in confidential funds, 2022. Hindi n'yo rin maalala iyan?*

Ms. Acosta. *Hindi ko maalala, Your Honor, kung ilan—*

Mr. Ligutan. Yes, Ma'am.

Ms. Acosta. *Ay! Mao na, o iyan ba ang confidential fund, Your Honor?*

Mr. Ligutan. Is it because *sabi ninyo, sa edad ninyo, hindi n'yo na maalala, Ma'am, hindi po ba?*

Ms. Acosta. Contributor *po ang edad ko, Your Honor, at saka dugay na pod na, Your Honor. Matagal na, Your Honor.*

Mr. Ligutan. Okay now—by *dugay*, the witness said, *matagal na—2022. 2022, apat na taon pa lang iyong nakalipas.*

Mr. Bacquel. ...[inaudible]

Mr. Ligutan. No, I'm not yet done. I'm not yet done.

The Presiding Officer. Kindly let the Counsel finish, Attorney.

Mr. Ligutan. This is a probing question.

And you are telling this public, Ma'am, *hindi n'yo na maalala iyong amount na binigay sa OVP na nangyari lang apat na taon pa lang?*

Mr. Bacquel. Objection, Your Honor.

Mr. Ligutan. Just a probing question.

Mr. Bacquel. Asked and answered and argumentative, Your Honor.

The Presiding Officer. He's trying to impeach, I believe, the witness...

Mr. Ligutan. Yes.

The Presiding Officer. ...with respect to the earlier answer that she gave, which she can do, Counsel, given that she has been declared with the Court as a hostile witness.

Witness may answer. Objection overruled.

Mr. Ligutan. *Hindi n'yo maalala, Ma'am, 2022?*

Ms. Acosta. *Ano po iyon, Sir? iyong nali—ah, I'm confused.*

Mr. Ligutan. Confused.

Ms. Acosta. *Nalibog na ko. I'm confused kung ang pangutana nimo; sa Davao ba o ang pagka-bise presidente ni Ma'am Sara?*

Mr. Ligutan. *Davao City. Davao City po. Before po kayo na-transfer from Davao City*



to the OVP in 2022, *iyong* budget for 2022 confidential funds is P460 million. You don't also remember that?

Ms. Acosta. *Dili kaayo ko kahinomdom, Sir.*

Mr. Ligutan. You don't remember that. All in all, from 2019 to 2022, a simple math will tell us, P1,000,840,000—almost two billion confidential funds—*sa Davao City binigay. Hindi n'yo rin maalala iyong total na iyan, tama po ba?*

Ms. Acosta. *Hindi ko maalala, Your Honor.*

Mr. Ligutan. Okay. Now, last hearing, August 17, 2026, *nasabi n'yo* that you released P125 million to Colonel Lachica, *kasi iyon iyong instruction sa iyo ng head of agency.* Now, to refresh your memory, here is a short clip of that hearing before the Committee on Good Government.

Play the video, please.

[Audio-video presentation]

Mr. Ligutan. Okay. Now, Madam Witness, I am showing you now a portion of the Joint Circular 6.1.1.

Show the Circular, please.

And you will be aided, if you may, with a copy of the TSN—sorry—of the Joint Circular through Attorney Jay.

Now, *hindi po ba, Ma'am, nakasulat sa 6.1.1 ng Joint Circular 2015-01, sinasabi diyan, "Under no circumstance shall..."—referring to confidential funds—"it be used for liquidation of the previous cash advance..."—O ito—"...or be transferred from one accountable officer to another."*

It is there, *tama po ba?*

Ms. Acosta. *Sandali lang, Sir, gi-tan-aw pa nako ang page.*

Mr. Ligutan. Opo. Second sentence *po ng 6.1.1. Uulitin ko.* "Under no circumstance shall confidential funds in particular be used or be transferred from one accountable"—*wala diyan, it refers to officer to another. Alam n'yo itong provision na ito, tama po ba?*

Ms. Acosta. *Alam ko po.*

Mr. Ligutan. *Alam n'yo iyan.* Okay. Now, despite knowing that, you still—*ibinigay mo pa rin sa isang Security Officer 'yung pera despite knowing 6.1.1. Tama po ba?*

Ms. Acosta. *Gi-disburse po nako sa Security Officer, Your Honor.*

Mr. Ligutan. This is the first time we are hearing that.

Now, let's go to 6.1.6 of the Joint Circular—6.1.6. *Nakasulat diyan, Ma'am, confirm: "No transfer of funds/appropriation through cash advances or any form of payment from one agency to another for purposes of confidential and intelligence activities shall be allowed."*

So *'yung kanina hindi pupuwede 'yung pag-transfer from one accountable officer to another, worse, sa hindi accountable officer. And then you will confirm, based on 6.1.6, hindi rin pupuwede 'yung pag-transfer ng confidential funds from one agency to another. Of course, alam n'yo rin 'yung provision na iyan. Tama po ba?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Ligutan. And despite knowing that, *pangalawang provision na bawal 'yung pag-transfer, ibinigay n'yo pa rin kay Colonel Lachica 'yung confidential funds. Tama po ba?*

Ms. Acosta. *Gi-disburse ko po kay Colonel Lachica, Your Honor.*

Mr. Ligutan. Disburse. This time, the term you are using is "disburse."

Ms. Acosta. Disburse or release.

Mr. Ligutan. That's interesting.



Now, Colonel Lachica is the ground commander of the Vice President's Special Protection Group. *Tama po ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Okay. And then *itong* VPSPG *ay isang* unit under *ng* Armed Forces of the Philippines. *Tama po ba?*

Ms. Acosta. *Siya po—unit po iyon sa* Office of the Vice President, Your Honor. *Ang* VPSPG *ay* Vice Presidential Security Protection Group of the Vice President, Your Honor.

Mr. Ligutan. Okay. Now, *hindi po ba*, the fact remains *na si* Colonel Lachica *ay isang* career officer *pa rin* *ng* Armed Forces of the Philippines. *Tama po ba? Sundalo si* Colonel Lachica under the Armed Forces of the Philippines. *Tama po ba?*

Ms. Acosta. Member *po siya*, Your Honor. *Opisyal po siya*, Your Honor.

Mr. Ligutan. And then the last hearing, *hindi mo* *masagot-sagot* 'yung *napakasimpleng tanong kung empleyado ba o hindi si* Colonel Lachica.

Mr. Bacquel. Objection, Your Honor, argumentative.

Mr. Ligutan. Wait, wait. That's a probing question to what the witness already answered—just answered, rather.

The Presiding Officer. Witness may answer.

Kindly answer the question, Ma'am Gina.

Ms. Acosta. *Wala na ko to nasagot*, Your Honor, *kay dili man ko nagtrabaho sa* HR, Your Honor.

Mr. Ligutan. Anyway, okay, thank you.

Now, Madam Witness, *hindi po ba*, as the Special Disbursing Officer (SDO), *kayo po ay—* you posted 'yung *tinatawag na* fidelity bond with the Bureau of Treasury. *Tama po ba*, Ms. Acosta?

Ms. Acosta. *Tama po*, Your Honor.

Mr. Ligutan. *At hindi rin po ba, naalala ninyo*, that you admitted *na kailangan ninyong—na kaya kailangan kayong mag-post ng* bond, *dahil posibleng mawala ninyo ang pagkalakiling pera. Tama po ba?* To aid your memory, we will show you transcript of stenographic notes of that March—sorry, of that 2024 November 25 hearing before the Committee on Good Government of the House of Representatives.

Show the TSN, please.

"Tanong, Ms. Acosta, *hindi po ba kayo ay natakot magbitbit ng ganitong kalaking halaga na pera* considering the possibility *na baka ma—hold up kayo?* Remember, you are covered by a fidelity bond—fund... bond and one of the reasons is the possibility of losing this huge amount of money." Do you remember having answered that?

Ms. Acosta. *Opo*, Your Honor.

Mr. Ligutan. You will agree *na* 'yung *rason bakit kailangan mag-post ng* fidelity bond 'yung *isang* accountable officer like you *ay para maprotektahan* 'yung *pera ng bayan. Ibig sabihin, kung mawala* 'yung *pera*, at least, at least, *may bond na pupuwedeng maka-recover* 'yung *bansa. Tanong, tanong: Si* Colonel Lachica *ba nag-post ng* fidelity bond, *or hindi mo rin maalala?*

Ms. Acosta. *Ano*, Sir?

Mr. Ligutan. Okay. I will repeat the question. *Sinabi natin* 'yung *rason bakit kailangan ng* fidelity bond, *para maprotektahan* 'yung *pera pinaghirapan ng taong-bayan. Tanong: Si* Colonel Lachica *ba na pinagbigyan mo ng* P125 million plus P375 million, or a whopping total of P500 million, *tanong ng bayan, Gina Acosta, si* Colonel Lachica *ba ay nakapag-post ng* fidelity bond?

Mr. Bacquel. Objection, Your Honor.



Mr. Ligutan. Oh, what's the objection?

Mr. Bacquel. Misleading, Your Honor. I believe the witness has only testified as regards to P125 million.

Mr. Ligutan. Okay.

Mr. Bacquel. There is no testimony yet as regards the amount mentioned by the Counsel for the Prosecution, Your Honor.

Mr. Ligutan. I will. Can I respond to that, Your Honor, please?

The Presiding Officer. Kindly respond, Attorney Ligutan. He has a point.

Mr. Ligutan. I do remember—Okay. I do remember this witness testifying, that's the same thing they did for the three quarters of 2023. I do remember that.

The Presiding Officer. And the question is quite simple. *Tama ba 'yung tanong*, Attorney Ligutan? *Sa pagkakaalam ninyo po, may bond po ba—may fidelity bond po ba si Colonel Lachica tulad ninyo na SDO? Bonded po ba siya, Ma'am?*

Ms. Acosta. *Si Security Officer na si Colonel Lachica, na siya ang amuang commanding officer sa VPSPG, dili po siya bonded, Your Honor. Pero ang accountable pa rin, Your Honor, ako gihapon, Your Honor. I am still the accountable person, Your Honor. That is why po, Your Honor, ako po ang gumawa ng liquidation, Your Honor.*

The Presiding Officer. That is correct, Ma'am. You have said that.

Attorney Ligutan, your witness.

Mr. Ligutan. Now, *hindi po ba*, Ma'am, *na para sa three quarters ng 2023*, and this is—I will break the question down. You also gave P125 million *para sa first quarter ng 2023 kay Colonel Lachica, hindi po ba?*

Ms. Acosta. *Nag-release po ako*, Your Honor.

Mr. Ligutan. To Lachica?

Ms. Acosta. *Opo*, Your Honor.

Mr. Ligutan. For the second quarter, P125 million to Colonel Lachica *din*. Unbonded *si* Lachica. You gave P125 million to Colonel Lachica. *Tama po ba?*

Ms. Acosta. *Tama po*, Your Honor, *kay siya po ang amuang Security Officer nga gitalaga ni Vice President Sara Duterte para mag-implement anang mga confidential activities*, Your Honor,...

Mr. Ligutan. All right.

Ms. Acosta. *...kay siya man ang naay access*, Your Honor.

Mr. Ligutan. Yes, Ma'am. Yes, Ma'am. And for the fourth—third quarter of 2023, another P125 million in cold cash to Colonel Lachica. *Tama po ba?*

Ms. Acosta. *Tama po*, Your Honor.

Mr. Ligutan. *Tama*. So, in total, *kalahating bilyong piso na pera ng taong-bayan, ibinigay mo sa isang unbonded person?*

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. The Counsel—

The Presiding Officer. Witness may answer. Counsel is seeking emphasis and clarification.

Ms. Acosta. *Ibinigay—ni-release ko po kay Colonel Lachica*, Your Honor, *kasi siya po ang itinalaga ng aming—ng Bise Presidente na siya po ang Security Officer*, Your Honor. *Siya po ang may alam—siya po ang eksperto*, Your Honor, *sa pagpatupad ng mga project o program regarding sa operation ng confidential activities*, Your Honor.

Mr. Ligutan. Okay. In line with this question, Your Honor, *hindi po ba*, Ma'am, *na sa iba't ibang tanong ko, paulit-ulit na 'yung sagot ninyo kasi nga siya 'yung may alam sa pag-implement ng confidential activities? Hindi n'yo rin po ba napansin na sa mga iba't ibang question ko sa iba't ibang punto, parang iisa na lang po 'yung sagot ninyo? Napansin n'yo po ba, hindi?*

Ms. Acosta. *Karun*, Your Honor?

Mr. Ligutan. Yes.

Ms. Acosta. *Iyon lang ang sagot ko*, Your Honor.

Mr. Ligutan. Yes. Okay. Now, let's go to this tree-planting activity, Ma'am. *Sinabi ninyo, pareho sa Good Governance Program, 'yung Socio-Economic Program, kino-cover din 'yung tinatawag ninyo na "tree-planting activities." Tama po ba?*

Ms. Acosta. Your Honor—

Mr. Ligutan. Ma'am, Ma'am—*ganito po*, Ma'am, *napakasimple ng tanong. Kung gusto n'yo pong mag-eksplika ng sagot ninyo, pupuwede po sa pamamaraan po ng abogado ng kabila. Napakasimple po ng tanong.*

Para sa Socio-Economic Program ng Office of the Vice President, isa sa mga activities na pinaggamitan ng confidential funds, sinasabi ninyo siguro pag-secure sa mga tree-planting activities, hindi po ba? Yes or no?

Ms. Acosta. *Ang tree-planting po ay kasali po sa pinaggastusan ng confidential fund during—before po gawin ang tree-planting, ang aming Security Officer, Your Honor, mag-conduct po sila ng surveillance, Your Honor,...*

Mr. Ligutan. Yes, Ma'am.

Ms. Acosta. *...kung safe ba.*

Mr. Ligutan. Yes, Ma'am. *Tama po, tama po.*

Ms. Acosta. *So, kana nga, kana nga aksiyon*, Your Honor, *part na na sa confidential fund*, Your Honor.

Mr. Ligutan. Okay. So, *sinasabi ninyo, importante 'yung confidential funds para masigurado 'yung security ng Vice President. Tama po ba?*

Ms. Acosta. *Masigurado nga safe pag-implement*, Your Honor,...

Mr. Ligutan. Yes, Ma'am.

Ms. Acosta. *...ang programa ug ang mga tao nga mo-plant didto sa area sa mga trees.*

Mr. Ligutan. Yes, Ma'am. Yes, Ma'am. Now, *hindi po ba noong Agosto—August 13—ilang araw pa lang 'yung nakakaraan—2026, 'yung Vice President nag-tree-planting activity in Masibay Integrated School in Nunungan, Lanao del Norte, as can be shown in these news reports.*

Tanong, 2026—ito 'yung tanong now: may confidential funds ba 'yung Office of the Vice President sa taong ito, 2026?

Ms. Acosta. *Wala po*, Your Honor.

Mr. Ligutan. Okay, *wala*. And despite that, despite the absence of confidential funds, *nakapag-tree-planting—with God's blessing, nakapag-tree-planting 'yung Vice President nang ligtas, nang walang untoward incident. Tama po ba?*

Mr. Bacquel. Irrelevant, Your Honor.

Mr. Ligutan. That is very much relevant, Your Honor. If I may, I can explain that.

The Presiding Officer. It's part of the liquidation report of the confidential funds, Counsel. Why is it irrelevant?

Mr. Bacquel. This is for 2026, Your Honor. The question pertains to an activity in 2026, Your Honor, which is not covered by the Articles of Impeachment, Your Honor.

The Presiding Officer. This is 2026, Counsel?

Mr. Ligutan. Yes, Your Honor, 2026. The point is there was no confidential funds allocated, and the Vice President was able to conduct one. *Sinasabi ng*—if I may, Your Honor?

The Presiding Officer. I get your point, Counsel.

Mr. Ligutan. Yes.

The Presiding Officer. I think Counsel was able to explain, Attorney Lindon. Yes, witness may answer.

Ang punto lamang naman, Attorney Ligutan, correct me if I am wrong, is kasama sa confidential funds na pinang-liquidate nila 'yung tree planting, di umano, libreng sakay, 'yung mga enumeration nila, bagaman hindi ito saklaw ng taong sakop ng impeachment. Gusto mo lang patunayan na nagawa pa rin ito kahit walang confidential funds.

Mr. Ligutan. Crystal clear. Yes, Sir.

The Presiding Officer. Yes. Witness will answer if she knows, if she knows, because she is the SDO for the confidential funds.

Ms. Acosta. *Hindi ko alam*, Your Honor.

Mr. Ligutan. *Hindi mo alam. Hindi mo alam.*

Now, going back. *Iyong nabigay mo 'yung P125 million to Colonel Lachica, binigyan ka rin niya ng tinatawag ninyong list of expenditures. Tama po ba?* And then to aid your memory, Ma'am, *kasi nga sabi mo hindi ninyo maalala 'yung mga nangyari four years ago, I'll show you, I'll show you transcript of stenographic notes, November 25, 2024. Or even before I—Okay. Iyan.*

Naalala ninyo, Ma'am, na binigyan din kayo ni Colonel Lachica 'yung tinatawag ninyong list of objects of expenditures and request for funding, hindi po ba?

Ms. Acosta. List of object of expenditure *po*, Your Honor.

Mr. Ligutan. Yes. *Ano ba itong mga objects of expenditures na ito?*

Ms. Acosta. *Iyon po ang mga proposed expenses po na ma-incur po ni Security Officer, Your Honor.*

Mr. Ligutan. Okay. Now—and then, si Colonel Lachica *din 'yung nag-determine ano 'yung mga objects of expenditures, hindi po ba? Siya?*

Ms. Acosta. *Sa kaniya po galing*, Your Honor.

Mr. Ligutan. *Sa kaniya galing.* Now, *ito 'yung tanong now.* Ma'am, *'yung binigay mo 'yung P125 million in cold cash to Colonel Lachica, did you ask him to sign an acknowledgment receipt or any voucher na magpapatunay na tinanggap niya galing sa iyo 'yung P125 million?*

Ms. Acosta. *Gipa-receive na ko siya*, Your Honor.

Mr. Ligutan. *Iyong tanong is, did you ask him to sign an acknowledgment receipt? Yes or no?*

Ms. Acosta. *Gipa-receive nako siya*, Your Honor.

Mr. Ligutan. Being evasive. The question is so simple.

The Presiding Officer. *Hindi ba kasama po sa liquidation report ninyo 'yung mga acknowledgment receipt na sinabmit (submit), iba't ibang pangalan, hindi po ba? Opo, hindi ba, 'yung iba't ibang pangalan.* So, *alam ninyo po ang kahulugan ng acknowledgment receipt. Ang tanong: may acknowledgment receipt bang pinirmahan si Colonel Lachica para sa binigay ninyong P125 million?*

Ms. Acosta. *Ang nalibog ko—I'm sorry, I'm confused.*

The Presiding Officer. No.

Ms. Acosta. *Paghatag nako kay Colonel Lachica...*

The Presiding Officer. *Pagbigay ninyo kay Colonel Lachica—*

Ms. Acosta. ...ng P125M, gipa-receive nako siya, Your Honor, *didto sa objects of expenditure nga gihatag niya sa ako-a. Didto na lang nako gipa-receive, Your Honor.*

The Presiding Officer. Ma'am, Ma'am, *naniniwala akong kaya ninyo gamitin ang wikang Pilipino rito. Noong binigay ninyo 'yung P125 million sa kaniya, pina-receive ninyo sa kaniya. Ibig sabihin, may pinirmahan siyang papel na tinanggap niya 'yung P125 million mula sa inyo.*

Ms. Acosta. *Opo, Your Honor.*

Mr. Ligutan. *Tanong...*

The Presiding Officer. Continue, Counsel.

Mr. Ligutan. ...ano 'yung dokumentong iyan kung saan makikita natin, Ma'am, *na sinasabi ni Colonel Lachica pinirmahan niya na tinanggap niya 'yung P125 million galing sa iyo?*

Ms. Acosta. Internal document namin iyon, Your Honor, *doon po sa object of expenditures, doon ko siya pina-receive, Your Honor.*

Mr. Ligutan. Okay. Now, *ano iyong nakasulat sa object of expenditure na iyan na magpapatunay sa sinasabi mo ngayon na tinanggap, tinanggap, ni Colonel Lachica iyong P125 million galing sa iyo?*

Ms. Acosta. *Gitatakan nako og "received," Your Honor. Tapos sa received, sa below sa received nga word, below the received na word, doon siya nag-sign, Your Honor.*

Mr. Ligutan. *Ng? Anong sinayn (sign) niya?*

Ms. Acosta. *Gipirmahan niya, ang pirma niya, Your Honor.*

Mr. Ligutan. *Iyon. Madam Witness, so iyong sinasabi mo now— tinatanong ka, ano iyong pruweba mo na natanggap ni Colonel Lachica iyong P125 million galing sa iyo. Iyong sinasabi mo now and it's plain to see, tinatakan mo iyong object of expenditure. Tama po ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. *And then sa ibabaw niyan, pinirmahan ni Colonel Lachica. Tama po ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. *Tanong: Walang nakasulat na P125 million iyong natanggap ni Colonel Lachica galing sa iyo sa araw na iyan?*

Ms. Acosta. *Naa, Your Honor.*

Mr. Ligutan. *Sa list of expenditures?*

Ms. Acosta. *Naa, Your Honor.*

Mr. Ligutan. Okay—

Ms. Acosta. *Mayroon po, Your Honor. Kasi ang nakalagay po sa object of expenditures, ito po iyong — Purchase of information, amount; then purchase of reward, amount; then ano pa iyong mga expenses; then total, 125-M.*

Mr. Ligutan. *Uh-huh. Yes.*

Ms. Acosta. *So, doon ko siya pina-receive, Your Honor.*

Mr. Ligutan. Ma'am—

Ms. Acosta. *Pero iyong document na iyon, Your Honor, is internal po namin, Your Honor.*

Mr. Ligutan. *Anyway, I will probe deeper.*

Sa list of expenditure nakasulat doon, ito iyong paggagamitan, 'tsaka ito iyong nakalaan na pera. Tama po ba?

Ms. Acosta. *Oo, mayroong ganiyan.*

Mr. Ligutan. *Iyon lang? Iyon lang? Ano iyong paggagamitan 'tsaka ano iyong nakalaan na pera, iyon lang, tama po ba?*

Ms. Acosta. *Mayroon pa siyang sentence, paragraph, Your Honor, sa ibabaw.*

Mr. Ligutan. *Na ano?*

Ms. Acosta. *Hindi ko man memorized na.*

Mr. Ligutan. *Hindi mo memorized?*

Ms. Acosta. *Uhm, hindi ko maaalala.*

Mr. Ligutan. *Maalala.*

Ms. Acosta. *Basta ang gibutan niya nga— I'll try ko mag-Tagalog. "VP Sara, through Gina F. Acosta, SDO, in line with the blah, blah, blah, blah, blah, the following are the proposed expenses for the implementation of confidential activities for the fourth quarter 2022."*

Then iyon na—

Mr. Ligutan. *Yes, Ma'am.*

Ms. Acosta. *"Particulars, purchase of information with corresponding amount, blah, blah, blah." Tapos "na-total 125 amount."*

Mr. Ligutan. *Okay. Yes, ma'am.*

Ms. Acosta. *Tapos, "Submitted by Lachica."*

Mr. Ligutan. *Okay.*

Ms. Acosta. *So, dito sa baba, dito ko na siya pina-receive na ni-receive niya iyong 125, Your Honor.*

Mr. Ligutan. *Okay, now—Kaya nga iyon iyong tanong, ma'am. Napakasimple ng tanong, Ma'am, eh.*

Paulit-ulit, sabi mo, list of expenditures, nakasulat doon ito iyong paggagamitan, ito iyong nakalaan, P125 million, saka pirma lang ni Colonel Lachica, saka tinatakan mo "received."

Ma'am you are under oath. Pero sa dokumentong iyan, sa dokumentong iyan, Ma'am, walang naka-indicate doon sa isang napakasimpleng phrase: "Tinanggap ko galing kay Gina F. Acosta iyong perang P125 million sa araw na iyan," na makikita natin, alam ng taong-bayan, makikita natin iyan sa kahit anong simpleng transaksyon na kung saan may palitan ng kamay sa pera. Wala iyan, yes or no?

Ms. Acosta. *Gi-receive niya, Your Honor.*

Mr. Bacquel. *Objection, Your Honor.*

Mr. Ligutan. *Your Honor, I'm probing. I'm probing.*

Mr. Bacquel. *Asked and answered, Your Honor.*

The Presiding Officer. *While, indeed, it was asked and answered, Counsel, I think counsel is seeking clarification on this point. It affords the witness an opportunity to clarify her answer, too, because she seems to be unsure. So, I will allow it for now, Counsel, with your indulgence.*

Ma'am Gina, pakisagot po iyong katanungan ni Attorney Ligutan.

Mr. Ligutan. *You want me to repeat the question?*

Ms. Acosta. *Gipa receive ko siya, Your Honor.*

Mr. Ligutan. *Ayon, exactly. Paulit-ulit po. I think alam po natin.*

The Presiding Officer. *Pina-receive po at internal iyong papel na nagsasabing ni-receive. Hawak n'yo po ba iyon ngayon? May kopya po ba kayong dala ngayon?*

Ms. Acosta. *After po nang nakagawa na po ako ng liquidation, Your Honor, kinuha po ulit ni Security Officer Lachica, Your Honor.*

The Presiding Officer. *Iyong receipt, iyong resibo na tinanggap niya iyong pera, kinuha niya uli?*

Ms. Acosta. *Kinuha niya rin ulit, Your Honor, kasi naka-liquidate naman po ako, Your Honor. Ang base po ng aking liquidation, Your Honor, is iyong mga document po na ibinigay sa akin ni security officer after po matapos po niya ma-implement on the grounds ang mga confidential activities po, Your Honor.*

The Presiding Officer. *Sorry po, Ma'am Gina, with the permission of counsels, with the indulgence of Attorney Ligutan as well. Noong ibinigay ninyo iyong P125 million kay Colonel Lachica, may pinirmahan siyang resibo na tinanggap niya iyong P125 million, pribadong dokumento, internal document ng opisina ninyo, tama po ba?*

Ms. Acosta. *Opo, Your Honor.*

The Presiding Officer. *Noong nakapagbigay siya ng liquidation kung saan at paano niya ginastos iyong binigay ninyong P125 million, binawi na po niya iyong pinirmahan niyang resibo na tinanggap niya iyong 125, kasi na-liquidate na po niya?*

Ms. Acosta. *Nagbigay po siya sa akin—After po, Your Honor, nagbigay siya sa akin ng reports na tinatawag po namin na “fund utilization report.”*

The Presiding Officer. *Pagbigay po niya noon, binawi niya na iyong pinirmahan niyang resibo na tinanggap niya iyong 125?*

Ms. Acosta. *Wala pa, Your Honor.*

The Presiding Officer. *Ah, wala pa.*

Ms. Acosta. *Kasi aking gitali po, Your Honor, na tama po ba ang kinuha niya na 125—Ang ni-release ko sa kaniya na 125, tama po ba sa kaniyang binigay sa akin na fund utilization report?*

The Presiding Officer. *Okay, eksakto, tumama?*

Ms. Acosta. *Eksakto. So, nakagawa na ako ng accomplishment report based sa fund utilization report na binigay sa akin ni SO—Officer Colonel Lachica.*

The Presiding Officer. *Ibinigay ninyo na ba—sinauli ninyo na ba iyong resibo sa kaniya pagkatapos noon?*

Ms. Acosta. *After po na matapos ko na aking liquidation, nai-submit ko na po sa IC—sa COA...*

The Presiding Officer. *Doon ninyo na po sinauli iyong—?*

Ms. Acosta. *Kinuha na po niya, Your Honor, kasi naka-liquidate naman po kami, Your Honor.*

The Presiding Officer. *So, wala na po sa kamay ninyo, nasa kamay na po niya?*

Ms. Acosta. *Wala na po sa akin, Your Honor.*

The Presiding Officer. *At ganiyan din po ang ginawa ninyo sa taong 2023 doon sa tatlong 125 million. Pagkatapos niya, binigay ninyo iyong pera, pinirmahan niya iyong resibong tinanggap niya. Pagkatapos niyang magbigay ng fund liquidation report at na-liquidate ninyo at na-submit ninyo na sa COA, kinuha na rin niya iyong resibo at wala po kayong kopya?*

Ms. Acosta. *Yes, Your Honor.*

The Presiding Officer. *Okay. Attorney Ligutan, your witness.*

Mr. Ligutan. *Now, hindi po ba, at this particular moment, you cannot show any document, at this moment, ma'am—I'm narrowing the question, Your Honors. At this moment, wala kayong maipakitang dokumento o anuman na magpapatunay na tinanggap, in-acknowledge ni Colonel Lachica iyong pagtanggap niya ng P125 million galing sa iyo sa araw na iyan, December 20, 2022? Wala. Yes or no?*

Mr. Bacquel. *Objection, Your Honor. Asked and answered, Your Honor.*

Mr. Ligutan. *I'm asking for now.*

The Presiding Officer. Actually, asked and answered already. I will have to sustain the objection of the counsel.

Mr. Ligutan. Yes, Your Honor.

The Presiding Officer. That is already just for emphasis and I think the witness has answered it already.

Mr. Ligutan. I will continue, Your Honor.

Same *po, sa* three quarters *ng* 2023, *binibigay mo iyong pera sa isang* non-accountable officer *na hindi* bonded, *at saka hindi ka makakapagpakita—*2023 this time—*ng kahit anong dokumento ngayon na magpapatunay na tinanggap nga ni* Colonel Lachica *iyong* P375 million in cold cash, *pera ng bayan?*

Mr. Bacquel. Objection, Your Honor. Misleading and asked and answered, Your Honor.

Mr. Ligutan. 2023, Your Honor.

Mr. Bacquel. It is misleading, Your Honor, because the witness did not make any testimony regarding the claim that the security officer is not accountable, Your Honor, and it's already asked and answered, Your Honor.

The Presiding Officer. Counsel, I will have to sustain the objection, but on the ground that it is compounded and, if at all, it is misleading because the 375 million was not given one time to Colonel Lachica. You totaled it—

Mr. Ligutan. I will break it down, Your Honor, please.

The Presiding Officer. You totaled it for her.

Mr. Ligutan. Okay.

The Presiding Officer. Kindly modify, kindly modify.

Mr. Ligutan. I will break it down.

Para naman sa first quarter *ng* 2023, *binigay mo rin* P125 million in cold cash to Colonel Lachica. *Tama po ba?*

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. I am breaking it down.

Yes or no?

The Presiding Officer. Witness may answer.

Ms. Acosta. *Gi-release ko po kay* security officer *kasi siya po ang itinalaga ng aming* vice president, Your Honor, *at siya ang nakakaalam paano i-implement ang mga* confidential activities, Your Honor.

Mr. Ligutan. There you go again.

Now, for the first quarter *ng* 2023, *wala ka ring maipakitang* any acknowledgment receipt, any document *ngayon na magpapatunay na tinanggap ni* Colonel Lachica *iyong* P125 million cash *galing sa iyo* for the first quarter of 2023. *Tama po ba?*

Ms. Acosta. *Nagpa-receive po ako,* Your Honor.

Mr. Bacquel. Objection, Your Honor. Asked and answered, Your Honor.

Mr. Ligutan. Your Honor, this is 2023. I am breaking it down.

The Presiding Officer. Counsel, let the witness answer.

Ms. Acosta. *Nagpa-receive po ako,* Your Honor.

Mr. Ligutan. Ma'am, *tanong, may dokumento kayo* now *na ipapakita* in an impeachment trial, *sa harap ng ating mga* senator-judges, *sa harap ng taong-bayan, na tinanggap nga ni* Colonel Lachica *iyong* P125 million *galing sa iyo?*

Mr. Bacquel. Your Honor, Your Honor.

Mr. Ligutan. That's a very clear—

Mr. Bacquel. I would have to register a continuing objection to this line of questioning ...

Mr. Ligutan. *Napakasimpleng tanong po*, Your Honor.

Mr. Bacquel. ... considering that it is already asked and answered, Your Honor.

Mr. Ligutan. *Ngayon—*

The Presiding Officer. Counsel, you are on a short leash. I think the witness answered already from the questioning of the presiding officer himself. Although I know and understand it is for emphasis but only—it can only go so far.

Mr. Ligutan. Yes.

The Presiding Officer. The witness has already answered.

So, ma'am, *wala po kayong dokumentong hawak dahil nga binawi ni Colonel Lachica. Tama po?*

Ms. Acosta. *Binawi po niya*, Your Honor, *pero nakagawa na po ako ng liquidation*, Your Honor. *Naka-submit na po kami sa COA*, Your Honor, every time *po mayroon kaming confidential*, Your Honor.

The Presiding Officer. *Opo, ma'am.*

Ms. Acosta. *Naka-liquidate po kami*, Your Honor.

The Presiding Officer. *Opo, naunawaan ko po iyon.*

Mr. Ligutan. All right.

The Presiding Officer. *Pero klaro lang po na binawi nga po niya kaya wala po kayong kopya?*

Ms. Acosta. Yes, Your Honor, *pagkatapos.*

The Presiding Officer. *At iyan po iyong kinagawian na ninyo noong 2022, last quarter, first, second, at third quarter ng 2023?*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. *Opo, tama? Okay. Kaya wala po kayong hawak na kahit anong dokumento ngayon dahil na kay Colonel Lachica na at binawi po niya?*

Mr. Ligutan. Ma'am.

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. Okay.

Mr. Ligutan. Ma'am, *ito iyong tanong now, ito iyong tanong now*, ma'am. *Hindi po ba kakaiba, unusual, na iyong acknowledgment receipt babawiin ng taong pinagbigyan mo ng pera?* You don't find it unusual?

Mr. Bacquel. Objection, Your Honor, argumentative.

Mr. Ligutan. Your Honor—

The Presiding Officer. Sustained, sustained. Kindly reform, Counsel.

Mr. Ligutan. Yes, Your Honor.

In Davao City, prior to 2022, *hindi po ba*, ma'am, *same pa rin iyong procedure na ginagawa ninyo, binibigay mo iyong confidential funds sa isang security officer, and then sabi mo may acknowledgment receipt pero binabawi ng pinagbigyan mo iyong acknowledgment receipt kaya hindi mo hawak, tama po ba*, sa Davao City, *practice ninyo doon?*

Ms. Acosta. I will have to recall, Your Honor, *kay matagal na po kasi iyon.*

Mr. Ligutan. Yes, okay. Ma'am, *hindi po ba ito iyong nagiging method of procedure—may Latin term po tayo diyan, ma'am, ha.*

Ms. Acosta. May?

Mr. Ligutan. Method of procedure—*ito iyong modus operandi ninyo. Ibibigay iyong pera sa isang security officer, hindi bonded, at saka babawiin—sinasabi mo—ng pinagbigyan ng pera ang acknowledgment receipt. "Modus operandi," in English—in simple English, it means "method of procedure," nakagawian, practice, modus. Tama po ba?*

Mr. Bacquel. Objection, Your Honor. It's misleading because the witness testified that she does not remember.

The Presiding Officer. Counsel, we both know *modus* has a secondary and double meaning. We can always use —Is this the standard operating procedure that you followed when you were SDO in both Davao and under the OVP? *Ito po ba iyong kinagawian ninyong practice at proseso noong kayo po ay SDO ng Davao kaugnay ng confidential fund at noong kayo ay SDO ng OVP? Na iyong pagbibigyan ninyo, security officer o sino man, hindi bonded, pipirma ng acknowledgment receipt at 'pag nagbigay na siya ng fund liquidation report, fund utilization report at naka-liquidate na kayo sa COA, babawiin na?*

Ms. Acosta. Opo, Your Honor.

Mr. Ligutan. Opo. Now, let me proceed. Cash disbursement record. You are aware *ano iyong konsepto ng cash disbursement record or CDR. Let us go to paragraphs 7.1, 7.2—Your Honor, I endeavor to finish this before 12:00, I promise Your Honor—7.1, 7.2, 7.3. Of course, as an SDO alam mo ano iyong konsepto ng cash disbursement record. Alam mo iyong konseptong iyan, hindi po ba?*

Ms. Acosta. Sandali.

Mr. Ligutan. Attorney Jay, please assist.

Mr. Ligutan. That is 7.1, 7.2, 7.3.

The Presiding Officer. Assisting counsels of both parties may approach.

Ms. Acosta. Mayroon na akong kopya, Your Honor.

Mr. Ligutan. Okay. Now—What was the answer? Sorry, ha.

Okay, now, you were supposed to record each invoice, receipt or voucher individually. *Sa isang araw, kailangan nakatala sa CDR, okay, lahat ng perang lalabas sa opisina mo as SDO, tama po ba?*

Ms. Acosta. Yes, Your Honor, *mayroon po akong CDR.*

Mr. Ligutan. Okay, let us go into that. *Sinabi mo may CDR ka. Ito iyong tanong now, in that CDR, makikita ba diyan na binigay mo iyong P125 million kay Colonel Lachica on December 20, 2022?*

Ms. Acosta. Yes po, *nakalagay po doon*, Your Honor, released to security officer, Sir Lachica, 125.

Mr. Ligutan. Can we have that? Do you have a copy?

Ms. Acosta. *Hindi ko dinala*, Your Honor.

Mr. Ligutan. *Hindi mo dinala.* Okay, good.

Now, ma'am, *hindi po ba, ma'am, sinabi mo na iyong mga acknowledgment receipt na sabi mo, through the questions of the good Presiding Officer, pinirmahan allegedly ni Colonel Lachica, binawi niya, hindi po ba? Ma'am, iyong tanong: What about iyong mga acknowledgment receipts ng mga thousands of recipients like Mary Grace Piattos, Andy Lim? Binawi ba nila iyong acknowledgment receipt? Yes or no?*

Ms. Acosta. I need to clarify the question, Your Honor.

Mr. Ligutan. I will repeat the question. *Sinabi mo iyong pruwera na binigay at saka tinanggap ni Colonel Lachica iyong P125 million, sinabi mo, "Yes, pumirma siya pero binawi niya*

pagkatapos ng liquidation report.” Ito iyong tanong now: What about iyong mga acknowledgment receipts, Mary Grace Piattos, Andy Lim? Binawi ba nila iyong acknowledgment receipts or you retained iyong mga acknowledgment receipts na iyon? You retained, tama po ba?

Ms. Acosta. *Iyong mga acknowledgment na iyon, Your Honor, galing po iyon kay SO officer.*

Mr. Ligutan. Colonel Lachica?

Ms. Acosta. *Oo. Tapos, Your Honor, iyan po ay hiningi po ng COA. Kaya na-submit na po lahat ang mga acknowledgment, Your Honor, na galing sa iyong mga tao na naka-receive o iyong pinaggastusan po ni Colonel Lachica doon sa ground po, Your Honor, habang gi-implement po ang confidential operation or activities, Your Honor.*

Mr. Ligutan. *Para mai-submit ninyo sa COA? Iyon ang sabi ninyo, hindi ba?*

Ms. Acosta. *Kailangan po iyon, Your Honor.*

Mr. Ligutan. *Iyon, ma’am. Kaya, Your Honor, with the court’s indulgence, I will ask this question again. Iyong binawi ni Colonel Lachica, iyong acknowledgment receipt, hindi ninyo po ba naisip na, “Teka muna, Colonel Lachica...” Wait, wait. I’m not yet done, Counsel. “Teka muna, kailangan kong i-submit sa COA.” So, of course, I will not give this to you, Colonel Lachica, kasi nga, ano iyong proveba ko na tinanggap mo iyong pera galing sa akin? Hindi mo ba naisip iyan, Ginang Gina Acosta?*

Mr. Bacquel. Objection, Your Honor. Argumentative, Your Honor.

Mr. Ligutan. Your Honor, this is premised on her answer a while ago that she said, because they had to submit that to COA, the acknowledgment receipt. That’s why I’m asking this question again.

Mr. Bacquel. Argumentative, misleading, Your Honor.

The Presiding Officer. I think you’ve established your point Counsel...

Mr. Ligutan. Yes or no?

The Presiding Officer. ...both to the Senator-Judges and to the public. It is argumentative.

Mr. Ligutan. I will move on.

The Presiding Officer. Move on to your next point, Counsel.

Mr. Ligutan. Much obliged. *Hindi po ba obligasyon mo bilang SDO na busisiin iyong mga acknowledgment receipts na sinasabi ninyo na magpapatunay na tinanggap ng mga recipients iyong pera ng taong-bayan? Trabaho mo as SDO na busisiin iyong mga acknowledgment receipts, hindi po ba?*

Ms. Acosta. *Trabaho ko po, Your Honor. Pero sa dami-dami po ng acknowledgment receipt, hindi ko po maalala lahat, Your Honor...*

Mr. Ligutan. *Iyon.*

Ms. Acosta. *...iyong mga ibang detalyes kagaya ng mga names, Your Honor, kasi—*

Mr. Ligutan. And I will help you remember, ma’am. Don’t worry.

Now, I’m showing you now an itemized confidential expenditures, as stated sa accomplishment report ninyo for the period December 21 to 31, 2022. Okay, show. *Para po matulungan natin si Gina Acosta, maalala iyong nangyari in 2022, apat na taong nakalipas.* Show this on screen, please.

Surveillance and monitoring. Not that one.

The total amounts—okay. While it’s being shown, in the process of being shown, you will confirm that for an 11-day duration, December 21 to 31, 2022, *iyong* Office of the Vice President, *nagbayad ng kabuuang* P16 million. *Nakasulat sa accomplishment report ninyo, “rental of other incidental expenses relative to the maintenance of safe houses.”* Sixteen million pesos rental from December 21 to 31, 11 days. Confirm, Madam Acosta. Now, this time, *naaalala ninyo na po ba? Nandiyan po, “rental of other incidental expenses, letter (c), P16 million.”*



Ms. Acosta. Excuse me, Your Honor, *ang ibinigay po sa akin na utilization po, hindi po kagaya doon*, Your Honor.

Mr. Ligutan. Okay, sige. Anyway, you look at the document. Accomplishment report. You show it. It's there.

Ms. Acosta. *Kasi po ang sa screen po, nakalagay po*, Your Honor, is 132, *at ang dito*, Your Honor, is 157.

Mr. Ligutan. *Malamang, wala eh. Ma'am—Klaro po, ma'am. Klaro po, ma'am*, December 21 to 31, and then rental, *ayan o*, P16 million. Yes, ma'am. Yes, ma'am. We'll show it to you. Yes.

The Presiding Officer. For the record, witness...

Mr. Ligutan. Nodded.

The Presiding Officer. ...gave the thumbs up sign, which means...

Mr. Ligutan. Okay.

The Presiding Officer. ...yes, in the affirmative.

Tama, ma'am?

Ms. Acosta. *Opo.*

Mr. Ligutan. Sixteen million—sorry *po*, sorry *po*, Your Honor.

Ms. Acosta. Same *na po*. Same *na po ang aking kopya sa screen po*, Your Honor.

The Presiding Officer. Okay.

Mr. Ligutan. Sixteen million pesos from December 21 to 31, 2022, 11 days. *Tanong: Hindi ninyo po ba masasabi ito ay unconscionable, kasuklam-suklam, or extravagant or labis-labis?*

Mr. Bacquel. Objection, Your Honor, argumentative.

Mr. Ligutan. Wait, wait, wait. I'm not yet done. *Nasa circular, trabaho ng COA na tignan...*

The Presiding Officer. Let Attorney Ligutan finish.

Mr. Ligutan. ... *kung unconscionable ba or extravagant iyong expenses*. That's why I'm asking this witness now.

Mr. Bacquel. The witness is not from COA, Your Honor.

Mr. Ligutan. I'm not— The witness—

The Presiding Officer. Are you done, Attorney Ligutan?

Mr. Ligutan. Not yet, Your Honor. In fact, I'm not yet done with the question, Your Honor.

Hindi po ba kasuklam-suklam, labis-labis—in English, unconscionable and extravagant, as mentioned in the circular—for the Office of the Vice President to spend P16 million in 11 days or a total of P1.4 million—Hindi nga per month, eh, per day.

The Presiding Officer. Now, Counsel, Attorney Lindon, what is your objection?

Mr. Bacquel. Same objection, Your Honor, with the addition that it's also compound, Your Honor.

The Presiding Officer. What was the first objection, Counsel?

Mr. Bacquel. It's argumentative, Your Honor.

The Presiding Officer. I will have to overrule it, Counsel.

Kindly answer the question, ma'am. Just with one variation, unconscionable is not *kasuklam-suklam*. *Mahirap tanggapin, mahirap makunsensiya pero hindi naman kasuklam-suklam ang unconscionable*, Counsel.

With that clarification, witness may answer.



Hindi ba ninyo nakita—

Ms. Acosta. Sorry *po*, Your Honor. I was confused.

The Presiding Officer. *Hindi ba kayo nahirapang tanggapin na ganoon kalaki iyong gastusin para sa December 21 to 31 lamang na pagrenta ng mga safehouses? Hindi po ba—para sa inyo, katanggap-tanggap po ba iyon o hindi?*

Ms. Acosta. *Ako po*, Your Honor, *nag-rely po ako sa mga dokumento na binigay sa akin ng security officer*, Your Honor, *kasi siya po ang nag-implement doon sa ground*, Your Honor. *Wala po ako doon*, Your Honor, *kasi wala po akong access sa mga security*, Your Honor. *Kaya nag-rely po ako sa security officer namin na si Mr. Lachica*, Your Honor.

The Presiding Officer. *So pag nagsabing nag-rely, inasahan ninyo lamang po iyong binigay sa inyong fund utilization kaugnay at kabilang na iyong renta na ganyan ang amount? Opo?*

Ms. Acosta. *Opo*, Your Honor.

The Presiding Officer. *Umaasa lang kayo sa binigay sa inyong report na 16 million iyong renta ng iba't ibang safehouses sa loob ng 21 to 31 December?*

Ms. Acosta. Yes, Your Honor, *nag-rely po ako sa aming security officer*, Your Honor, *kasi siya po ang nag-implement*, Your Honor.

The Presiding Officer. Okay.

Mr. Ligutan. Let me proceed.

The Presiding Officer. Proceed, Counsel.

Mr. Ligutan. Let's take a look at the same list from the accomplishment report for the period December 21 to 31—the amount for the purchase of supplies, provision of medical, food aid. Okay. If we sum that up, it totals a whopping P75 million *para sa* supplies, provision of medical and food aid. P75 million.

Tanong: Ikaw ba ay in possession ng isang single official receipt na magpapatunay na talagang ginamit iyong P75 million para sa pagbili ng supplies, medical and food aid? Do you have a single, ni isang official receipt? Yes or no.

Ms. Acosta. Your Honor, *nag-rely po ako kung anong mga dokumento ang binigay sa akin ng security officer*, Your Honor.

Mr. Ligutan. There you go again. The question is so simple: Do you or do you not have a single official receipt to prove *na ginamit iyong P75 million na pera ng taong-bayan sa pagbili ng supplies, medical and food aid?*

Mr. Bacquel. Asked and answered, Your Honor.

The Presiding Officer. Ma'am Gina, *iyong binigay sa inyong dokumento ng security officer para i-liquidate itong ipinambili ng medical at saka food supplies, may kabilang po bang resibo doon o wala? Official receipt o wala po?*

Ms. Acosta. Acknowledgment receipt *lang po*, Your Honor, *kasi po sa—*

The Presiding Officer. *So wala pong official receipt? Iyon lang po iyong tanong ni Attorney Ligutan. So wala pong binigay na official receipt iyong security officer sa inyo kaugnay sa kabuuang halagang ito ng 75 million sa purchase of supplies, medical, and food aid?*

Ms. Acosta. Acknowledgment receipt *po*, Your Honor.

Mr. Ligutan. All right. Now—

The Presiding Officer. *So wala pong OR. Alam ninyo naman po, ma'am, ibig sabihin ng OR, hindi ba?*

Ms. Acosta. *Opo*, Your Honor.

The Presiding Officer. *So wala pong official receipt?*

Ms. Acosta. *Wala po*, Your Honor.



The Presiding Officer. Okay. Attorney Ligutan.

Mr. Ligutan. *So ito po iyong tanong now: Ba't hindi kayo naghanap galing kay Colonel Lachica? Hindi ninyo ba naisip, ma'am? "Colonel Lachica, kahit ba iyong pagbili ng gamot, iyong pagbili— this is an advertisement—Biogesic, paracetamol? Bakit hindi tayo mag-produce ng official receipt? Ano po iyong napaka-confidential kung saan binili, Biogesic, paracetamol? Ano iyong confidential? Hindi mo ba naisip tanungin kay Colonel Lachica iyan?"*

Mr. Bacquel. Objection, Your Honor. Compound and argumentative, Your Honor.

The Presiding Officer. I will allow it for now, Counsel.

Kindly answer, Ms. Gina. *Hindi ninyo ba naisip humingi ng OR?*

Ms. Acosta. Your Honor, as I browse or as I verify *po ng mga acknowledgment receipts na binigay sa akin ni SO Officer Colonel Lachica, naitanong ko po siya kasi may napansin po ako na ang iba walang date, walang name na may pirma. Ang sagot naman sa akin ni SO Officer, "Ma'am Gina, kung ano man ang binigay ko sa iyo na mga dokumento, iyon na iyon kasi ang mga transaksyon o ang operation doon is very sensitive information. Sensitive information po, Ma'am Gina, at saka confidential po ito kaya kung ano ang binigay ko sa iyo na mga acknowledgment receipt, iyon po iyon."*

The Presiding Officer. *Iyon na iyon.*

Mr. Ligutan. Okay.

The Presiding Officer. With the indulgence of Counsel, *matapos kayong makatanggap ng AOM galing sa COA-ICFAO na naghahanap ng resibo, hindi ninyo hiningan pa rin si Colonel Lachica ng resibo? Hindi po ba iyon ang nilalaman ng isa sa mga AOM na kailangan iyong purchase of food and medical supplies may resibo? So, ano pong ginawa ninyo noon?*

Ms. Acosta. *Nag-reply po ang opisina, Your Honor, pero hindi ko po masyadong mai-relay kung ano iyong exact reply namin for that, Your Honor.*

The Presiding Officer. *Nag-reply po pero bugso dahil sa kadahilanan sa rason ng AOM, hindi po kayo nanghingi pa rin ng OR kay Colonel Lachica sa security officer? Sumagot na lang po iyong opisina?*

Ms. Acosta. *Sumagot po ang opisina, Your Honor, at saka, Your Honor, ang sabi po—kasi po iyong transaction na po na iyon, Your Honor, is confidential po, Your Honor.*

The Presiding Officer. *Kaya nga sapat na sa inyo iyong sagot ni Colonel Lachica noong sinabi niyang "iyon na iyon, confidential iyan", tinanggap ninyo po iyon?*

Ms. Acosta. *Opo, Your Honor.*

The Presiding Officer. Attorney Ligutan.

Mr. Ligutan. Okay, let me proceed. Ma'am, *ano iyong sinasabi ni Colonel Lachica, "iyon na iyon," hindi mo—you don't second guess iyong ano iyong binibigay na information sa iyo? Ito iyong tanong now. Hindi po ba obligasyon mo as the SDO na alamin at protektahan ang bawat sentimo ng pera ng taong bayan?*

Manifestation, when asked that question, the witness *uminom po ng tubig.* Put that into record.

Ms. Acosta. Your Honor, *nag-verify po ako kay Security Officer Colonel Lachica, Your Honor. Iyon po ang pamamaraan ko, iyon po ang way ko na para malaman ko kung iyon po ang pinagastahan ni Colonel Lachica, Your Honor, kasi siya po ang may alam, siya po ang nag-implement sa mga projects po sa confidential operation or activities, Your Honor.*

Mr. Ligutan. Same kind of answer, Your Honor, please. Manifestation.

Now, let us go to 4.15 of the Joint Circular 2015-01. *Sinasabi dito—show that on the screen please, 4.15 Joint Circular. Sinasabi dito na "the disbursements of confidential funds must be supported by a certification of the accountable officer." Naalala ninyo po ba, hindi po ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Okay. Of course, you will confirm *na ikaw nag-certify* for all the disbursements *ng OVP confidential funds last quarter ng 2022 at saka three quarters ng 2023, first three quarters.* To aid you, I'm showing you a certification of the Office of the Vice President, notarized January 16, 2023, marked as Exhibit P-I-6-a.

Show that certification, please.

The name Gina F. Acosta appears on this document as the special disbursing officer and a signature appears over this name. This is your signature, correct?

Ms. Acosta. Yes, *pirma ko po ito*, Your Honor.

Mr. Ligutan. Yes. Certification, this time, notarized on March 30, 2023, marked as Exhibit P-I-6-b. The name Gina F. Acosta appears on this document as SDO. *May pirma sa ibabaw ng pangalan na iyan. Pirma mo iyan, hindi po ba?*

The Presiding Officer. Assisting Counsel may approach.

Mr. Ligutan. It's another document po, ma'am—*pangalawang* certification.

Ms. Acosta. Okay.

Mr. Ligutan. Okay. *Pirma mo iyan, hindi po ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. Now, showing you another certification, notarized this time, July 11, 2023, marked as Exhibit P-I-6-c, *may pangalang Gina F. Acosta, may pirma sa ibabaw ng pangalang iyan. Pirma mo iyan, hindi po ba?*

Ms. Acosta. *Opo*, Your Honor.

Mr. Ligutan. This time, another certification dated, notarized rather, October 9, 2023, Exhibit P-I-6-d, *may pangalang Gina F. Acosta, may pirma sa ibabaw ng pangalang iyan. Pirma mo iyan, hindi po ba?*

Ms. Acosta. *Pirma ko po ito*, Your Honor.

Mr. Ligutan. Now, of course, *sa mga* certifications *na ito, nakasulat diyan sa letter (b)* the expenses were incurred in connection with the agency's intelligence and/or confidential operations and activities, *nasa letter (b). Iyon iyong sinertify (certify) mo, hindi po ba?*

Ms. Acosta. *Opo*, Your Honor.

Mr. Ligutan. *Sa letter F naman, naka-certify diyan* that the expenditures are necessary and utilized for legal purposes. *Tama po ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Now, *ito na iyong tanong, ma'am: Kung nag-certify ka, under oath, na ligal iyong paggamit, iyong personal mong basehan sa pagse-certify na tama iyong pinaggamitan ng pera ng taong-bayan, iyong basehan mo, hindi personal sa nakita, narinig, naramdaman, kung hindi ano lang iyong isinumite sa iyo ni Colonel Lachica, hindi po ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. *Iyon.* But based on this certification, *sinasabi mo, hindi na-misappropriate iyong confidential funds, hindi po ba?*

Ms. Acosta. *Kasi lahat po iyong—*

Mr. Ligutan. Ma'am, "yes" or "no" po. Yes or no? *Sinasabi ninyo certification, hindi na-misappropriate ng Office of the Vice President iyong confidential funds.*

Ms. Acosta. *Opo.*

Mr. Ligutan. Okay. And since you are the SDO, *alam mo lahat ng records at saka mga disbursements, hindi po ba?*

Ms. Acosta. *Galing po kay Sir Lachica lahat*, Your Honor.

Mr. Ligutan. Now, as an SDO, *alam mo rin saan, paano at kanino dinesbers* (disburse) ang confidential funds, *tama po ba?*

Ms. Acosta. Based *po sa mga documents na ibinigay sa akin ng security officer*, Your Honor.

Mr. Ligutan. All right. There you go again.

Now, let's go to an acknowledgment receipt, P-I-8-1382—one P-I-8-1382. *Sinasabi diyan na isang Antonio Pagong received P100,000 for the payment of purchase of information. Antonio Pagong. Ito iyong tanong now: Do you have personal knowledge—sa Tagalog, nakita mo ba si Colonel Lachica na nagbigay ng P100,000 in confidential funds sa isang Antonio Pagong? Yes or no? Nakita mo ba si Colonel Lachica nagbigay ng perang iyan, P100,000 to Antonio Pagong? Nakita mo ba siya o hindi?*

Ms. Acosta. *Hindi ko siya Nakita*, Your Honor, *kasi wala po ako doon sa ground. Siya po ang nag-implement* Your Honor.

Mr. Ligutan. Let us go to P-I-8-1620. Timon Andrew Pusa. Timon Andrew Pusa, *nakatanggap ng P100,000— rental of transport vehicle. Same sagot ba? Hindi ninyo nakita si Colonel Lachica nagbigay ng pera, —hindi po P1,000—P100,000 sa isang Timon Andrew Pusa? Hindi po ba?*

Ms. Acosta. *Hindi ko po— kasi wala ako doon*, Your Honor. *Gi-disburse ko lang sa kaniya ang pera. Siya po ang nag-implement.*

Mr. Ligutan. *Wala kayo doon. Crystal clear.*

Let us go to P-I-8-1069. P-I-8-1069. This time, *isang Don Piang. Don Piang received P250,000 for the payment of rental transport. Hindi ninyo rin nakita si Lachica na nagbigay ng P250,000 sa isang Don Piang kasi wala ka doon? Hindi po ba?*

Ms. Acosta. *Opo*, Your Honor.

Mr. Ligutan. Yes. Let us go to P-I-8-2229. *Kung may Andy Lim, not to be outdone, mayroon ding Shane Ngitngit. Translation: “ngitngit” Bisaya for “madilim.” Nakita ninyo ba si Lachica na nagbigay ng P150,000 sa isang Shane Ngitngit o hindi mo rin nakita? Hindi po ba?*

Ms. Acosta. *Hindi ko nakita*, Your Honor, *kasi wala po ako doon sa ground. Si Colonel Lachica po na security officer, siya po ang nag-implement*, Your Honor.

Mr. Ligutan. *“Hindi ko nakita kasi wala ako sa ground.” Good.*

Now last, *may isang acknowledgment receipt P-I-8-612. I should be careful. Ibinigay sa isang Xuniso Belat. Xuniso Belat. Tanong: Nakita mo ba si Colonel Lachica na nagbigay ng P100,000 in confidential funds sa isang Xuniso Belat?*

Ms. Acosta. *Hindi ko po nakita*, Your Honor, *kasi wala po ako sa ground. Siya po ang security officer namin, Your Honor at siya po ang nag-implement ng mga confidential operations*, Your Honor.

Mr. Ligutan. Yes. Therefore, Madam, *sino po kung mayroon man, ang nag-verify na totoo, saktong, legal lahat ng ginawa ni Colonel Lachica?*

Ms. Acosta. *Nag-verify po ako sa kaniya*, Your Honor. *Tinanong ko po siya, Your Honor, tapos iyon ang sagot niya, Your Honor, “Ma’am Gina, iyong mga dokumento na ibinigay ko sa iyo, iyan po ang mga bale, Ma’am, resibo na magpapatunay na nagamit po ang pera ng confidential fund. At saka, Ma’am Gina, wala po kayo— those are sensitive matters; sensitive operation po, Ma’am Gina, confidential po iyon.”*

Mr. Ligutan. Okay, let me continue. So therefore, Madam Witness, in verifying *kung tama iyong sinasabi ni Colonel Lachica, sa pagbe-verify na iyan—sa dinami-dami ng tao sa buong mundo, iyong tinanong mo pa rin to verify is the same person— Colonel Lachica? Tama po ba? Hindi mo rin— nalibog na pod ka?*

Ms. Acosta. *Opo.*

Mr. Ligutan. I will move on.

Ms. Acosta. *Taas man gud ang—*

Mr. Ligutan. I will move on, Your Honor. Now, *sinabi mo*, you all rely on Colonel Lachica. *Hindi mo alam...hindi mo nakita na ibinigay ni Colonel Lachica iyong pera sa mga recipients? Tama po ba? Wala ring official receipts? Hindi po ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. So, aside sa *sinasabi ni Colonel Lachica sa iyo, hindi mo mapapatunayan—* Ma'am, careful, *ha.* I'm being careful with this question because this is really important. Aside po sa *sinasabi ni Colonel Lachica sa iyo, hindi mo ngayon malalaman kung totoo ba na binigay ni Colonel Lachica iyong pera*, for example, *kay Xuniso Belat? Hindi po ba?*

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. Your Honor, these are really important questions.

The Presiding Officer. Witness will answer.

Ms. Acosta. *Na-interrupt ako.*

Mr. Ligutan. Yes po, Ma'am?

Ms. Acosta. *Ulitin— Na-interrupt po ako, Your Honor, sorry.*

Mr. Ligutan. I will. *Sinabi mo hindi mo nakita si Colonel Lachica na nagbigay ng pera sa mga recipients, okay? Sinabi mo rin na iyong pagbe-verify mo is through Colonel Lachica himself.*

Ito iyong tanong now: Aside sa sinabi ni Colonel Lachica sa iyo, hindi mo mabe-verify; hindi mo malalaman kung totoo bang binigay ni Colonel Lachica iyong pera sa sinasabi niyang recipients? Hindi po ba?

Ms. Acosta. *Nag-verify po ako kay Colonel Lachica, Your Honor.*

Mr. Ligutan. *Iyon.*

Ms. Acosta. *Nag-rely po ako sa kanya, Your Honor, kasi siya po ang nag-implement ng mga confidential activities, Your Honor.*

Mr. Ligutan. Manifestation: Another canned answer to a separate question. I will move on, Your Honor. Therefore—

Mr. Bacquel. Motion to strike, Your Honor, impertinent.

Mr. Ligutan. Your Honor, that's a manifestation. That is allowed, Your Honor.

Mr. Bacquel. Impertinent, Your Honor.

The Presiding Officer. Let it stay in the record, Counsel.

Mr. Ligutan. Now, so, Madam, *hindi mo rin malalaman na binigay pala ni Colonel Lachica iyong confidential funds sa mga kaibigan at kaalyado ng Vice President, hindi po ba? Hindi mo rin malalaman iyan, hindi po ba? Yes or no? Nag-rely ka lang kay Colonel Lachica?*

Ms. Acosta. *Nag-rely po ako kay Colonel Lachica at saka sa mga dokumento po, Your Honor, na binigay niya sa akin.*

Mr. Ligutan. Okay. Next question. *Hindi mo rin malalaman, Ma'am, na, in fact, binigay ni Colonel Lachica iyong half a billion pesos sa Vice President herself, hindi mo rin malalaman iyan?*

Mr. Bacquel. Misleading, Your Honor.

Mr. Ligutan. Your Honor—

The Presiding Officer. No basis, Counsel. No basis, Counsel. Kindly reform.

Mr. Ligutan. Okay. *Hindi mo rin malalaman, Ma'am, na iyong P125 million nagamit, not in 11 days, but in just 24 hours? Hindi mo rin malalaman iyan?*

Mr. Bacquel. Same objection, Your Honor.

The Presiding Officer. Counsel, I'll allow you to proceed on a short leash on this line of questioning.

Mr. Ligutan. That's the last point, Your Honor, for this.

The Presiding Officer. Ma'am Gina, *simple po iyang tanong. Dahil inasahan ninyo lang po iyang binigay sa inyong dokumento at sinabi ni Colonel Lachica, kung totoo man o hindi iyang sinabi niya sa inyo at dokumento niyang binigay, wala po kayong personal na kaalaman dahil hindi ninyo po nakitang ginawa niya talaga iyon? Tama po?*

Ms. Acosta. *Tama po kay siya po ang nag-implement. Siya po ang nasa ground. Siya po ang nag-implement ng mga activities regarding confidential, Your Honor.*

The Presiding Officer. So, lahat—

Ms. Acosta. *At siya po ang itinalaga. Mayroon po siyang order, Your Honor, as security officer, Your Honor. Siya po ang may access, Your Honor, when it comes to security, Your Honor. Siya ang may training; siya ang expert, Your Honor. Ako, nag-disburse lang ako sa iyaha, Your Honor.*

The Presiding Officer. So, *kung totoo man nga po o hindi, kung tama man o mali, inasahan ninyo lamang iyang mga binigay sa inyong dokumento ni Colonel Lachica dahil siya iyang authorized, siya iyang sinabihan na gawin iyan, at siya iyang may training?*

Ms. Acosta. *Opo, Your Honor.*

The Presiding Officer. *Wala kang personal knowledge na binigay nga doon sa mga taong iyon iyang pera o ginastos talaga para sa supplies? Wala po? Hindi po kayo iyang gumawa noon?*

Ms. Acosta. *Wala, Your Honor, kay wala ko didto.*

The Presiding Officer. Okay.

Mr. Ligutan. Last stretch of my questions, Madam Witness, last stretch. 6.2.3.1 of the joint circular; I repeat, 6.2.3.1, *sinasabi ng joint circular na ikaw ay required to submit a "liquidation report," tama po ba?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Ligutan. In fact, *nag-submit ka ng liquidation report dated January 10, 2023, okay, for the Office of the Vice President sa paggamit ng confidential funds, hindi po ba?*

Ms. Acosta. *Opo, Your Honor. Excuse me, Your Honor. Puwede mangayo kopya?*

Mr. Ligutan. Yes, Ma'am, we will do that.

Ms. Acosta. *Salamat po. Okay po, Your Honor.*

Mr. Ligutan. So, *sine-certify mo na lahat ng mga data nasa reports are correct, hindi po ba?*

Ms. Acosta. *Sine-certify ko po ang kung ano ang nakalagay dito sa liquidation report na ito.*

Mr. Ligutan. Now—*opo, Ma'am. I'm showing you now liquidation reports for the first, second, third quarters ng 2022. May same certification, hindi po ba, sa naging liquidation report ninyo sa 2022— ano iyang mga nakasaad diyan, hindi po ba? Same ano iyang sine-certify ninyo sa liquidation report, hindi po ba?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Ligutan. In fact, *iyong pangalang Sara Z. Duterte as Vice President, makikita natin sa liquidation report for the fourth quarter of 2022—diretso na—first, second, third quarter ng 2023, at saka may pirma sa pangalang Sara Z. Duterte sa mga dokumentong iyan. Iyong mga pirmang ito— mga pirma ng ating Vice President, hindi po ba?*

Ms. Acosta. *Pirma po niya ito, Your Honor.*

Mr. Ligutan. So, *sinasabi ninyo na iyang Vice President din nag-certify sa lahat ng liquidation reports, pinakita sa iyo, in total half a billion pesos— P500 million. Sinasabi din ng Vice President na tama iyang pinaggamitan ng confidential funds, hindi po ba?*

Ms. Acosta. *Ang sinertipay (certify) po niya dito, Your Honor, is "Purpose of CASH ADVANCE duly accomplished."*

Mr. Ligutan. Yes. Now, I will repeat this question. So, *kung nakapag-certify kayo na duly accomplished iyong purposes ng cash advance, iyong certification, base lang iyan sa ano iyong sinabi ni Colonel Lachica sa inyo? Hindi po ba?*

Ms. Acosta. *Base po ito sa mga documents po na binigay sa akin ni Security Officer Colonel Lachica, Your Honor.*

Mr. Ligutan. Okay. So, now, *hindi mo sinasabi, iyon iyong sinabi ni Colonel Lachica, but this time, sinasabi mo, this time around, base naman sa mga dokumentong binigay sa iyo ni Colonel Lachica, hindi po ba?*

Mr. Bacquel. Asked and answered, Your Honor.

The Presiding Officer. I'll allow the witness to answer. I'm sorry, Counsel.

Mr. Ligutan. *Hindi po ba?*

Ms. Acosta. *Ano po iyon? Sorry po ha, sorry, sorry.*

Mr. Ligutan. Okay. *Ito na lang, ito na lang. Nakapag-certify ka—this time, Defense, I'm asking about the liquidation report. Nakapag-certify ka sa liquidation report na tama iyong pinaggamitan kahit hindi mo nakita ng personal paano ginamit ni Colonel Lachica iyong pera, hindi po ba?*

Mr. Bacquel. Misleading, Your Honor.

Mr. Ligutan. No. The basis—

Mr. Bacquel. The liquidation report contains a different statement, Your Honor. It's box A—"Certified: Correctness of the above data," Your Honor. So, the factual premise of the question is incorrect, Your Honor.

Mr. Ligutan. That's a liquidation report, Your Honor.

The Presiding Officer. Let me, Counsel.

Ma'am Gina, *noong sinabi ninyo pong "certified correct" iyong nakapaloob sa liquidation report, ang pinagbasehan ninyo pa rin ay iyong impormasyong binigay sa inyo ni Colonel Lachica at hindi po personal ninyong kaalaman na doon nga nagastos iyong pera?*

Ms. Acosta. Excuse me, Your Honor, ha.

The Presiding Officer. Yes, Ma'am.

Ms. Acosta. Your Honor, *ang gi-certify ko dito sa liquidation report, Your Honor, is the correctness of the above data, Your Honor. Ito lang pong period covered, na tama, Your Honor; ito pong particulars, na tama, Your Honor; entity, Your Honor, tama po, Your Honor; ang amount, tama po, Your Honor.*

Kani po ang ako—ang buot ipasabot na gi-certify nako ang above data. Kana po nga data, Your Honor.

The Presiding Officer. *At nakalagay po nga sa data na iyan kung paano ginastos iyong confidential fund? Liquidation report nga po eh, hindi po ba?*

Ms. Acosta. Above data po kasi, Your Honor.

The Presiding Officer. *Kaya nga po, above—nakalagay po sa above data—*

Can you scroll up, please?

Mr. Ligutan. Scroll up, please, the whole document.

The Presiding Officer. Can you zoom in on the particulars?

Mr. Ligutan. Zoom, please.

The Presiding Officer. *Iyan po. Iyong liquidation nga po, sinertify (certify) ninyo na iyong liquidation ay tama?*

Ms. Acosta. *Opo, Your Honor.*

The Presiding Officer. *At ang basehan ng liquidation, iyong mga dokumentong ibinigay ng security officer na si Colonel Lachica?*

Ms. Acosta. *Opo, Your Honor.*

The Presiding Officer. *Hindi po iyong personal ninyong kaalaman na doon nga nagastos iyon kundi base sa kaniyang ibinigay sa inyong impormasyon at mga dokumento?*

Ms. Acosta. *Opo, Your Honor, kasi wala po ako doon. Siya po ang nag-implement, Your Honor, nag-disburse lang po ako ng pera sa kaniya, Your Honor.*

The Presiding Officer. Okay.

Mr. Ligutan. Let me continue, Your Honor?

The Presiding Officer. Counsel, you may think of other questions already because I think the witness said that about 20 times already that she was not there.

Mr. Ligutan. Yes, sir. We'll go to—this time, Your Honor, *hindi na* liquidation report. Last point, accomplishment report *naman*, or let's not belabor the point, Ma'am. I'll go directly to the point.

Accomplishment report for 2022, three quarters, *sinasabi ninyo na tama iyong pinaggamitan ng pera ng taong-bayan— P500 million, kalahating bilyon, pera ng taong-bayan — sinertify ninyo na tama iyong pinaggamitan kahit wala kayong personal na alam kung totoo bang tama iyong pinaggamitan ni Colonel Lachica kasi nga nag-rely lang kayo sa sinabi ni Colonel Lachica sa inyo, hindi po ba?*

Ms. Acosta. *Nag-rely po ako—*

Mr. Bacquel. Misleading, Your Honor. The witness testified that she relied on the statements and the documents, not merely the—

Mr. Ligutan. That is my question, Your Honor, if she relied on the—

The Presiding Officer. That was the question, Counsel, if she relied on the documents given and the statements made by Colonel Lachica, which she said several times *na confidential iyon, hindi ba?* You may repeat it again, Ma'am Gina—your answer.

Ms. Acosta. *Nag-rely po ako— nakagawa po ako ng utilization report based po sa pagpangutana, pag-verify ko kay Security Officer Lachica na, "Kana, Ma'am Gina, sensitive information nga og confidential information,"— og mga dokumento nga gihapag, nga gikan kay security officer Colonel Lachica nani sa akoo.*

The Presiding Officer. Ma'am, curious *lang ako. May sinabi po ba siyang, "Confidential 'to, iyan lang ang puwedeng ibigay ko sa 'yo, wala na akong puwedeng ibigay sa iyong iba," may ganoon po ba?*

Ms. Acosta. *Ang sinabi po niya, Your Honor, those transactions po or those operations po are sensitive and confidential in nature, Your Honor.*

The Presiding Officer. *Kaya wala na po siyang ibibigay na iba pang dokumento maliban diyan?*

Ms. Acosta. *O, iyong mga dokumento na ibinigay niya sa akin, Your Honor.*

The Presiding Officer. *Iyon lang iyon, hanggang doon lang?*

Ms. Acosta. *Hanggang doon lang po, Your Honor.*

The Presiding Officer. Okay.

Mr. Ligutan. Five questions.

The Presiding Officer. You promised before lunch, Counsel.

Mr. Ligutan. Yes, Your Honor, five questions.

Hindi po ba, Madam Witness, pinalabas ninyo na kayo mismo ang naghanda ng physical and financial plans para sa confidential funds ng Office of the Vice President for 2022 at saka 2023, gayon ang totoo si Colonel Lachica lamang pala ang nagsabi kung anong dapat isulat sa mga planong iyan sa plan?

Ms. Acosta. Sorry, Your Honor, I'm confused with your question, Your Honor.

Mr. Ligutan. Your Honor, I will not repeat the question. I'll move on to the next.

The Presiding Officer. No, I think that that's already on the record, Counsel.

Mr. Ligutan. Yes.

The Presiding Officer. Ma'am Gina, *sinagot ninyo na po dati iyan—*

Mr. Ligutan. *Opo.*

The Presiding Officer. — *na iyong physical and financial plan na hinanda ninyo, kumuha kayo ng input kay Colonel Lachica, hindi po ba?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Ligutan. *Hindi po ba't sa mga liquidation report, accomplishment report pinapalabas ninyo na tama iyong pinaggamitan ng confidential funds pero iyong totoo, wala kayong personal na kaalaman kung sino ang mga tunay na tumanggap ng pera, hindi po ba?*

Mr. Bacquel. Misleading, Your Honor.

Mr. Ligutan. I think that ...

The Presiding Officer. I think he's just about to be done, Counsel. Let him summarize his points.

Mr. Ligutan. Yes. *Hindi po ba, Madam Witness? Wala kayong personal na alam na tama iyong pinaggamitan ni Colonel Lachica...*

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. ...despite the report, certification *kasi nga sabi ninyo nag-rely lang kayo kay Colonel Lachica and this time you added, sa mga dokumento, hindi po ba? Yes or no?*

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. I think asked and answered. Last two questions, Your Honor.

The Presiding Officer. Again, for emphasis, I think the witness will confirm that.

Tama po, Ma'am Gina?

Ms. Acosta. *Nag-rely po ako sa sinabi ni Colonel Lachica at sa mga document na ibinigay niya sa akin, Your Honor, after po na-implement po niya sa ground ang mga confidential activities po, Your Honor.*

The Presiding Officer. *At wala po kayo sa ground?*

Ms. Acosta. Yes po, *wala po ako doon, Your Honor.*

Mr. Ligutan. *Hindi po ba dahil sa mga pinaggagawa ninyo sa Office of the Vice President, nawalan ng paraan ang taong-bayan na pagtumain—pagtumain pagtugmain. I repeat, hindi ba dahil sa pinaggagawa ninyo, nawalan ng paraan ang taong-bayan na pagtugmain on one hand ang paper trail o mga—*

Ms. Acosta. I cannot understand—

Mr. Ligutan. Not yet, ma'am. *O mga dokumento, at the same—on the other hand, ang totoong money trail. Wala na pong paraan ang taong-bayan na pagtugmain iyong paper trail 'tsaka money trail. Hindi po ba? Yes or no?*

Mr. Bacquel. Argumentative and speculative, Your Honor.

The Presiding Officer. If you know, Ma'am Gina, *kung alam ninyo po, sabihin ninyo po, alam ninyo. Kung hindi ninyo alam, sabihin ninyo rin pong hindi ninyo alam iyong...*

Mr. Ligutan. I will repeat the question, if you may, Your Honor.

The Presiding Officer. I think she understood the question, but difficult to answer on her part, Counsel, but I don't want to put words in the mouth of the witness.

Mr. Ligutan. Yes, Your Honor.

Ms. Acosta. *Malalim po ang Tagalog ni Atty. Lagutan po.*

Mr. Ligutan. Ma'am, it's Ligutan, okay lang.

Ms. Acosta. Sorry po, I'm sorry. I'm sorry, Your Honor.

Mr. Ligutan. It's okay po.

Ms. Acosta. I'm sorry po.

Mr. Ligutan. It's okay, ma'am. Okay.

Ms. Acosta. Sorry po. Sorry po.

Mr. Ligutan. It's okay. ma'am.

Ma'am, I will repeat the question. *Kasi nga sinasabi ninyo wala naman kayong kinalaman sa paano ginamit ni Colonel Lachica iyong pera, pero sine-certify ninyo na tama iyong pinaggamitan ng pera. So, hindi po ba, iyong taong-bayan nawalan ng pamamaraan na pagtugmain, i-match iyong mga dokumento, paper trail tawag natin diyan on one hand, 'tsaka iyong aktwal na paggamit ng pera o money trail? Napakaklaro na po—nawalan po ang taong-bayan ng pamamaraan na pagtugmain iyong dalawang bagay na iyan. Yes or no?*

Mr. Bacquel. Speculative, Your Honor.

Ms. Acosta. *Wala po.*

Mr. Ligutan. It's not. It's not.

Ms. Acosta. *Wala. Wala. Wala—nawalan ang—ano iyon?*

The Presiding Officer. *Hindi nawalan.*

Ms. Acosta. *Hindi nawalan, Your Honor, kasi puwede po nilang tanungin ang aming security officer na siya po ang nagpapatupad ng mga—*

Mr. Ligutan. Okay now, last question.

The Presiding Officer. *Darating po tayo doon, ma'am. I assure you, I hope we will arrive at that point.*

Mr. Ligutan. Ma'am.

Ms. Acosta. *Po.*

Mr. Ligutan. *Hindi ba ito isang [stricken off] or tahasang panlilinlang sa pera ng taong-bayan?*

Mr. Bacquel. Argumentative, Your Honor. Argumentative, Your Honor.

The Presiding Officer. Counsel, it's not only argumentative, but kindly use appropriate language as well inside this court.

Mr. Bacquel. Your Honor, may we move to strike that last question, Your Honor, for being impertinent, Your Honor.

Mr. Ligutan. It's very much pertinent.

The Presiding Officer. I tend to agree with Counsel for the Respondent. The word is stricken from the record. It did not come from the witness' mouth. Kindly reform a bit, Counsel. I think I know where you're getting at too. And you've said it anyway—

Mr. Ligutan. That will be all for the prosecution for this witness, Your Honor.

The Presiding Officer stated that the cross-examination of the witness would be conducted after the lunch break.

SUSPENSION OF TRIAL

With the permission of the Body, the trial was suspended.

It was 11:45 a.m.

RESUMPTION OF TRIAL

At 12:31 p.m., the trial was resumed.

REMINDER OF THE PRESIDING OFFICER

Presiding Officer Escudero reminded Ms. Acosta that she would testify under the same oath administered during the proceedings of the previous week.

CROSS EXAMINATION BY THE COUNSEL FOR THE RESPONDENT

Attorney Lindon Bacquel conducted the cross-examination of the witness, Ms. Acosta, as follows:

Mr. Bacquel. Good morning—Good afternoon, Ma'am Gina.

Ms. Acosta. Good afternoon *po*.

Mr. Bacquel. You mentioned that you were the Special Disbursing Officer of Davao City. And this is from 2018 to 2022, correct?

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. And the mayor then was Vice President Sara Duterte?

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. When you were SDO of Davao City, your duty pertained to disbursing confidential funds appropriated for Davao City, correct?

Ms. Acosta. *Hindi ko ma-klaro ang—*

Mr. Bacquel. *Noon pong SDO kayo, ang duty n'yo po ay ang pag-disburse ng confidential funds para sa Davao City, tama po?*

Ms. Acosta. *Tama po.*

Mr. Bacquel. And you also prepared and submitted liquidation documents during that time, correct *po*?

Ms. Acosta. Yes, *tama po*.

Mr. Bacquel. And when you were SDO of Davao City, there is no Audit Observation Memorandum issued by the Commission on Audit against you, correct?

Ms. Acosta. *Wala po.*

Mr. Bacquel. And when you were SDO of Davao City, there is no Audit Observation Memorandum issued by the Commission on Audit against then Mayor Sara Duterte, correct?

Ms. Acosta. *Wala po.*

Mr. Bacquel. There is likewise no Notice of Suspension issued by the Commission on Audit against you, correct, when you were—

Ms. Acosta. *Wala.*

Mr. Bacquel. And there is no Notice of Suspension issued against then-Mayor Sara Duterte, correct?

Ms. Acosta. *Wala po.*

Mr. Bacquel. *Wala rin pong Notice of Disallowance...*

Ms. Acosta. *Wala po.*

Mr. Bacquel. *...laban sa inyo, wala po?*

Ms. Acosta. *Wala po, Your Honor.*

Mr. Bacquel. *Wala rin pong Notice of Disallowance laban kay dating Mayor Sara Duterte, tama po?*

Ms. Acosta. *Tama po. Wala.*

Mr. Bacquel. And the Commission on Audit did not reopen any audit for confidential funds of Davao City, correct?

Ms. Acosta. Correct *po*.

Mr. Ligutan. Your Honor, sorry, but I have to...

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. ...interject continuing objection to these series of questions. May I state my ground?

The Presiding Officer. I think I know what your ground is, Counsel, but you may do so, for the record.

Mr. Ligutan. Your Honor, magically, now this witness remembers what happened in Davao. *Kanina*, when the Prosecution was asking her, *sabi niya hindi niya maalala—*

Mr. Bacquel. Counsel is testifying, Your Honor.

Mr. Ligutan. Wait. Incompetent. Put on record.

Mr. Bacquel. Counsel is testifying, Your Honor. May we move to strike, Your Honor?

The Presiding Officer. Then the objection is overruled, Counsel.

Counsel may proceed.

Mr. Bacquel. And when you were SDO of Davao City, it is the Joint Circular which is already in effect, correct?

Ms. Acosta. Yes *po*.

Mr. Bacquel. And you are aware of the requirements of the Joint Circular regarding your functions as the Special Disbursing Officer?

Ms. Acosta. Yes, Your Honor.

Mr. Bacquel. You mentioned also that you were the Special Disbursing Officer of the Office of the Vice President for its confidential funds from Quarter Four of 2022 until Quarter Three of 2023, correct?

Ms. Acosta. Correct *po*, Your Honor.

Mr. Bacquel. And similar with your tasks in Davao City, you also prepare the documents for liquidation?

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. Okay. As SDO, you were not part of any confidential operations of the agency, correct?

Ms. Acosta. Yes, Your Honor.

Mr. Bacquel. You have no experience in confidential operations?

Ms. Acosta. *Wala po akong experience niyan*, Your Honor.

Mr. Bacquel. You do not know how confidential operations are done on the ground?

Ms. Acosta. *Wala po akong alam niyan, Your Honor.*

Mr. Bacquel. You have not undergone any formal training regarding confidential operations or activities?

Ms. Acosta. *Wala po akong training na ganiyan.*

Mr. Bacquel. You are not aware of the operational security required when it comes to confidential operations, correct?

Ms. Acosta. Yes po.

Mr. Bacquel. *Wala po kayong military background?*

Ms. Acosta. *Wala po akong—*

Mr. Bacquel. *May law enforcement background po ba kayo?*

Ms. Acosta. *Ano po iyon?*

Mr. Bacquel. Do you have a law enforcement background?

Ms. Acosta. *Wala po ako niyan, Your Honor.*

Mr. Bacquel. When you were SDO of the OVP, you have no authority to access security information, correct?

Ms. Acosta. Yes po.

Mr. Bacquel. *Wala rin po kayong authority to access classified information?*

Ms. Acosta. Yes po.

Mr. Bacquel. You were not also given any security clearance in the OVP?

Ms. Acosta. *Wala.*

Mr. Bacquel. And because you were already the SDO of Davao City, you remain familiar with the Joint Circular, correct?

Ms. Acosta. Familiar po a little, Your Honor.

Mr. Bacquel. The Joint Circular does not require you, an SDO, to be personally involved in the agency's confidential operations.

Mr. Ligutan. That's misleading, Your Honor. It's clearly in the Joint Circular that that's the job. That's the job of an SDO to disburse confidential funds.

Mr. Bacquel. Your Honor, the Prosecution also inquired as to the contents of the Joint Circular.

Mr. Ligutan. That's why—

Mr. Bacquel. I am examining the witness, Your Honor, if there is such a provision.

Mr. Ligutan. The question is misleading.

The Presiding Officer. Witness may answer if she knows. I will allow it, Counsel.

Gina, kindly answer the question.

Mr. Bacquel. The Joint Circular does not require you, an SDO, to be personally involved in the agency's confidential operations on the ground?

Ms. Acosta. *Wala pong—wala pong sinabi ang Circular, Your Honor.*

Mr. Bacquel. *Wala rin po bang sinabi sa Joint Circular na kailangan may experience kayo pagdating sa confidential operations?*

Ms. Acosta. *Wala din, Your Honor, sa akong pagka-understand.*

Mr. Bacquel. *May nakalagay rin po ba sa Joint Circular na kailangan may kaalaman kayo kung papaano ginagawa ang confidential activities?*

Ms. Acosta. *Wala ako naka-encounter ana, Your Honor, sa JC.*

Mr. Bacquel. *Nire-require din po ba kayo ng Joint Circular na mag-undergo ng pormal na training para sa confidential activities?*

Ms. Acosta. *Wala, Your Honor.*

Mr. Bacquel. *Nire-require po ba kayo ng Joint Circular na dapat ang SDO mayroong military background?*

Ms. Acosta. *Wala ako kabasa ana, Your Honor.*

Mr. Bacquel. *Wala rin ang law enforcement background, wala ring ganoong requirement?*

Ms. Acosta. *Wala, Your Honor.*

Mr. Bacquel. *Nire-require ba ng Joint Circular na ang isang Special Disbursing Officer, kailangan may authority to access security information?*

Ms. Acosta. *Wala, Your Honor.*

Mr. Bacquel. *Nire-require din po ba ng Joint Circular na ang SDO kailangan may security clearance?*

Ms. Acosta. *Wala, Your Honor.*

Mr. Bacquel. *Nire-require din po ba ng Joint Circular na pinagbabawal kayo mag-rely sa documents provided by a Security Officer?*

Ms. Acosta. *Ano iyon, Your Honor?*

Mr. Bacquel. *May pagbabawal po ba sa Joint Circular na bawal mag-rely sa documents na pino-provide ng security officer?*

Ms. Acosta. *Wala, Your Honor.*

Mr. Bacquel. *The requirement of the Joint Circular is that a Special Disbursing Officer must be a regular or permanent employee of the agency, correct?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Bacquel. *And you are a regular and permanent employee of the Office of the Vice President. Tama po ba?*

Ms. Acosta. *Tama po, Your Honor. Coterminous po, Your Honor.*

Mr. Bacquel. *And the Joint Circular provides that it is the SO who must have access to security information. Tama po?*

Ms. Acosta. *Tama po, Your Honor.*

Mr. Bacquel. *And ito rin po ba ang dahilan kaya ang SO, ang Security Officer, ang kailangan mag-implement ng confidential operations ng ahensiya?*

Ms. Acosta. *Sa akong pagsabot sa JC, Your Honor.*

Mr. Bacquel. *At ang Security Officer po, ang nag-designate dito ang head of agency, tama?*

Ms. Acosta. *Yes, ang head of agency, Your Honor.*

Mr. Bacquel. *Okay. Iyon din po ba ang dahilan kaya kinailangan ninyo ang inputs o guidance ng Security Officer in preparing the Physical and Financial Plan?*

Ms. Acosta. *Yes, Your Honor, kasi wala po akong alam sa mga operations sa ground.*

Mr. Bacquel. *The OVP submitted a Physical and Financial Plan to the Department of Budget and Management, correct?*

Ms. Acosta. *Opo.*

Mr. Bacquel. *For 2022?*

Ms. Acosta. *Nag-submit—*

Mr. Bacquel. Are you aware?

Ms. Acosta. *Nag-submit po ang OVP ng Physical and Financial Plan na gi-require po sa DBM.*

Mr. Bacquel. *At ito pong Physical and Financial Plan is in support of the OVP's request for confidential funds noong 2022?*

Ms. Acosta. *Opo.*

Mr. Bacquel. And the PFP, which the OVP submitted to the Department of Budget and Management, is also based on the Good Governance Program of the OVP, correct?

Ms. Acosta. *Wala ko ka-gets sa question nimo, Your Honor.*

Mr. Bacquel. *Iyon po bang Physical and Financial Plan na isinabmit (submit) ng OVP sa Department of Budget and Management, nakabase rin po ba sa Good Governance Program ng OVP?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Bacquel. *At matapos pong i-submit ang nasabing Physical and Financial Plan, tama po ba na the Department of Budget and Management recommended the approval of the confidential funds to the Office of the President?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Bacquel. And the Office of the President, through the Executive Secretary, approved the Office of the Vice President's request for confidential funds?

Mr. Ligutan. Your Honor, at this juncture, I'll be objecting, if I may state the ground, Your Honor, please.

The Presiding Officer. Proceed, Counsel.

Mr. Ligutan. The ground being there is a distinction between, on one hand, things that may be covered on cross on a non-adverse witness. *Totoo po sa 2019 Rules, nakasulat diyan, in-amend ng Korte Suprema, na pupwedeng magtanong on cross iyong isang partido so long as in—on any relevant matter.*

Pero po, Your Honor, in the 2019 Rules, hindi po nabago iyong rule po that is applicable to adverse witness. Nakasulat po sa rule sa adverse witness, pupuwede lang mag-cross sa mga bagay na napag-usapan during redirect.

Uulitin ko po, mas pinalawig na ng 2019 Rules iyong cross-examination for ordinary witnesses, pero sa adverse witness, which we have now, hindi po pinalawig ng Supreme Court. Dapat po may relevance sa naging pag-uusap ng abogado at saka testigo during redirect. Now, that's the point.

Now, as to who approved the confidential funds, Your Honor, it was not touched upon. It was not touched upon during the direct examination. *Uulitin ko, 2019 Rules pinalawig iyong cross for ordinary witness, pero mas istrikto pa rin iyong rule applicable when it comes to adverse witness.*

Objection, Your Honor, that's not allowed during cross of an adverse witness. Basis: *Rules of Court.*

Mr. Bacquel. Your Honor, may I respond?

The Presiding Officer. Of course, you may.

Mr. Bacquel. Your Honor, my inquiry is based on the Physical and Financial Plan for 2022, which was the subject matter of the inquiry in their examination-in-chief, Your Honor. So, the inquiry is necessitated to give this—to inform this Honorable Court of the entire picture.

The Presiding Officer. The Court will, for the meantime, overrule the objection also because this has been established. But I would like to remind Counsel that this has been established already by the previous witnesses, Counsel, that the confidential funds was by virtue of a SARO, and it is indeed in the document that you are referring to.

Overruled. Witness may answer.

Mr. Bacquel. May I repeat my question, Your Honor?

The Office of the President, through the Executive Secretary, approved the Office of the Vice President's request for confidential funds, correct?

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. And this approval is why the OVP was allocated confidential funds for 2022? *Ito po iyong dahilan kung bakit nagkaroon ng confidential funds ang OVP noong taong 2022?*

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. So, you also prepared the Physical and Financial Plan for 2023. This physical and financial plan was based on the General Appropriations Act, correct?

Ms. Acosta. Yes *po*, GAA *po*.

Mr. Bacquel. And the General Appropriations Act for 2023 allocates confidential funds for the Office of the Vice President?

Ms. Acosta. *Opo*.

Mr. Bacquel. The General Appropriations Act contains a line item allocation for OVP's Socio-Economic Program Delivery, correct?

Ms. Acosta. Yes *po*.

Mr. Bacquel. The General Appropriations Act for 2023 was approved by the Senate and the House of Representatives, correct?

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. Which is why, for the Physical and Financial plan for 2023, you indicated "Socio-Economic Program Delivery."

Ms. Acosta. Yes *po*.

Mr. Bacquel. And in this Physical and Financial Plan, the Vice President is a signatory, correct?

Ms. Acosta. *Isa po siya sa nagpirma*, Your Honor.

Mr. Bacquel. You mentioned that you prepared the documents for liquidation. You also executed certifications, correct?

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. The form of the certification is provided by the Joint Circular, correct?

Ms. Acosta. Yes *po*.

Mr. Bacquel. In fact, the form of said certification is contained in Annex B of the Joint Circular.

Ms. Acosta. *Ano po iyon*, Your Honor?

Mr. Bacquel. May the witness be confronted with Defense Exhibit D-I-136, Annex B?

The Presiding Officer. Assisting Counsels may approach.

Mr. Bacquel. Which is the template of the certification, Your Honor, attached in the Joint Circular. *Tama po*, Ma'am, 'no, na ang form ng certification ay nakalagay sa Annex B ng Joint Circular?

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. And the Joint Circular states or provides the contents that must appear in the certification, *tama po?*

Ms. Acosta. This one?

Mr. Bacquel. *Opo. Nakalagay po diyan kung anong mga alegasyon na dapat naka-indicate sa certification, tama po?*

Ms. Acosta. *Tama po.*

Mr. Bacquel. The Joint Circular does not give you any authority to alter the form it has given for the certification, *tama po?*

Ms. Acosta. Yes, *tama po.*

Mr. Bacquel. And when you were preparing the liquidation documents, *nabanggit n'yo rin po kanina na* you had the opportunity to examine the documents, which is submitted to the COA, correct?

Ms. Acosta. *Ano po iyon?*

Mr. Bacquel. *Noon pong nagpe-prepare kayo ng liquidation, nabanggit n'yo rin po kanina na nakita n'yo po iyong mga documents na kailangan, tama po, sa liquidation?*

Ms. Acosta. *Opo.*

Mr. Bacquel. Okay. And *nakita mo rin po doon iyong liquidation report, tama po, 'yung mga liquidation reports kada quarter.*

Ms. Acosta. *Opo.*

Mr. Bacquel. And you were able to see that the Vice President certified that the cash advance for confidential funds was duly accomplished, *tama po ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Bacquel. *Noong habang nagli-liquidate din po kayo para sa confidential funds kada quarter, you are—you remained in coordination with the Security Officer?*

Ms. Acosta. *Opo.*

Mr. Bacquel. And *ito pong coordination na ito pertains—*

Mr. Ligutan. Your Honor, can I object?

The Presiding Officer. Yes, what is the basis of the objection, Counsel?

Mr. Ligutan. That's not even a question; there was no question. The Counsel is just stating a statement and waiting for the witness to confirm. The witness ... testify and there is no question.

Mr. Bacquel. Your Honor, what is the basis of the—

Mr. Ligutan. There's no question. Ask the question.

Mr. Bacquel. There is a question, Your Honor.

Mr. Ligutan. There's no question on record. You are just stating a statement and waiting for this witness to say, "Yes, *tama po.*"

Mr. Bacquel. That was a question.

The Presiding Officer. Actually, it assumes that the question was in *seriatim*, I presume.

Mr. Bacquel. Yes, Your Honor.

The Presiding Officer. *Iniisa-isa niya*, all based on the ...

Mr. Bacquel. In declarative form, Your Honor.

The Presiding Officer. ... all based on the documents submitted.

Mr. Ligutan. A question in declarative form?

The Presiding Officer. And when asked if he is correct in saying that, it is in the form of a question, Counsel. But if he—The Court will allow it and will gladly welcome a continuing objection along these lines of questioning, Counsel, to be placed on record.

Mr. Ligutan. Yes, Your Honor.

The Presiding Officer. Counsel may proceed.

Mr. Bacquel. This coordination with the Security Officer pertains to how confidential funds was implemented on the ground, correct?

Ms. Acosta. *Opo.*

Mr. Bacquel. In fact, you mentioned earlier that the Security Officer also showed you a Fund Utilization Report. This is how—you know how the confidential funds was implemented on the ground. *Ito po iyong dahilan kung bakit alam ninyo kung papaano in-implement ang confidential funds on the ground, tama po ba?*

Ms. Acosta. *Tama po.*

Mr. Bacquel. And after your examination of the documents, as you mentioned earlier, and your coordination with the Security Officer, you were satisfied that the confidential funds were used in connection with confidential activities?

Ms. Acosta. Yes po, based sa mga documents na isinabmit (submit) niya sa akin.

Mr. Bacquel. During the examination-in-chief of the Prosecution, you also testified that the Security Officer did not sign the Physical and Financial Plan, the Accomplishment Report, the Liquidation Report, and the certifications despite the inputs and guidance provided. *Pero tama po ba na wala sa Joint Circular, nagbabawal from getting inputs and guidance from a Security Officer in preparation for—of the Physical and Financial Plan?*

Ms. Acosta. *Sa pagkaintindi ko po, wala pong pagbabawal doon.*

Mr. Bacquel. *Tama rin po ba na walang nakalagay sa Joint Circular na bawal kumuha ng input o guidance from the Security Officer sa pag-prepare ng Accomplishment Report?*

Ms. Acosta. *Tama po.*

Mr. Bacquel. *Tama rin po ba na walang bawal sa Joint Circular kumuha ng input o guidance from a Security Officer in preparation of the Liquidation Report?*

Ms. Acosta. *Tama po.*

Mr. Bacquel. *Ganoon din po sa certification, wala pong pagbabawal na kumuha ng inputs and guidance from a Security Officer, tama po?*

Ms. Acosta. *Tama po.*

Mr. Bacquel. *...Wala rin pong nakalagay sa joint circular na kailangang nakapirma ang security officer, tama po?*

Ms. Acosta. *Tama po.*

Mr. Bacquel. The forms provided by the joint circular is that these documents must be signed by an accountable officer, *tama po?*

Ms. Acosta. *Ano po iyon na document?*

Mr. Bacquel. *Iyon pong mga—iyon pong physical and financial plan, accomplishment report, liquidation report, and certification ang nire-require po ng JC, ng joint circular, ay dapat nakalagda rito ang isang accountable officer, tama po?*

Ms. Acosta. *Tama po.*

Mr. Bacquel. *At kayo po iyon. Kayo po ay accountable officer, tama po?*

Ms. Acosta. *Tama po.*

Mr. Bacquel. You were also asked about acknowledgment receipts. You examined the acknowledgment receipts, correct?

Ms. Acosta. Yes po.

Mr. Bacquel. And you tallied the amount.

Ms. Acosta. Yes, Your Honor.

Mr. Bacquel. And you checked the purpose for which confidential funds were used in the acknowledgment receipts.

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. *Tsinek* (check) *mo rin po ba* iyang date?

Ms. Acosta. *Nadaan ko po ang mga date*, Your Honor.

Mr. Bacquel. And *nakita ninyo po na ang confidential funds ay ginamit* within the period required.

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. And satisfied *po kayo na ito ay ginamit sa confidential expenses, tama po?*

Ms. Acosta. *Tama po*, Your Honor.

Mr. Bacquel. *May nabanggit din po kayong accomplishment report* during the examination of the Prosecution. The joint circular provided a template for the accomplishment report, correct?

Ms. Acosta. *Opo*.

Mr. Bacquel. The joint circular also provided that the accomplishment report must contain the specific detail by object, correct *po?*

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. By object, *tama po ba na naintindihan ninyo ito* as by category. *Tama po?*

Ms. Acosta. *Ano ibig sabihin po?*

Mr. Bacquel. *Sinabi sa joint circular na by object ang nakalagay dapat sa accomplishment report. Tama po ba na ang pagkakaintindi ninyo rito ng by object is by category?*

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. Since you prepared the liquidation documents, the Office of the Vice President submitted these documents to the Commission on Audit, correct?

Ms. Acosta. *Opo*.

Mr. Bacquel. So, you complied with the joint circular's requirement that the liquidation of confidential funds must be done within 30 days from the close of each quarter. *Tama po?*

Ms. Acosta. *Tama po iyon*.

Mr. Bacquel. So, for quarter one *po ng 2023, tama po ba na ang OVP nag-submit ng liquidation documents sa Commission on Audit noong April 13, 2023?*

Ms. Acosta. *Ano po iyang—ano po iyang quarter*, Your Honor?

Mr. Bacquel. May we ask that the witness be confronted with D-I-29-OVP.

The Presiding Officer. That's for the first quarter, Counsel.

Mr. Bacquel. Yes, Your Honor. The document is a cover letter addressed to Chairman Cordoba, Your Honor.

The Presiding Officer. Assisting Counsels may approach.

Mr. Bacquel. Do you confirm, Ma'am, that there is a stamp received by the Commission on Audit-ICFAO on April 13, 2023?

Ms. Acosta. *Opo*, Your Honor.

Mr. Bacquel. For quarter two of 2023, Ma'am Gina, you said, the OVP submitted the liquidation documents *sa Commission on Audit on July 13, 2023. Naalala ninyo po ba kung tama ito?*

Ms. Acosta. *Nag-submit kami*, Your Honor, *pero hindi ko ma-confirm kung wala akong document*, Your Honor.

Mr. Bacquel. For the record, Your Honor, we would confront the witness with Defense Exhibit D-I-54-OVP. It's a cover—same cover letter, Your Honor.

The Presiding Officer. For the second quarter.

Mr. Bacquel. For the second quarter.

Ms. Acosta. Yes, Your Honor, *nag-submit po kami last July 13, 2023.*

Mr. Bacquel. And *nakalagay po diyan na—tama po, may stamp “Received” ang COA-ICFAO noong July 13, 2023, correct?*

Ms. Acosta. *Mayroon po, Your Honor.*

Mr. Bacquel. *Para sa quarter three naman po na liquidation, maaalala ninyo po ba kung kailan ninyo sinabmit (submit)? Maaalala ninyo po ba kung tama ang date na October 26, 2023?*

For the record, Your Honor, we would want to confront the witness with D-I-78-OVP, Your Honor, which is the same letter for quarter three of 2023.

Ms. Acosta. Yes *po, napa-receive po sa Commission on Audit-Intelligence and Confidential Fund on October 26, 2023.*

Mr. Bacquel. Do you confirm, Ma’am Gina, that there is a stamp “received by the COA-ICFAO on October 26, 2023”?

Ms. Acosta. Yes, Your Honor, *mayroon.*

Mr. Bacquel. And you are aware that for quarters one to three, this would be disallowed in a Notice of Disallowance No. 2026-001, correct?

Ms. Acosta. *Mayroon pong disallowance, Your Honor.*

Mr. Bacquel. May we confront the witness with Defense’ Exhibit D-I-9, which is the Notice of Disallowance No. 2026-001, Your Honor?

Tama po, ito po iyong disallowance ng quarter one to three of 2023.

Ms. Acosta. *Opo, Your Honor, ito po.*

Mr. Bacquel. *At ito pong Notice of Disallowance na ito, tama po ba na in-issue ito ng Commission on Audit noong March 31, 2026?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Bacquel. *At in-issue po ito ng Commission on Audit habang ang Committee on Justice ay nagko-conduct ng mini trial against the Vice President, correct?*

Mr. Ligutan. Objection, Your Honor, relevance. What’s the relevance? Not touched upon. Meaning, the use of the term “mini trial,” that’s one. Number two, not touched upon during direct examination. The rules are more restrictive when it comes to cross examination of an adverse witness. Exhibit A is the line of question of the Defense.

The Presiding Officer. Kindly reform, Counsel. I will not sustain the objection, neither will I overrule it. Just kindly reform, Counsel, so that we can proceed.

Mr. Bacquel. We will reform, Your Honor.

This Notice of Disallowance was issued by the Commission on Audit while the Committee on Justice is conducting its hearing for impeachment, correct?

Ms. Acosta. *Hindi ko maalala, Your Honor.*

Mr. Ligutan. *Hindi niya maalala.*

Mr. Bacquel. *Pero na-receive ninyo po itong Notice of Disallowance noong April 8, 2026, tama po ba?*

Ms. Acosta. Yes, Your Honor, *may signature po ako dito na na-receive ko po April 8, 2026.*

Mr. Bacquel. So, *na-receive ninyo po iyong Notice of Disallowance No. 2026-001 on April 8, 2026 kahit na-submit ninyo na iyong liquidation noong 2023 pa lamang, tama?*

Ms. Acosta. Yes, Your Honor.

Mr. Bacquel. *At it’s in the middle of the Committee on Justice hearings, correct?*

Ms. Acosta. *Hindi kasi ako nakikinig sa TV at saka sa radio, Your Honor, kung mga about balita-balita, Your Honor, kaya dili ko makasabi, makasagot.*

Mr. Bacquel. Ma'am Gina, *kaya po ba paulit-ulit ang sagot n'yo kanina kasi paulit-ulit lang rin po iyong tanong sa inyo?*

Mr. Ligutan. Objection, that's vague. Vague.

Mr. Bacquel. I withdraw, Your Honor.

The Presiding Officer. Withdraw.

Mr. Ligutan. Vague. Nice try. Vague.

Mr. Bacquel. I withdraw the question, Your Honor.

Mr. Ligutan. You should.

The Presiding Officer. So withdrawn.

Mr. Ligutan. Nice try.

Mr. Bacquel. No further—

Mr. Ligutan. O, no further.

Mr. Bacquel. No further questions, Your Honor.

REDIRECT EXAMINATION OF THE WITNESS

Mr. Ligutan. All right. A few re-direct. With the court's permission, Your Honor, please.

The Presiding Officer. With the emphasis on "a few," Counsel.

Mr. Ligutan. Yes.

The Presiding Officer. You may proceed, Counsel.

Mr. Ligutan. Madam Witness, *kanina-noong nakaraang araw* while iyong Prosecution that is presenting you as a hostile, or as we are accustomed to, hostile witness, *sinabi ninyo* in several instances, *hindi mo masagot iyong mga katanungan nangyari 2022* and prior to that *kasi sabi mo hindi mo na maalaala*. You remember having said that, *hindi po ba?*

Ms. Acosta. *Iyong mga tanong mo po*, Your Honor, *na sinabi mo iyong—*

Mr. Ligutan. *Sa Davao.*

Ms. Acosta. *Oo, sa Davao na 460, hindi ko maalala iyon*, Your Honor.

Mr. Ligutan. Yes. Okay, *hindi mo maalaala.*

Ms. Acosta. Opo.

Mr. Ligutan. *Pero*, Ma'am, *kanina dire-diretso iyong Defense tinatanong ka*, "Nakatanggap ba ng Audit Observation Memorandum?" "Natanggap ba ng Notice of Disallowance during your stint sa Davao City?" *Diretso ang sabi mo*, "wala." Biglang *naalaala ninyo—*

Mr. Bacquel. No question, Your Honor.

Mr. Ligutan. Wait, wait, wait, I'm testing the credibility of the witness.

The Presiding Officer. Kindly allow Counsel to finish.

Mr. Ligutan. Now, *bigla mong naalala*, 2019, 2018 to 2022. *Alam ninyo po ba iyong tinatawag nating selective memory*, Ma'am? Do you know that, yes or no?

Mr. Bacquel. Objection, Your Honor, argumentative.

Mr. Ligutan. Your Honor, I am confronting this witness with a fact that everybody heard. When I was asking questions, *sabi niya*, conveniently, "*Hindi ko maalala.*" But when propounded with similar line of questioning as to events that happened in Davao City while she was an SDO, she said, "Yes, I can remember." *Diretsahang iyong sagot*. That is why I am asking that question as basis. *Alam ninyo po ba kung anong ibig sabihin ng selective memory?*

The Presiding Officer. I will allow it, if the witness knows.

Ms. Acosta. *Ang ako-ang—ang ibig sabihin po kanina, Your Honor, ang amount po na sinabi n'yo na "Iyon po ba, iyan ba ang halaga ng confidential funds ng Davao City?" Iyon po, nag-concentrate ako, ang intindi ko, ang pagsabot ko, Your Honor, is iyang the amount po. Hindi ko po maalala kung iyon ba talaga, Your Honor.*

Mr. Ligutan. That is your answer, Ma'am. Ma'am, let us proceed po. Let us proceed, Ma'am.

The Presiding Officer. That is the witness's answer.

Mr. Ligutan. Yes, yes, yes, Mr. Presiding Officer.

You know, *ako*, for two days *medyo nahihirapan sa mga tanong ko kasi sabi mo hindi ka nakakaintindi masyado ng Tagalog. Naalala n'yo po ba iyang mga episodes na iyan* during the last hearing and this morning? Yes or no, *naalala mo?*

Ms. Acosta. *Ano iyon, Sir?*

Mr. Ligutan. *Iyang mga hindi mo maintindihan iyang mga tanong ko na tinatagalog ko. Hindi ba, naalala mo, nasabi mo "Hindi ko maintindihan"?* That is why we had to go through the trouble of trying to interpret, translate into Bisaya, Tagalog, and English. *Naalala po ba iyang mga pangyayari na iyan sa loob ng courtroom, hindi po ba?* Yes or no?

Ms. Acosta. Yes, *naalala ko*, Your Honor, *iyang mga Tagalog na lalum—na deeper...*

Mr. Ligutan. Yes, deeper.

Ms. Acosta. ...*dili kaayo ko kasabot*, Your Honor.

Mr. Ligutan. Yes. *Hindi ko maintindihan iyang "sabot."*

Now, but when it was the Defense asking you, rapid, rapid, *rapido—*

Mr. Bacquel. What is the question, Your Honor?

Mr. Ligutan. Wait, wait, not yet. Hold your horses.

Mr. Bacquel. Counsel is testifying, Your Honor.

Mr. Ligutan. Relax, relax, *hindi pa tapos*. I am just laying the premise, relax. *Mabilis—*

Mr. Bacquel. There is no question, Your Honor.

Mr. Ligutan. Wait, wait. *Mabilis*, Tagalog, all of a sudden, *nasasagot mo. Walang translation, nasasagot mo nang diretso*. Explain?

Ms. Acosta. Your Honor, *nangutana man ko—nag-ask ko sa iyo*, Your Honor, *kay dili ko—ang question niya, naay mga question niya*, Your Honor, *na nagpa-repeat ko kay dili kaayo ko kasabot, dili kaayo ko ka-understand*, Your Honor.

Mr. Ligutan. All right.

Ms. Acosta. *Nangutana ko sa kay Attorney—nagpa-repeat ko po ng question sa kay Attorney kung ano po iyon kay hindi ko talaga na maintindihan or makuha ang iyang pangutana*, Your Honor.

Mr. Ligutan. Your Honor, I will not belabor the point, the records are crystal clear.

Mr. Bacquel. Move to strike.

Mr. Ligutan. What? I move on to the next question.

Mr. Bacquel. Move to strike, Your Honor. Counsel is testifying.

Mr. Ligutan. That is a manifestation and—

The Presiding Officer. Motion denied. Motion denied, Counsel.

I mean...

Mr. Ligutan. Yes. You should do your own—

The Presiding Officer. ...let it stay at the record.

Mr. Ligutan. Okay, now, Madam witness, *sinabi mo kanina, si ano naman, si Colonel Lachica naman iyong may access to security information kaya siya iyong may alam sa confidential activities. At saka naalala mong sinabi mo iyan kanina, hindi po ba?*

Ms. Acosta. *Oo, opo.*

Mr. Ligutan. Now, and then *kinonfront* (confront) *kayo ng Counsel for the Defense, eh wala naman daw sa joint circular na iyong trabaho ng special disbursing officer ay dapat alam iyong mga confidential activities. Iyon iyong sagot ninyo, hindi po ba?*

Ms. Acosta. *Nalibog—Ay, confused.*

Mr. Ligutan. Confused *ka. Ayan, iyon na iyon, Ma'am, nako-confuse po kayo kung ako iyong nagtatanong.*

Ms. Acosta. *Usabon, Your Honor. Repeat, Your Honor.*

Mr. Ligutan. I am just repeating these series of questions that were propounded to you by the Defense. *Uulitin ko. I will indulge, Ma'am. Sinabi n'yo kanina, si Colonel Lachica iyong nag-i-implement ng confidential activities kasi siya iyong may access to security information. Iyon, napakaklaro niyan, Ma'am, ha.*

Ms. Acosta. *Opo .*

Mr. Ligutan. *Naaalala ninyo po ba iyan?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Ligutan. Now, *sinabi n'yo rin, kinonfirm* (confirm) *n'yo iyong observation ng defense Counsel na on the other hand, iyong special disbursing officer naman, wala namang nakasulat diyan na may alam about confidential activities. Naaalala n'yo po ba iyan, iyong sagot n'yo?*

Ms. Acosta. *Yes, naaalala ko iyong sagot ko kay Attorney—*

Mr. Ligutan. *Ano iyong pangalan ng attorney, Ma'am, if you know?*

Ms. Acosta. *Attorney Lindon.*

Mr. Ligutan. *Ma'am, kailan ninyo nakausap si Attorney Lindon before this testimony?*

Ms. Acosta. *Attorney Lindon.*

Mr. Bacquel. *Not part of the cross, Your Honor.*

Mr. Ligutan. *It is. It is. It is.*

Ma'am, kailan ninyo last nakausap—

The Presiding Officer. Counsel may impeach the witness. She has been declared a hostile witness.

Mr. Ligutan. *Ma'am, look at me, Ma'am, tingin ka sa akin.*

Ms. Acosta. *Yes, Sir.*

Mr. Ligutan. *Ma'am, you are under oath.*

Ms. Acosta. *Opo.*

Mr. Ligutan. *Yes, Ma'am. Kailan mo last nakausap si Attorney Lindon?*

Ms. Acosta. *Last week. Last, last week pa.*

Mr. Ligutan. *Last week, or last, last week?*

Ms. Acosta. *Last, last week. Kasi last week, umuwi ako ng Davao to visit my husband.*

Mr. Ligutan. *And then—so doon mo nakita si Attorney Lindon?*

Ms. Acosta. *No.*

Mr. Ligutan. Last, last week?

Ms. Acosta. Last, last week *pa, before* I go—

Mr. Ligutan. *Ano ang napag-usapan ninyo, Ma'am?* We're interested. *Ano ang pinag-usapan ninyo?*

Ms. Acosta. *Na ano lang, natanong ko lang sa kaniya kung unsa ang—*what is the proceedings *kung sa Senate hearing.*

Mr. Ligutan. *Uh-huh.* And then, *ano ang sinabi ni Attorney Lindon?*

Ms. Acosta. *"Ganito, tatanungin po kayo, Ma'am, tapos, blah blah blah ...[garbled] murag..."*

Mr. Ligutan. And then, *sinasabi niya ano iyong mga tanong na itatanong sa iyo, hindi po ba?*

Ms. Acosta. *Wala, wala siyang sinasabi,* Your Honor.

Mr. Ligutan. Okay, anyways. Now, let's go back. *Sinasabi mo security officer may access to security information.*

Now, if the tech is ready, can we show 3.27—3.27 ng Joint Circular? But this is rather brief, I will read for everyone's consumption. "Security officer refers to a personnel who by reason of his duty or employment has been officially designated as such to have access to security information."

Tanong: Nasa 3.27 ba iyong nabanggit kong provision, iyong terminong confidential activities? Yes or no? Wala?

Ma'am, *wala, hindi ba?* Yes or no?

Ms. Acosta. Confidential.

Mr. Ligutan. *Wala po ba, security information?*

Ma'am, I will confront you with the document.

Please, Attorney Mark.

Wala diyan, hindi po ba?

Ms. Acosta. *Wala po dito.*

Mr. Ligutan. Now, *pero* on the other hand, 3.29, this time, the definition of a special disbursing officer, *nakasulat diyan*: "refers to head of agency or a regular employee designated by the head of agency to be in charge of making disbursements of CF."

Ano ang ibig sabihin ng CF?

Ms. Acosta. *Kuwan—Sa akong—in my own understanding,* Your Honor, CF means confidential fund.

Mr. Ligutan. Agree. *Sa dalawang provision na iyan, napakaklaro, trabaho mo as a special disbursing officer iyong pag-disburse ng confidential funds; wala sa security officer's definition. Ni isa, wala diyan nakasulat na trabaho niya, confidential activities, pag-disburse ng confidential activities. Tama po ba?*

Ms. Acosta. *Ako po ang nag-disburse,* Your Honor. *Dili po siya ang nag-disburse. Siya lang po ang nag-implement,* Your Honor.

Mr. Ligutan. Yes, that's your answer.

Now, Ma'am, *sinabi mo kanina na as SDO, hindi naman required na may background in confidential activities, hindi po ba?*

Ms. Acosta. *Opo,* Your Honor.

Mr. Ligutan. *Sinabi din na walang necessary training into confidential activities, hindi po ba?*

Ms. Acosta. *Ano iyon?*

Mr. Ligutan. *Walang training in confidential activities na requirement for confidential—*

I mean, as an SDO, walang requirement na training in confidential activities.

Ms. Acosta. *Wala pong nakabutang dito, Your Honor.*

Mr. Ligutan. Now, I'm just curious, Ma'am. Ma'am, *ano po ba iyong natapos ninyo, Ma'am? Ano iyong college degree ninyo?*

Ms. Acosta. College graduate *po*, Your Honor.

Mr. Ligutan. College graduate. *Anong kurso ninyo?*

Ms. Acosta. Customs Administration, Your Honor.

Mr. Ligutan. Ma'am, *saan kayo nag-aral?*

Ms. Acosta. *Sa Davao po.*

Mr. Ligutan. *Anong school?*

Ms. Acosta. MATS College of Technology.

Mr. Ligutan. Custom—sorry, sorry. Customs Administration?

Ms. Acosta. *Opo*, Your Honor.

Mr. Ligutan. Did you take a licensure exam?

Ms. Acosta. *Wala*, Your Honor.

Mr. Ligutan. ...Ma'am, *sinabi ninyo na wala kayong background sa confidential activities. Hindi po ba?*

Ms. Acosta. Confidential operation *po*, Your Honor.

Mr. Ligutan. Confidential operations. *Iyong tanong is, bakit kaya kayo iyon—kung alam mo lang, ha.* Since *wala kayong alam, iyon iyong pinapakita ninyo sa mundo na wala kayong alam...*

Mr. Bacquel. Misleading, Your Honor.

Mr. Ligutan. ...*bakit ka naging SDO, kung alam mo? Hindi mo rin alam?*

Mr. Bacquel. Misleading, argumentative, Your Honor.

Mr. Ligutan. Your Honor, that's the basis.

The Presiding Officer. Complete the question, Counsel. If I may?

Mr. Ligutan. Yes.

The Presiding Officer. *Kung wala kayong training sa confidential activities, bakit po kayo ang napili bilang SDO para panghawakan ang confidential fund, hindi lamang ng OVP pati ng sa Davao po noon?*

Ms. Acosta. *Hindi ko alam po*, Your Honor, *kung bakit ako po ang kinuha ng Bise Presidente as SDO.*

The Presiding Officer. *Sa OVP at sa City of Davao? Opo, tama?*

Ms. Acosta. *Sa dalawa po*, Your Honor.

Mr. Ligutan. I will ask this question, Your Honor, and there's a basis. *Hindi po ba naging SDO ka because you follow orders blindly?*

Ms. Acosta. *Anong blindly?*

Mr. Bacquel. Objection, Your Honor, argumentative.

Mr. Ligutan. There is basis to that, Your Honor. There is basis to the question.

Mr. Bacquel. It's argumentative, Your Honor.

Mr. Ligutan. *Naging SDO ka...*

The Presiding Officer. Reform, Counsel. It is argumentative.

Mr. Ligutan. *Naging SDO ka kasi sinusunod mo lang lahat ng utos sa iyo, for example, ng Vice President.*

Mr. Bacquel. Same objection, Your Honor.

Mr. Ligutan. I reformed.

The Presiding Officer. We will allow it, Counsel. We will allow it, Counsel.

Kindly answer. *Sa pananaw ninyo po ba iyan ang dahilan kung bakit kayo ang hinirang na SDO noong Davao at noong OVP?*

Ms. Acosta. *Hindi ko alam, Your Honor.*

Mr. Ligutan. *Hindi mo rin alam.*

The Presiding Officer. *Hindi mo masabi na dahil sinusunod mo lahat ng inuutos sa iyo?*

Ms. Acosta. *Hindi ko alam, Your Honor. Basta ako ginagawa ko lang, Your Honor, ang akong pagiging SDO, Your Honor.*

The Presiding Officer. Okay.

Mr. Ligutan. Now, let me continue, Your Honor, please.

The Presiding Officer. Please proceed.

Mr. Ligutan. Madam Witness, *sinabi mo kanina, "Eh, iyong pagre-report ko naman, that was in coordination with the security officer—in coming up with the report in coordination with the security officer." Hindi ba naaalala mo iyong tanong at saka sagot na iyan kanina during cross examination by the defense? Naalala ninyo po ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. *But hindi po ba sinabi ninyo rin—ako iyong nagtatanong, while I was asking you—sinabi naman ni Colonel Lachica na huwag nang magtanong kasi nga paano ini-implement kasi confidential iyong mga ginagawa niya. Hindi ba nasabi ninyo iyan when I was asking you questions?*

Ms. Acosta. *Gi-verify ko po, Your Honor.*

Mr. Ligutan. Okay, we will go into that. Do you want me to repeat the question? *Kanina sinabi mo you came up with the report in coordination with the security officer. You said, yes. But when I was asking you questions, sinabi mo may mga sinabi si Colonel Lachica na, "Huwag mo nang tatanungin iyan kasi that is confidential, that's part of confidential activities." Naalala mo sagot na iyan, hindi ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. *Opo. So therefore, you tried verifying kay Colonel Lachica. Sasabihin niya, "Ma'am Gina, huwag mong itatanong iyan kasi nga confidential." Pero you still submitted certifications na tama iyong pinaggamitan ni Colonel Lachica ng confidential activities?*

Ms. Acosta. *Based po sa...*

Mr. Bacquel. Asked and answered, Your Honor.

The Presiding Officer. Witness may answer. Kindly answer the question, Ma'am Gina. Based sa?

Ms. Acosta. *Dagi base ko din po iyon sa mga documents, Your Honor, na binigay sa akin ni Colonel Lachica after po—matapos po ang pag-implement ng confidential funds, Your Honor.*

Mr. Ligutan. That's right. *Mga documents na sinabi ninyo rin kanina, klarong-klaro, crystal clear, na wala kayong personal knowledge or personal na nalalaman. Hindi po ba?*

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. Your Honor, this is another topic.

The Presiding Officer. On redirect, no. Witness may answer.

Ms. Acosta. *Ano po, Sir?*

The Presiding Officer. *Wala po kayong personal knowledge doon sa mga intelligence, confidential activities na ginawa ni Lachica, binase ninyo lang sa dokumentong binigay niya?*

Ms. Acosta. Yes, Your Honor. *Pag-verify nako sa aya, ibig sabihin pag-verify din, pagpangutana nako sa inyo, Your Honor.*

The Presiding Officer. Okay.

Mr. Ligutan. Let me continue. Now, *sinabi ninyo kanina na wala namang requirement na may alam sa confidential activities, walang training. Pero hindi po ba, Ma'am, na requirement sa SDO iyong pagkakaroon ng common sense?*

Ms. Acosta. *Anong ibig sabihin, Your Honor?*

Mr. Ligutan. *Uy! Napakaklaro ng tanong ko. Ma'am, I will repeat the question: Sinabi ninyo, wala namang requirement na may alam sa confidential activities, walang special training sa confidential activities, pero hindi po ba, bilang SDO, at least naman lang, Ma'am, required na iyong SDO na pinipili ng isang Vice President ay may common sense?*

Ms. Acosta. *May utak po ako, Your Honor.*

Mr. Ligutan. Yes, Ma'am. Yes, Ma'am. Now, *kanina, sinabi rin ng defense counsel na iyong certification that you identified, apat, ay may format naman. May format naman iyong joint circular, hindi po ba?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Ligutan. And then *sinabi ng defense, hindi kayo allowed to modify iyong content ng format na iyan, hindi po ba?*

Mr. Bacquel. Objection, Your Honor.

Mr. Ligutan. I remember you saying that.

The Presiding Officer. What's the objection, Counsel?

Mr. Bacquel. Your Honor, the question is misleading because the question is pertaining to the certification, the template of the certification, Your Honor.

Mr. Ligutan. Exactly. This—If I may respond through the Presiding Officer, exactly.

The Presiding Officer. I remember that too. You mentioned it pertaining to the certification that it cannot be modified in any way, and you referred to Annex B, if I remember correctly.

Mr. Ligutan. Yes, Your Honor.

The Presiding Officer. Witness may answer.

Ms. Acosta. *Nawala ako da.*

Mr. Ligutan. So, *sinabi kanina na since may format iyong certification, hindi pupuwedeng i-modify ng Office of the Vice President iyong format na iyan, hindi po ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. *Opo. Pero, Ma'am, hindi po ba required, at least naman lang, Ma'am, common sense naman lang, na kung sa tingin mo hindi tama iyong nakasulat sa certification, hindi mo pipirmahan. Common sense po ba iyan, hindi ba?*

Mr. Bacquel. Your Honor, we object to the question because the Prosecution is already badgering the witness, Your Honor.

Mr. Ligutan. No, I am not badgering.

The Presiding Officer. Overruled, Counsel.

Mr. Bacquel. It's a demeaning question, Your Honor.

Mr. Ligutan. That's not badgering.

The Presiding Officer. Overruled, Counsel. Witness may answer.

Ma'am Gina, *dahil hindi ninyo puwedeng baguhin, hindi naman nangangahulugan na pag hindi totoo iyong nakalagay doon, hindi ninyo pipirmahan. Pinirmahan ninyo iyan dahil sa paniniwala ninyo totoo iyong nakalagay doon. Sa certification po, ha?*

Ms. Acosta. Yes, *totoo*, Your Honor, *kay mayroon naman po akong mga documents nga gikan—galing kay Colonel Lachica na security officer, after po na-implement niya ang confidential operations, Your Honor. Kaya nagpirma ko, Your Honor, mao to akong isa sa gibasihan o basis, Your Honor.*

Mr. Ligutan. Your Honor, since it has been raised again, I will ask this question again: *Pero paano mo nalaman na na-implement iyong—nang tama through the document? Eh, sinabi mo nga eh, wala kang personal na alam eh. Paano iyon?*

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. Your Honor, it was raised again; that's why I have to repeat that.

The Presiding Officer. Witness may answer.

Mr. Bacquel. Continuing objection on the lines of questioning, Your Honor.

The Presiding Officer. The continuing objection of counsel with respect to this line of questioning is duly noted. Witness may answer.

Mr. Ligutan. Yes, Ma'am.

The Presiding Officer. *Pakisagot po.*

Ms. Acosta. *Gipirmahan ko, I signed the certification, Your Honor, na tama po iyon kasi mayroon akong gibasihan. Mayroon akong basis na galing po sa security officer na si Colonel Lachica na giha—na binigay niya sa akin, Your Honor, after po matapos ang pag-implement ng confidential activities, Your Honor.*

Mr. Ligutan. Okay. Let me proceed, Your Honor.

The Presiding Officer. Proceed, Counsel.

Mr. Ligutan. Now, *iba pa nga iyong pagpipirma eh, Ma'am.* Common sense will tell us we will not raise our hand under oath before a notary public *kung hindi totoo iyong nakasulat sa certification na pinirmahan mo. Agree po ba?*

Ms. Acosta. *Totoo po iyon, Your Honor.*

Mr. Ligutan. *Totoo po, okay. Now, hindi po ba, Ma'am, na iyong certification ninyo, example, January 10, 2024, hindi nga lang pirmado ng isang Gina F. Acosta ito rin ay notarized ng isang notary public. Sinasabi dito, "Subscribed and sworn to before me this January 16."*

So, *sinasabi ninyo po ba, pinirmahan ninyo, on one hand; on the other hand, humarap kayo sa isang notary public, pinirmahan ninyo ang certification na iyan kasi iyon naman iyong format na ibinibigay ng joint circular? Is that what you are telling the public, Ma'am?*

Mr. Bacquel. Argumentative and misleading, Your Honor.

Mr. Ligutan. No, no. There is basis in the question, Your Honor.

The Presiding Officer. Sustained, Counsel. It is misleading.

Mr. Ligutan. Okay. Now, I will move on, Your Honor.

Sinasabi mo na ikaw ay isang accountable officer, hindi po ba?

Ms. Acosta. *Opo, Your Honor.*

Mr. Ligutan. Now, within the four corners of the joint circular, *si Colonel Lachica ba, as a security officer, isang accountable officer?*

Mr. Bacquel. Argumentative, Your Honor, and asked and answered.

The Presiding Officer. Witness will answer. Witness will answer. It is a valid point.

Ms. Acosta. *Dili siya accountable, Your Honor, pero siya ang gihatagan o gihatagan siya ni Vice President Sara Duterte as security officer, Your Honor, na siya ang mag-implement sa mga confidential activities sa grounds, Your Honor, pero ako pa gihapon ang accountable officer, Your Honor.*

Mr. Ligutan. All right. All right.

The Presiding Officer. On this point, Counsel.

Ma'am, *may dokumento po ba kayo na nagpapakita na in-appoint ni Vice President Duterte si Colonel Lachica bilang security officer at na siya ang mag-i-implement ng confidential fund? O verbal lang po iyon?*

Ms. Acosta. *Mayroon pong black and white na papel po, Your Honor.*

The Presiding Officer. *May office order po?*

Ms. Acosta. Yes, office order. *Tama po, Your Honor. Sorry po.*

The Presiding Officer. *May kopya po ba kayo noon?*

Ms. Acosta. *Wala akong kopya, Your Honor, pero sa office, mayroon.*

The Presiding Officer. Okay. Counsel.

Mr. Ligutan. Okay. Let me proceed.

So, between you and Colonel Lachica, Ma'am, *ikaw iyong bonded. Ikaw iyong may fidelity bond. Si Colonel Lachica, wala, hindi po ba?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Ligutan. And then *sa mga dokumentong isinumite ninyo sa COA, ikaw iyong nakikitang nag-disburse ng confidential funds, hindi po ba?*

Ms. Acosta. *Gi-disburse ko po sa security officer na si Colonel Lachica, Your Honor.*

Mr. Ligutan. Let me guess, *kasi siya iyong appointed as...*

Ms. Acosta. Security officer.

Mr. Ligutan. ...security officer *ng opisina ninyo, hindi po ba?*

Ms. Acosta. *Siya po ang gi-appoint, Your Honor.*

Mr. Ligutan. Ma'am, I memorized your answer na.

Mr. Bacquel. Move to strike, Your Honor, impertinent.

Mr. Ligutan. That is a manifestation, Your Honor. The counsel can make a counter-manifestation.

The Presiding Officer. Leave it. Let it be on the record.

Mr. Ligutan. Now, Colonel Lachica is not bonded.

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. Okay. *Hindi po ba, or better yet, alam ninyo po ba, Ms. Gina Acosta, na ikaw iyong maaaring makulong kapag napatunayan sa isang criminal court iyong crime, for example, ng plunder? Alam ninyo iyong gravity ng isang kaso for plunder?*

Mr. Bacquel. Asked and answered, Your Honor, and the Prosecution is badgering the witness, Your Honor.

Mr. Ligutan. Your Honor, I am testing the credibility of this witness.

The Presiding Officer. Overruled, Counsel. Overruled, Counsel.

If the witness knows. She is not a lawyer, and her background is customs administration. If she knows.

Alam ninyo po ba iyong sagot sa tanong ng abogado, Ms. Gina?

Ms. Acosta. *Hindi ko alam ang ibig sabihin ninyo, Your Honor.*

Mr. Ligutan. Okay. *Hindi ninyo alam, Ma'am, na between you and Colonel Lachica, kasi si Colonel Lachica ay wala namang track, walang trace sa mga dokumento, ay ikaw iyong pupuwedeng makulong for misappropriation of confidential funds, hindi si Colonel Lachica?*

The question is so simple. *Alam ninyo po ba iyan?*

Mr. Bacquel. Speculative, Your Honor.

Mr. Ligutan. Your Honor, can I explain? That is not speculative, Your Honor, please. That is not an if-and-when question. There is basis for that.

The Presiding Officer. Witness will answer. If she knows.

Ms. Acosta. Yes, *base sa GC po, ang accountable officer po ay ang SDO. Kaya po, ako ang accountable officer, kaya I see to it na mayroong makuha akong—mayroong documents po na maibigay si Colonel Lachica after po matapos po ang pag-implement ng confidential activities, Your Honor. Kasi ako po ang maggagawa ng liquidation kasi ako man po ang accountable officer, Your Honor.*

Mr. Ligutan. Okay. A few more questions, Your Honor, please.

The Presiding Officer. Proceed, Counsel.

Mr. Ligutan. Now, madam, *paulit-ulit sinasabi ninyo, iyong certification ninyo, liquidation report, base iyan sa dokumento at saka inputs, information, galing mismo sa isang tao—galing sa isang tao lang, si Colonel Lachica, hindi po ba?*

Ms. Acosta. Yes, yes.

Mr. Ligutan. Now, this is now the question now. Ma'am, *alam ninyo po ba iyong nilalaman ng letter (c) ng 6.3 ng joint circular?*

Okay. Do we have that please? Show that.

While it is being shown, *babasahin ko for the public to understand. Trabaho ng isang opisina, head of agency, to institute and maintain sound and effective internal control measures to discourage and prevent irregular, unnecessary, excessive, extravagant, and unconscionable expenditures, as well as promote prudence in the use of government resources. Trabaho po ng isang ahensiya, like the Office of the Vice President, head of agency, na magkaroon ng internal control upang mapigilan iyong irregular, unnecessary, excessive, extravagant.*

Now, ito iyong tanong now. Iyong proseso ninyo, binibigay mo kay Colonel Lachica iyong P125 million; Colonel Lachica iyong nagsasabi ano iyong activities; nagsa-submit siya ng mga dokumento, na inamin ninyo wala kayong personal knowledge, hindi ninyo alam kung totoo ba. Now, nagpapakita ba iyan ng rini-require na internal control sa loob ng Office of the Vice President? Yes or no?

Mr. Bacquel. Argumentative, Your Honor.

Mr. Ligutan. Your Honor, there is basis to the question, Your Honor.

The Presiding Officer. If that's your last question, Counsel, I'll allow it, but actually, it is argumentative.

Mr. Ligutan. Another one, Your Honor. Another one.

The Presiding Officer. Proceed to your last question, Counsel.

Mr. Ligutan. Now. *Ito now. Iyong tinatanong sa iyo, sinasabi mo, "Bini-verify ko naman iyong mga inputs, iyong mga information, iyong mga dokumento galing kay Colonel Lachica." Naalala ninyo po ba iyan?*

Ms. Acosta. Yes, *gi-verify ko kay Security Officer, Your Honor.*

Mr. Ligutan. Now, in verifying information handed to you, delivered to you, documents delivered to you by Colonel Lachica, Ma'am, *hindi po ba kalokohan na iyang bini-verify ninyo ay iyang taong mismong nagbigay ng information?*

Mr. Bacquel. Argumentative, Your Honor.

The Presiding Officer. Counsel—Reform, Counsel. You know what I am referring to.

Mr. Ligutan. That's all for this witness, Your Honor.

The Presiding Officer. Thank you, Attorney Ligutan.

Re-cross, if any?

Mr. Bacquel. Just a few questions, Your Honor.

The Presiding Officer. You may proceed.

Mr. Bacquel. Ma'am, *nag-testify po kayo sa Committee on Good Governance and Public Accountability noong November 25, 2024. Naalala ninyo po ba iyon?*

Ms. Acosta. *Opo, nag-adto ko didto, I was there.*

Mr. Bacquel. *At naalala ninyo rin po ba na sinabi ninyo sa komite kung puwede kang magsalita ng Bisaya? Naalala ninyo po ba?*

Ms. Acosta. *Naalala ko, Your Honor. Naingon—nakasulti pa gani ko na, "Ay, sorry po, nag-binisaya ko. Sorry po na nasagulan nako og Bisaya."*

Mr. Bacquel. *At tama rin po ba na sinabi ng chairperson sa inyo ng komite na kahit may request kayo na mag-Bisaya, still try your best to speak in English or Filipino? Tama po ba?*

Ms. Acosta. Yes, *nag-ingon po ko; nag-sagot ko sa iyaha. I answered na, "Yes, Ma'am, I will try my best."*

Mr. Bacquel. No further questions, Your Honor.

The Presiding Officer. Earlier, several Senator-Judges registered their intention to make some interjections.

Ma'am Gina, *iyong mga Senator-Judge naman po ang magtatanong sa inyo.*

First to register is Senator Pangilinan. You may proceed, Sir, when you're ready and you have two minutes.

Senator-Judge Pangilinan. Thank you, Mr. Presiding Officer.

The Presiding Officer. The sequence so far would be in this order. After Senator Pangilinan, Senator Erwin Tulfo, Senator Raffy, the Senate President, Senator Hontiveros, Senator Lacson, and Senator Villanueva.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. Thank you, Mr. President.

Magandang hapon, Ginang Gina Acosta. Sabi n'yo kanina na kayo ang Disbursing Officer at 'yung paglipat ninyo ng pondo kay Lachica ay na-disburse ninyo ang pondo. Tama?

Ms. Acosta. *Na-disburse ko po kay Colonel Lachica, Your Honor.*

Senator-Judge Pangilinan. Yes. *'Pag na-disburse ba ang pondo, ibig sabihin hindi na ito pondo ng gobyerno? Halimbawa, bumili kayo ng supplies. Na-disburse 'yung supplies—na-disburse 'yung pondo, binayaran 'yung supplies. 'Pag nabayaran na 'yung supplies, hindi na iyon pondo ng gobyerno. Tama? 'Pag nabayaran na 'yung supplies, hindi na pondo ng gobyerno. Tama?*

Ms. Acosta. *Pero ang supplies po, Your Honor, is property na po ng gobyerno.*

Senator-Judge Pangilinan. *Hindi, 'yung pondo ang pinag-uusapan. 'Pag nabayaran na 'yung supplies, 'yung pondo na nailipat, iyon 'yung disbursement. Tama? Ibig sabihin, 'yung paglipat ng pondo kay Lachica, disbursement ba iyon? O 'yung paglipat ng pondo mula kay Lachica sa supplies o medicines, iyon 'yung disbursement?*

Ms. Acosta. *Ang ibig sabihin ko po, 'yung pag-disburse ko ng pera kay Lachica po, iyon po ang disbursement ko, Your Honor.*

Senator-Judge Pangilinan. *Okay. So, 'pag disburse, ibig sabihin hindi na—wala ka nang tungkulin doon sa P125 million na inilipat kasi na-disburse mo na?*

Ms. Acosta. *May tungkulin pa ako, Your Honor, kasi si Lachica po ay siya lang po ang itinalaga na Security Officer, Your Honor, na siya ang mag-implement po, Your Honor, ng mga proyekto o activities po ng confidential, Your Honor, on the ground, kasi siya po ang may eksperto, Your Honor.*

Senator-Judge Pangilinan. *Yes, siya ang eksperto, pero mayroon pa rin kayong tungkulin na tiyakin na tama 'yung disbursement. Tama?*

Ms. Acosta. *Mayroon pa rin akong tungkulin, Your Honor...*

Senator-Judge Pangilinan. *Yes, yes.*

Ms. Acosta. *...kasi ako man ang accountable officer, Your Honor.*

Senator-Judge Pangilinan. *Exactly. So, noong inilipat ninyo kay Lachica, sabi n'yo wala kayong alam doon sa 'pag—confidential fund expenses, hindi ba? Sabi n'yo, "Kasi po various confidential operations, siya po ang eksperto." "Kasi po, siya po ang may alam, Your Honor. Confidential po iyon, Your Honor. Wala akong alam."*

So, paano ninyo babantayan 'yung disbursement kung wala kayong alam doon sa paggastos noong confidential funds? 'Pag sinabi sa inyong—sinabi ninyong wala kayong alam, paano mo matitiyak na 'yung isinabmit (submit) sa iyong affidavit, dahil wala kayong alam, eh malalaman ninyo na tama ang gastos?

Ms. Acosta. *Nag-submit po siya sa akin ng confidential—nag-submit po siya sa akin ng utilization report, Your Honor, at naniwala din ako kay Lachica, Your Honor, kasi siya po ang itinalaga ni Vice President Sara Duterte, Your Honor, as Security Officer at siya po ang aming commanding officer ng VPSPG, at—*

Senator-Judge Pangilinan. *Okay. So, naniwala kayo. Pero kung nakuha 'yung pondo at idineposito sa bangko, personal account, hindi n'yo alam iyon, hindi po ba?*

Ms. Acosta. *Hindi ko nakita, Your Honor.*

Senator-Judge Pangilinan. *Kaya nga. So, hindi ninyo alam kung inilipat sa private account?*

Ms. Acosta. *Hindi ko alam at hindi ko nakita, Your Honor.*

Senator-Judge Pangilinan. *Hindi n'yo rin alam kung talagang tinanggap ni Mary Grace Piattos 'yung pondo personal, hindi n'yo rin alam?*

Ms. Acosta. *Wala ako sa ground, Your Honor.*

Senator-Judge Pangilinan. *Okay. Hindi n'yo rin—Kaya nga. Hindi n'yo rin alam kung inilipat 'yung pondo at ipinamudmod sa kung sino-sino. Tama?*

Ms. Acosta. *Wala po ako sa ground, Your Honor.*

Senator-Judge Pangilinan. *Okay. Last two—wrapping up, Mr. President.*

The Presiding Officer. *Kindly wind up.*

Senator-Judge Pangilinan. *Yes. Iyong nabanggit na P122 million para sa medicines at P112 million para sa supplies—alam ni'o iyon, hindi ba?*

Ms. Acosta. *Alam ko may purchases na ganyan...*

Senator-Judge Pangilinan. *Yes.*

Ms. Acosta. ...pero hindi ko makabisado, Your Honor, ang amount, Your Honor, 'di ko kahinumdum kung pila tanan, Your Honor, or how much, Your Honor, lahat.

Senator-Judge Pangilinan. So, hindi mo—Oo. Hindi mo alam kung magkano doon sa P122 million ang ibinayad sa gamot, pang-tree planting? Hindi n'yo rin alam kung magkano ang ibinayad na supplies para sa Lakbay Aral doon sa confidential funds? Hindi n'yo alam 'yung specifics?

Ms. Acosta. Mayroon pong ibinigay sa akin si Security Officer, Your Honor, 'yung fund utilization report, Your Honor, at saka 'yung acknowledgment receipt, Your Honor.

Senator-Judge Pangilinan. So, magkano ang medicines—magkano ang medicines na napunta sa Lakbay Aral?

Ms. Acosta. Hindi ko kabisado ang amount, Your Honor.

Senator-Judge Pangilinan. Magkano ang medicines na napunta sa tree planting?

Ms. Acosta. Hindi ko na maalala, Your Honor, sa dami-dami po ng acknowledgment receipt, Your Honor, na ibinigay at saka po 'yung sa fund utilization report, Your Honor, na apat po, Your Honor.

Senator-Judge Pangilinan. So, kung hindi ninyo alam kung ito ay nadeposito sa bank account, hindi n'yo rin alam—kung dokumento lang, maaring peke, hindi n'yo rin alam kung talagang napunta sa tree planting o napunta sa Lakbay Aral.

Ms. Acosta. Nagtiwala po ako sa Security Officer, Your Honor, kasi siya po ang gi-appoint ni Vice President, Your Honor, na siya po ang mag-implement ng confidential activities, Your Honor, on the ground kay siya po ang eksperto, Your Honor.

Senator-Judge Pangilinan. Thank you. No further questions for now.

The Presiding Officer. Thank you, Senator-Judge Pangilinan. Senator-Judge Erwin Tulfo, you may proceed when you are ready, Sir. You have two minutes.

QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). Thank you, Mr. Presiding Officer.

Ms. Gina Acosta, bago po kayo naging SDO ni VP Sara, ano po ang trabaho ninyo?

Ms. Acosta. Ano po, sa office po ng Office of the Vice President. Vice Presidential Officer VI po ako, Your Honor.

Senator-Judge Tulfo (E). No. Noong mayor po siya, anong trabaho ninyo? Empleyado na ba kayo ng gobyerno? Paano kayo nagkakilala ng Vice President?

Ms. Acosta. Empleyado na po ako ng gobyerno, Your Honor, doon po sa Sangguniang Panlungsod, Your Honor.

Senator-Judge Tulfo (E). Anong trabaho ninyo sa Sangguniang Panlungsod?

Ms. Acosta. First po is stenographic reporter, Your Honor, and then po nagiging supply officer po, Your Honor.

Senator-Judge Tulfo (E). Anong year po kayo nagkakilala ng Vice President?

Ms. Acosta. Nakilala ko siya, Your Honor, 'yung nagiging vice mayor po siya sa Sangguniang Panlungsod, Your Honor.

Senator-Judge Tulfo (E). Tapos kinuha ka na niya sa kaniyang opisina, ganoon po ba?

Ms. Acosta. Wala po, Your Honor. Nakilala ko lang siya bilang siya po ang Vice Mayor ng Davao City, Your Honor, sa Sangguniang Panlungsod, ang kaniyang opisina, tapos ako doon din nag-opisina sa Sangguniang Panlungsod, Your Honor, sa admin office po.

Senator-Judge Tulfo (E). Kailan po kayo kinuhang SDO sa Office of the Mayor?

Ms. Acosta. *Iyong mayor na po siya—'yung siya na po ang mayor ng Davao City, Your Honor.*

Senator-Judge Tulfo (E). *All right. Alam n'yo po 'yung mga pangalang Mary Grace Piattos, Chippy McDonald, Pusa, Pagong, Ngitngit, Belat, na hindi po totoo ang mga taong ito—na mga totoong pangalan? Alam n'yo po iyon?*

Ms. Acosta. *Na-encounter ko po iyon, Your Honor.*

Senator-Judge Tulfo (E). *Hindi, ang tanong ko po, alam n'yo na hindi po totoo, Chippy, McDonald, hindi ninyo—I am sure.*

Ms. Acosta. *Nag-rely po ako sa—*

Senator-Judge Tulfo (E). *Hindi po, common sense lang po. Pusa, Pagong—may apelyido bang Pusa, Pagong sa Davao?*

Ms. Acosta. *Wala po akong narinig na ganiyan, Your Honor.*

Senator-Judge Tulfo (E). *Pero alam mo na ito po ay hindi totoong mga pangalan?*

Ms. Acosta. *Totoong tao po sila.*

Senator-Judge Tulfo (E). *Totoong tao nga, pero hindi po totoong pangalan?*

Ms. Acosta. *Yes po, Your Honor.*

Senator-Judge Tulfo (E). *Okay. Kung hindi po totoong mga pangalan, bakit wala kayong record nitong mga pangalan ng mga tao na tumanggap ng CIF? Bakit hindi po ninyo ni-remind si Colonel Lachica o maging si OVP na: "Sir, Ma'am, kailangan po natin ng totoong pangalan na recipient ng CIF dahil baka hingin o kailangan ng COA at nasa Joint Memorandum Circular po iyan." You should know that.*

Ms. Acosta. *Sa nabasa ko po sa JC, Your Honor, hindi naman po sinasabi doon na kailangan po ang pangalan ng recipient po, Your Honor.*

Senator-Judge Tulfo (E). *So, sa pagkaintindi mo, hindi kailangan, hindi mo nga nilalagay—Ano po ba 'yung nilalagay sa safe na mga dokumento?*

Ms. Acosta. *Ang anong mga nilalagay—*

Senator-Judge Tulfo (E). *Anong nilalaman? Hindi ba pinapabili po kayo ng safe, hindi po ba? At bumili kayo ng safe, tama po?*

Ms. Acosta. *Mayroon po kaming safe, Your Honor.*

Senator-Judge Tulfo (E). *Okay. Anong nilalagay sa safe? Nakalagay po sa Joint Memorandum Circular po iyon.*

Ms. Acosta. *Mayroon po. Ang nilalagay po doon, 'yung mga documents po.*

Senator-Judge Tulfo (E). *Anong documents po iyon?*

Ms. Acosta. *Iyong CDR po.*

Senator-Judge Tulfo (E). *Okay. Alam mo na si Colonel Lachica ay hindi po maaring mag-disburse dahil wala siyang fidelity bond? Pero dahil utos po sa iyo ni VP Sara, sumunod ka lang, tama po? Instruction po iyon?*

Ms. Acosta. *Siya po ang...*

Senator-Judge Tulfo (E). *Kaya nga po.*

Ms. Acosta. *...gi-designate ni Ma'am VP Sara na Security Officer, Your Honor.*

Senator-Judge Tulfo (E). *Opo, kaya nga po, pero alam n'yo na wala po siyang fidelity bond, and yet, dahil utos po ni VP, dinisbers (disburse) po sa kaniya, tama po?*

Ms. Acosta. *Yes, Your Honor.*

Senator-Judge Tulfo (E). *Okay. So, tanggap mo rin ho ang rason ni Colonel Lachica na, "Huwag ka nang magtanong kasi confidential fund iyan, hindi ka puwedeng magtanong,"*

despite the fact *na ikaw ang Disbursing Officer at baka sumabit ka. So, hindi mo na tinanong, "Ano ba talaga ito, Colonel?" At, "Delikado ito baka sumabit ako." Eh, tama na ba 'yung sagot niya, "Huwag ka na magtanong, tumahimik ka na lang diyan dahil confidential fund iyan," eh ikaw ang Disbursing Officer?*

Ms. Acosta. *Mayroon po siyang binigay sa akin, Your Honor, na fund utilization report po, Your Honor, aside po sa pagbe-verify ko sa kaniya kung ano and bakit ito ang pangalan, Your Honor. Kasi confidential in nature po iyon, Your Honor.*

Senator-Judge Tulfo (E). *So, sa tingin mo, walang mali po sa paggasta ni Colonel Lachica sa intelligence fund—confidential fund ng Office of the Vice President?*

Ms. Acosta. *Sa tingin ko po, wala, kasi nabigyan po niya na ako ng fund utilization report, Your Honor, na binabangga ko po sa object of expenditures na binigay niya sa akin at nagtugma po ang mga amount, Your Honor, at saka 'yung ano pong expenses ang dapat na-incur niya, nandoon po rin, Your Honor.*

Senator-Judge Tulfo (E). One last question, Presiding Officer.

So, ibig mong sabihin, from the very start po, pagbibigay ng mga alyas, walang totoo pangalan, paggasta ng mga klas—sa mga tree planting, okay lang iyon, part po iyon ng confidential fund, sa tingin mo?

Ms. Acosta. *Basta po binigyan po ako—*

Senator-Judge Tulfo (E). *Opo, kaya nga po. Sa tingin mo, 'yung from the very start, 'yung mga Mary Grace Piatos, Pagong, Pusa, normal iyon? At pagkatapos, 'yung paggasta sa mga tree planting, paggasta sa mga, 'ika nga, mga pagbili ng mga silya, lamesa, bahagi ng intelligence fund? As a Disbursing Officer.*

Ms. Acosta. *Marami kasi ang tanong mo, Your Honor.*

Senator-Judge Tulfo (E). *No. Ang tanong ko nga po, tama ba, sa tingin mo, 'yung paggasta ni Colonel Lachica, pagbili ng mga lamesa, upuan, tree planting— confidential fund, Ma'am.— na bahagi ng confidential iyon?*

Ms. Acosta. *Kasi, Your Honor, sa tree planting po, napasok po doon ang confidential fund po during po sa pag-inspect po ng area po kung saan po mag-tree planting ang mga tao po at ang mga partner organization po. So, pag-survey po, iyon po, napasok po ang confidential operation, Your Honor.*

Senator-Judge Tulfo (E). *Pati po pagbili ng lamesa, may confidential din iyon? Kailangan under strict confidence ang pagbili ng lamesa at upuan?*

Ms. Acosta. *Gagamitin po iyon sa operation, Your Honor.*

Senator-Judge Tulfo (E). Okay.

No further questions, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Erwin Tulfo.

Senator-Judge Raffy Tulfo, you may proceed, Sir. You have two minutes.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Ma'am, nakapaniudtu na ka?

Ms. Acosta. Gamay lang, Sir.

Senator-Judge Tulfo (R). Gamay lang. Unsa man imong sud-an?

Ms. Acosta. Wala ko'y gana mokaon.

Senator-Judge Tulfo (R). Wala? Okay. Okay.

Tanong ko na lang, how would you consider yourself: smart, average, or stupid?

Ms. Acosta. *Nasa average lang po ako na pagkatao, Your Honor.*

Senator-Judge Tulfo (R). Average. Correct. Just like millions and millions and millions of Filipinos. Good. Normal.

Kasi sa isang normal na tao, kapag siya ay binigyan, bilang isang SDO tulad sa inyo, ng listahan ng pangalan ng mga informants na Bilat, Pagong, at Pusa, papalag ka. "Ano ba ito, Colonel? Mukhang hindi yata tama ito, bastusan na ito," hindi po ba? Para sa normal na tao. Am I right?

Ms. Acosta. *Nag-rely po ako sa sinabmit (submit) po sa akin ng Security Officer, Your Honor.*

Senator-Judge Tulfo (R). *Kaya nga po. Bilang isang normal na tao, uulitin ko, 'pag nakakita kayo ng ganoong pangalan: Bilat, Pagong, Pusa, et cetera—Belat? Okay, Belat, same—magugulat ka, hindi ba?*

Ms. Acosta. *Magugulat po—*

Senator-Judge Tulfo (R). *Hindi, sa Bisaya, 'yung pronunciation niyan eh. Sa Tagalog, Belat; sa Bisaya, Bilat iyon eh kasi 'yung "e" nagiging "i." Bisaya din kasi ako eh.*

REMINDER OF THE PRESIDING OFFICER

The Presiding Officer reiterated that people in the gallery should remain silent while the Senate is sitting as an Impeachment Court.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

(Continuation)

Senator-Judge Tulfo (R). *Kasi isa pa po, Madam Witness, mayroon akong kopya rito na kung saan maraming pangalan ng mga informant at iisa lang po 'yung pirma. So, if you are normal or average person, papalag ka na naman. "Teka muna, Colonel, bakit ganito? Bastusan at lokohan ito." Iba-iba 'yung mga pangalan pero iisa lang po ang pirma. Hindi ho kayo nagtaka?*

Ms. Acosta. *Binerify (verify) ko po iyon, si Colonel Lachica, Your Honor, at ang sagot naman niya sa akin: "Ma'am Gina, those are sensitive information, Ma'am Gina, at saka confidential in nature po iyon."*

Senator-Judge Tulfo (R). *So, naniwala ka sa sinabi niya na confidential in nature, kahit na iisa lang ang signature sa napakaraming pangalan?*

Ms. Acosta. *Kasi siya po—*

Senator-Judge Tulfo (R). *So, you took his word for it.*

Ms. Acosta. *Kasi siya po ang nag-implement sa mga confidential activities, Your Honor, on the ground. Siya po ang inatasan na mag-implement. Siya po ang nag—siya ang implementor po, Your Honor.*

Senator-Judge Tulfo (R). *So, for me, in this case, you are stupid in the name of blind loyalty.*

Ms. Acosta. *Ano po iyon?*

Senator-Judge Tulfo (R). *Naging estupido kayo sa ngalan ng isang tinatawag na blind loyalty. Nakapikit, kung ano ang sinasabi sa iyo ng nakatataas, sinusunod mo na lang. Estupido ka pa rin, pero in the name of blind loyalty. Would you agree?*

Ms. Acosta. *Dili nako maintindihan, Your Honor. I'm sorry.*

Senator-Judge Tulfo (R). *Okay. Noong kayo po ay SDO sa Davao noong mayor si VP Sara noon, hindi kayo nagkaroon ng disallowance, right? Never?*

Ms. Acosta. *Wala po, Your Honor.*

Senator-Judge Tulfo (R). *So, anong pinagkaiba noon sa Davao at ngayon sa OVP? Bakit nagkaroon kayo ng disallowance ngayon dito sa OVP and DepEd versus noong nasa Davao kayo, wala kayong disallowance? Anong pinagkaiba?*

JV

Ms. Acosta. *Ang maalala ko lang, Your Honor, sa Davao po mag—doon po sa—mag-submit po kami ng accomplishment report doon po sa DILG, hindi po sa Office of the Vice President—hindi po sa Office of the President, sa Senate, at saka sa HOR, Your Honor.*

Senator-Judge Tulfo (R). *So, noong panahon po sa Davao, mayroon bang mga pangalang Piattos, mayroon bang mga pangalang mga Belat, Pagong, Pusa, et cetera?*

Ms. Acosta. *Hindi ko ma-remember, Your Honor. Hindi ko maalala.*

Senator-Judge Tulfo (R). *All of a sudden, hindi mo na maalaala?*

Ms. Acosta. *Hindi ko maalala, Your Honor.*

Senator-Judge Tulfo (R). *Hindi mo na maalala. And yet six years ka naging SDO doon.*

Ms. Acosta. *Hindi ko maalala, Your Honor. Matagal na po iyon, Your Honor, at saka may edad na rin po ako, Your Honor.*

Senator-Judge Tulfo (R). *Ayaw lang pagtinonto, Ma'am. Pati kami ba ipagtinonto nimo diri?*

Ms. Acosta. *Mao gyud na ang tinood, Your Honor.*

Senator-Judge Tulfo (R). *Okay. Salamat po, Mr. Presiding Officer.*

The Presiding Officer. *Thank you, Senator-Judge Tulfo.*

The Senate President is recognized for his interjections. You have two minutes, Sir.

QUESTIONS OF SENATE PRESIDENT GATCHALIAN

The Senate President. *Thank you very much. Thank you very much, Mr. Presiding Officer.*

Ms. Acosta, *narinig ko kanina 'yung mga sagot ho ninyo. Bilang isang accountable officer, paano ninyo masisigurado o paano ninyo masisiguro sa taong-bayan na 'yung perang ibinigay ninyo kay Colonel Lachica ay hindi nabulsa o hindi na-corrupt?*

Ms. Acosta. *Isa po ang proof, Your Honor, is we were able to liquidate. Nakagawa po kami ng liquidation, Your Honor, at nai-submit po iyon sa COA, Your Honor.*

The Senate President. *Pero kanina narinig ko rin, wala kayong personal knowledge at hindi n'yo rin nakita 'yung pagbibigay ng pera. Paano n'yo malalaman kung pumunta sa bulsa niya 'yung pera o hindi kung wala kayong personal knowledge, wala kayong—direktang nandoon?*

Ms. Acosta. *Your Honor, nagbigay po sa akin ang Security Officer namin na si Colonel Lachica ng Fund Utilization Report, Your Honor.*

The Senate President. *Papaano kung 'yung Fund Utilization Report ay peke, dinoktor? Eh wala kayo doon bilang accountable officer.*

Ms. Acosta. *May pirma po niya, Your Honor.*

The Senate President. *Kahit na may pirma niya, dapat nandoon kayo bilang accountable officer. Ang trabaho ng accountable officer ay maging accountable sa pera. Bakit buo ang tiwala ninyo kay Colonel Lachica na hindi niya ibubulsa 'yung pera?*

Ms. Acosta. *Buo po ang tiwala ko kay Colonel Lachica, Your Honor, kasi, unang-una, siya po ang gi-designate ni Vice President Sara, Your Honor, na Security Officer of the Office of the Vice President. Siya din po ang aming commander—commanding officer ng Vice Presidential Security Protection Group, Your Honor, at—*

The Senate President. *Pero hindi ibig sabihin na siya ang puwedeng mag-disburse. Siya lang ang humahawak ng security information.*

Ms. Acosta. *Siya din po ang nag—siya din po ang nag-implement, Your Honor, sa mga programa po na under po ng confidential fund kasi siya po ang eksperto, Your Honor, doon sa ground po, Your Honor. Siya po ang may alam, Your Honor.*

The Senate President. *Kanina narinig ko rin na sinabi ninyo, nagtanong kayo, nag-verify kayo kay Colonel Lachica. Hindi ninyo ba sinumbong o nagsabi kay VP Sara na baka may problema itong pagbibigay ng pera kay Lachica dahil ang sagot niya lang sa inyo ay confidential information or security? Hindi ba kayo nagsabi kay VP Sara na, "Baka magkaproblema ako bilang accountable officer"?*

Ms. Acosta. *Hindi po ako nagsabi kay Ma'am VP Sara, Your Honor, kasi, unang-una po, siya po ang nagbigay ng office order po na si Colonel Lachica ay gawin niyang security officer, Your Honor, po of the Vice President Office, Your Honor.*

The Senate President. *So kahit na mayroong problema, tinanggap ninyo at binigay ninyo pa rin iyong pera kay Lachica at tinanggap ninyo na lang iyong sagot niya?*

Ms. Acosta. *Wala naman po akong na-encounter na problema, Your Honor, kasi naka-submit po kami ng liquidation, Your Honor, doon sa COA, Your Honor.*

The Senate President. *Doon sa apat na quarters, apat na beses sinabihan kayo ni VP Sara na ibigay kay Colonel Lachica iyong pera?*

Ms. Acosta. *Once lang po siya nagsabi sa akin, Your Honor.*

The Senate President. *Iyong first—iyong last quarter of 2022?*

Ms. Acosta. *Oo, na 'pag ma-encash ko ang pera, Your Honor.*

The Senate President. *In three quarters, sino nagsabi sa inyong ibigay kay Colonel Lachica?*

Ms. Acosta. *Once lang po nagsabi sa akin si Vice President Sara, Your Honor, na 'pag ma-encash ko ang tseke po sa confidential fund, Your Honor, i-release ko po kay Colonel Lachica, na siya po ang gi-bigyan ni Ma'am Sara Duterte na security officer, Your Honor, sa office ...*

The Senate President. *Sino nagsabi sa inyo—*

Ms. Acosta. *... para siya po ang mag-implement ng various confidential activities, Your Honor, doon sa ground.*

The Senate President. *So, isang beses lang sinabi para sa apat na quarters? Tama?*

Ms. Acosta. *Opo, Your Honor.*

The Senate President. *Sino nag-utos sa inyo na i-encash iyong 500 million?*

Ms. Acosta. *Hindi po iyon buo 500 million, Your Honor.*

The Senate President. *Hindi nga. Every quarter, every quarter. Sino nag-utos sa inyo iyong fourth quarter of 2022 na i-encash iyong 125?*

Ms. Acosta. *Kasi tumawag po sa akin ang aming cash division, Your Honor, na, "Ma'am Gina, handa na po ang tseke at puwede na rin po kayo mag—i-encash po sa bangko."*

The Senate President. *So, siya ang nag-utos. Iyong—sino iyon, anong pangalan niya?*

Ms. Acosta. *Hindi po siya ang nag-utos, Your Honor. Nag-inform lang sa akin, Your Honor.*

The Senate President. *So, sino ang nag-utos sa inyong mag-encash ng 125? Na pumunta ka sa LANDBANK, i-encash mo 125?*

Ms. Acosta. *Kasi paano po ako makabigay kay Colonel Lachica, Your Honor, kung hindi ko po...*

The Senate President. *Hindi nga, but—*

Ms. Acosta. *... i-encash ang—*

The Senate President. *Hindi. In-inform kayo may cash, pero sino nag-utos sa inyo i-encash? Iba naman iyong may cash, iba iyong i-encash, 'di ba?*

Ms. Acosta. *Ano po?*

The Senate President. *Sino ang nag-utos sa inyo na pumunta sa LANDBANK, i-encash iyong 125?*

Ms. Acosta. *Si VP po, Your Honor, para makabigay ko po—mai-release ko po ang pera na iyan kay security officer, Your Honor.*

The Senate President. *So, si VP Sara nag-instruct sa inyo na pumunta sa LANDBANK, i-encash iyong 125?*

Ms. Acosta. *Ang sabi po niya sa akin, Your Honor, 'pag ma-encash ko ang pera, Your Honor, i-release ko po sa security officer, Your Honor, na—*

The Senate President. *Siya rin ba ang nag-utos sa inyong pumunta sa LANDBANK?*

Ms. Acosta. *Basta, iyon po. Paano ko po ma-encash—paano ko po maibigay ang pera, Your Honor, kung hindi po ako magpunta sa LANDBANK, Your Honor? Paano ko po ibigay ang cash doon sa security officer, Your Honor, na sinabi ni Ma'am VP na 'pag ma-encash ko, ibigay ko sa kaniya kung hindi po ako magpunta sa bangko, Your Honor, para ipa-encash ang tseke po?*

The Senate President. *Hindi. Naiintindihan ko. Ang tanong ko is sino ang nag-utos sa inyo pumunta sa LANDBANK para mag-encash? Ganoon kasimple lang. Sino ang tumawag sa inyo, nagsabi sa inyo, "Punta ka sa LANDBANK, i-encash mo iyong 125"?*

Ms. Acosta. *Ang pagsabi po sa akin, Your Honor, iyong sa cash division namin, ganito po, Your Honor, "Ma'am Gina, handa na po ang tseke at puwede na din po kayo magpunta sa bangko."*

The Senate President. *Na i-encash?*

Ms. Acosta. *Opo, Your Honor.*

The Senate President. *Iyong sa other quarters? Sa first quarter, second quarter, third quarter, sino nag-utos sa inyong mag-encash?*

Ms. Acosta. *Ganoon pa din, Your Honor. Ang sabi ng cash division namin, Your Honor, na 'pag naa na ang tseke, 'pag mayroon na ang tseke, magtawag sila sa akoo, Your Honor, "Ma'am Gina, puwede na po makuha ang tseke at puwede na po kayo magpunta sa bangko," Your Honor.*

The Senate President. *Thank you very much, Mr. Presiding Officer.*

QUESTIONS OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva. *Mr. President, before I ask questions, can I ask, Mr. President, Mr. Presiding Officer, if Colonel Lachica would be the next witness na sasalang po pagkatapos?*

The Presiding Officer. *That is the call of the prosecution, and no such manifestation has been made. Although, I believe, if I recall correctly, the name of Colonel Lachica is listed as one of the intended witnesses to be presented. Do you confirm, Attorney Ligutan?*

Mr. Ligutan. *Listed, but the prosecution has yet to decide if and when we present Colonel Lachica, Your Honor.*

The Presiding Officer. *That is their call, Senator-Judge Villanueva.*

Senator-Judge Villanueva. *Yes. Yes, I understand. Thank you. I hope siya po iyong susunod para hindi mas nakaka-confuse. Maganda ho kasing sundan itong witness natin.*

May I ask now, Mr. Presiding Officer?

Ma'am, matagal na po kayong SDO, hindi ba? Kung kayo ho ay pipili ng SDO, sino hong pipiliin ninyo? Iyong average na employee, iyong tiwala kayo o iyong sobrang tiwala kayo?

Ms. Acosta. *Ano po iyon? Ako? Ako, mismo?*

Senator-Judge Villanueva. *Opo, opo. Kunwari kayo po iyong magpipili ng SDO ninyo, ang pipiliin ninyo po ba average employee o iyong tiwala po kayo o iyong sobrang tiwala po kayo? Kasi sa tingin ko mahalaga ang pagiging isang SDO.*

Ms. Acosta. *Ang kung ako, Your Honor, sa akong self, ang pilion nako, Your Honor, kadto ang—I will choose, Your Honor, iyong tao na average po ang kaniyang—ang kaniyang—How*

do you call this? *Ang kaniyang ah, knowledge, ang kaniyang thinking, ang kaniyang pagkatao, Your Honor.*

Senator-Judge Villanueva. *So, hindi iyong tiwala ka, hindi iyong sobrang tiwala ka?*

Ms. Acosta. *Basta naa'y siya'y knowledge, Your Honor, naa siya's kabalo siya, Your Honor, kung unsa ang—alam niya, Your Honor, kung ano po ang mal. Alam po niya, Your Honor, kung ano ang tama.*

Senator-Judge Villanueva. *Hindi importanteng tiwala ka, ma'am? Hindi po importante?*

Ms. Acosta. *Partly po, Your Honor.*

Senator-Judge Villanueva. *Noong dinesignate (designate) po kayo as SDO, ano po iyong sinabing trabaho ninyo, partikular?*

Ms. Acosta. *Iyong dinesignate (designate) po ako na magiging SDO...*

Senator-Judge Villanueva. *Sa OVP po, opo.*

Ms. Acosta. *Sa OVP po. Ang trabaho ko po is to hold an amount for the confidential funds and disburse, and process also all the necessary documents, Your Honor, in relation for the confidential funds.*

Senator-Judge Villanueva. *Iyon po iyong sinabi sa inyo? Noong tinalaga kayo, iyon po iyong sinabi?*

Ms. Acosta. *Actually, Your Honor, ang sinabi lang po sa akin ng head of agency is, "Ma'am Gina, gawin kitang SDO and kung naa kay ano time, Ma'am Gina, basahon nimo ang JC 2015-01."*

Senator-Judge Villanueva. *So, hindi ka puwedeng mag-decide how the confidential funds ay gamitin, iyong role mo limited lang to withdrawing, safeguarding, disbursing, and liquidating funds pursuant to instruction and approval by other officials?*

Ms. Acosta. *Doon po ako nakabase, Your Honor, sa aking pagiging SDO, doon po sa JC, Your Honor.*

Senator-Judge Villanueva. *Okay. Maaari po ba ninyong ilahad iyong buong proseso bilang SDO? Iyong desisyon to use confidential funds, iyong proseso po: approval ng physical financial plan hanggang sa cash advance, hanggang sa withdrawal, hanggang actual disbursement and liquidation. Puwede hong ilahad ninyo from the start?*

Ms. Acosta. *Hindi po ako nagdesisyon, Your Honor.*

Senator-Judge Villanueva. *Iyong proseso po, alam ninyo naman po iyon, eh. Puwede po bang sabihin ninyo sa amin, ilahad iyong proseso?*

Ms. Acosta. *Okay, Your Honor. Sorry, ang aking lingguwahe is mayroong kaunting halong Bisaya.*

Senator-Judge Villanueva. *Okay po.*

Ms. Acosta. *Example, Your Honor, iyong 2022 'pag nag-request po si VP ng additional funds at kasali na po doon ang confidential funds. So, nagsulat siya, then abot na sa DBM, nag-reply ang DBM na ang—kasi ang unang sulat ni Ma'am VP is 250, kay intended po iyon sana sa third and fourth quarter of 2022. So, pagbalik na, nag-reply na ang DBM, Your Honor, na 125 lang ang ihatag ug naabot 'to ang sulat o ang SARO, Your Honor, naa na pud sa bandang third quarter—ah, fourth quarter, Your Honor, of 2022. So, mayroon ng pondo, na-download na po. So—*

Senator-Judge Villanueva. *No, na-approve na rin iyong FPF?*

Ms. Acosta. *PAP, na-approve na po, Your Honor.*

Senator-Judge Villanueva. *PAP.*

Ms. Acosta. *'Pag-approve ana, Your Honor, nagawa na po ako ng disbursement voucher. Gi-attach po didto ang tanan mga attachments, Your Honor. Example po, iyong bond ko po, Your*

Honor, *iyong designation ko*, Your Honor, as SDO, *iyong resibo po*, Your Honor, *ng fidelity bond*, Your Honor, *iyong kopya po ng approved na PAP*, Your Honor, *at saka iyong mga signatories po*, Your Honor, *at saka—*

Senator-Judge Villanueva. And then actual disbursement?

Ms. Acosta. Then *gi-process po*, Your Honor, *lumabas ang tseke, tapos nagpa-encash*, and then, *gi-disburse ko po sa security officer*, Your Honor.

Senator-Judge Villanueva. And then, *huli*, liquidation?

Ms. Acosta. *Naghulat, naghintay po ako*, Your Honor, *sa dokumento*, Your Honor, *na nagpapatunay na natapos na po ang confidential operation nga gi-implement po sa aming security officer na si Colonel Lachica.*

Senator-Judge Villanueva. Okay.

Ms. Acosta. So, *naggawa na po ng liquidation*, Your Honor.

Senator-Judge Villanueva. *Sa bawat stage, ma'am, sino po ang nagde-determine? Una, iyong purpose?*

Ms. Acosta. Purpose *ng?*

Senator-Judge Villanueva. Amount? Intended recipient? Timing *ng* disbursement? Who gave the final approval?

Ms. Acosta. *Puwede isa-isahun*, Your Honor?

Senator-Judge Villanueva. *Oo, sige.*

Ms. Acosta. *Ano gani sabi mo first?*

Senator-Judge Villanueva. *Una po, iyong sa amount, purpose.*

Ms. Acosta. *Naka-base po iyon*, Your Honor, *sa SARO*, Your Honor, *na—*

Senator-Judge Villanueva. *Wala kayong kinalaman sa pag-decide.* I'm repeating my question. *Wala kayong kinalaman sa pag-decide ng purpose and amount. Tama?*

Ms. Acosta. *Si VP Sara po ang nagsulat*, Your Honor, *so siya po ang nakabalo, siya ang may alam*, Your Honor.

Senator-Judge Villanueva. *Sa intended recipient? Inuulit ko lang iyong tanong ko.* Intended recipient?

Ms. Acosta. *Wala—ang nakabalo lang ana*, Your Honor, *is iyong nag-implement*, Your Honor, *na si Security Officer Lachica.*

Senator-Judge Villanueva. *Ibig sabihin, wala po kayong alam?*

Ms. Acosta. *Wala po akong alam kung iyon in terms of—*

Senator-Judge Villanueva. *Iyong timing ng disbursement? Wala rin po?*

Ms. Acosta. Timing *ng* disbursement.

Senator-Judge Villanueva. Disbursement.

Ms. Acosta. The moment that I disbursed the money to Colonel Lachica, Your Honor?

Senator-Judge Villanueva. Yes. *Kaya nga, wala ho kayong alam, sabi ninyo nga po.*

Ms. Acosta. *Na ang—sabi po sa akin ni Vice President Sara Duterte na 'pag ma-encash ko po ang tseke*, Your Honor, *i-release ko po sa security officer na itinalaga niya na si Colonel Lachica*, Your Honor.

Senator-Judge Villanueva. Okay. *Sa alin pong desisyon ang ginawa ninyo using your own judgment? Iyong kayo ho talaga iyong nag-decide.*

Ms. Acosta. *Ano—mahirap. Ano—*

Senator-Judge Villanueva. *Uulitin ko po iyong tanong ko. Ano po iyong kayo mismo ang nagdedesisyon bilang SDO? Kasi parang lahat po ng sinasabi ninyo, hindi ninyo po alam at hindi po kayo ang nagdedesisyon. Puwede po bang sabihin ninyo sa amin, ano talaga iyong trabaho ninyo na kayo talaga ang nagdedesisyon?*

Ms. Acosta. *Ang trabaho ko po, Your Honor, is i-process po ang papales po in relasyon po sa pagkuha po ng confidential funds, Your Honor.*

Senator-Judge Villanueva. *So ibig sabihin, walang releasing, walang withholding, pagpapalit ng amount, wala ho kayong trabahong ganoon? Kahit kailan, hindi ninyo po ginawa? Nagbago kayo—kasi mali itong ipinakita sa iyo, binago ninyo?*

Ms. Acosta. *Hindi ko ma-relate ang sinabi mo, Your Honor. I am sorry.*

Senator-Judge Villanueva. *Ulitin ko po ulit. Wala po kayong ginagawa na pagbabago base doon sa inyong nakikita o ibinibigay sa inyong papeles. Wala ho kayo kailanman na binabago, "Uy! Tekang, nagkaroon na ng AOM, magbabago na ako kasi mayroon ng COA report." "Uy! Nagkaroon na ng notice of suspension, ay magbabago na tayo." "Uy! Eto ngayon, may notice of disallowance na, magbabago ako." Wala, wala ho kayong ginawa? So, ang sinasabi ninyo po ay parang dumadaan lang po sa inyo. At kung ano po iyong dumaan sa inyo, inaaprubahan ninyo lang po.*

Ms. Acosta. *Your Honor, ginagawa ko po ang aking tungkulin bilang SDO, ginagawa ko po nang tapat, Your Honor, ug tama, Your Honor.*

Senator-Judge Villanueva. *Ang tanong ko po kasi is: Wala ho kayong binago kahit kailan? Wala hong binago? "Kailangang baguhin, kailangang palitan, kailangang mas detalyado, kailangang mas transparent." Iyon po iyong tanong.*

The Presiding Officer. ...Senator-Judge Villanueva, the same experience perhaps with Attorney Ligutan. That's the witness's answer. You've asked her three times already. That's her answer.

Senator-Judge Villanueva. Yes, Mr. President.

Thank you, Mr. Presiding Officer. It's just that we wanted to understand clearly.

Ito po kasi, kaya siguro ho ganito iyong sagot ninyo, dahil noong nasa Davao po kayo na SDO, ganito po iyong ginagawa ninyo at wala naman pong nagiging problema.

Ms. Acosta. *Basta, Your Honor, ginagawa ko po ang aking gawain bilang SDO, Your Honor.*

Senator-Judge Villanueva. *At noong nasa Davao po kayo, wala kayong naging problema as SDO?*

Ms. Acosta. *Wala po, wala po kaming AOM, Your Honor.*

Senator-Judge Villanueva. *Ngayon po, naniniwala kayong may problema.*

Ms. Acosta. *Uhm, hindi ko po masabi iyan, Your Honor.*

Senator-Judge Villanueva. *Wala po kayo dito kung wala hong problema na pinag-uusapan ngayon na kailangang klaruhin.*

Ms. Acosta. *Basta, Your Honor, ginagawa ko po ang aking trabaho bilang SDO, Your Honor.*

Senator-Judge Villanueva. Yes, iyong trabaho ninyo po bilang SDO binabanggit ninyo po kanina, tiningnan ninyo iyong fund utilization, tugma lang.

Ms. Acosta. *Tugma po, Your Honor, at saka galing po iyon kay Colonel Lachica na siya po ang nag-implement doon sa ground po, Your Honor. Siya po ang implementor, Your Honor.*

Senator-Judge Villanueva. *At tugma lang. Basta tugma lang iyong amount, okay na ho?*

Ms. Acosta. *Tinanong ko po siya, Your Honor, regarding po sa, iyong mga ARs na mayroong mga walang name, walang ano.*

Senator-Judge Villanueva. Last question po. Doon po ba sa sinasabi ninyong safe box, mayroon po doong mga additional documents na kung saan iyong mga totoong mga pangalan, maaari iyong mga alias na ginamit, nandoon na iyong totoong pangalan, nandoon po sa safe box? May mga additional documents?

Ms. Acosta. Wala. Isa lang po ang document ko, Your Honor, iyong ano lang po, iyong acknowledgment receipt, Your Honor, na ngayon po ay sina-submit na po sa COA, Your Honor, as isa po iyon sa mga requirements po, Your Honor, na i-submit po sa COA, Your Honor.

Senator-Judge Villanueva. Uulitin ko po. Wala na po sa safe box? Wala na?

Ms. Acosta. Wala na po, Your Honor. Na-submit na po.

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. Salamat po, Mr. Presiding Officer.

Ms. Gina, alam ninyo po ba kung lahat noong mga detalye doon sa acknowledgment receipts ay totoo? Iyong petsa kung kailan binayaran ang isang produkto o serbisyo, kung saan po binili o binayaran ito, kung ano iyong item na iyon at saka iyong halaga? Alam ninyo ba kung totoo lahat noong mga iyon sa mga ARs?

Ms. Acosta. Nag-rely po ako sa security officer, ma'am, na si Colonel Lachica, ma'am, kasi siya po ang nag-implement, ma'am, ng mga activities regarding po—in relation po sa confidential operation, ma'am.

Senator-Judge Hontiveros. Kaya ko rin po tinatanong itong mga ARs kasi noon, may finlash (flash) po na AR na may pangalang Clarisse Hontiveros—kaapelyido ko po. Ang nakakagulat po, Ms. Gina, iyong petsa kung kailan daw binayaran ang Clarisse Hontiveros ay February 24, 2023. Petsa po ng birthday ko. Napakalaking coincidence po. May reaksiyon o comment po ba kayo sa ganoong pambihirang detalye ng petsa?

Ms. Acosta. Tinanong ko na—iyong mga ganiyan po na ARs, ma'am, bini-verify ko po kay Colonel Lachica. Tapos ang sagot ni Colonel Lachica, "Ma'am Gina, sensitive information po iyon at saka confidential in nature." At saka siya naman po, Ma'am, ang may alam, siya po ang nag-implement po ng mga activities na in relation po sa confidential fund, at siya po ang itinalaga ni Vice President Sara Duterte na security officer po.

Senator-Judge Hontiveros. So tinanong at binerify (verify) ninyo ito na iyong petsa noong AR kay Clarisse Hontiveros ay birthday ko. Napansin ninyo rin pala po na, "Wow! Parehong birthday doon sa isang Hontiveros."

Ms. Acosta. Hindi ko po alam na birthday mo iyon, Ma'am.

Senator-Judge Hontiveros. Sabi ninyo kasi tinanong ninyo at binerify (verify) ninyo kay Colonel Lachica.

Ms. Acosta. Tinanong ko lang po iyong—kasi may iba pong ARs doon, Ma'am, na wala pong pirma, mayroon pong name; ang iba po walang date; ang iba po, hindi po mabasa masyado ang pangalan, Ma'am.

Senator-Judge Hontiveros. Pero itong isang petsa basang basa.

Anyway, ang pinakaimportante kong pangutana sa inyo, Ms. Gina, may nagsasabi na dahil kayo ang SDO, kayo ang payee ng cash advance, kayo lang dapat ang accountable sa confidential funds na ito. Tinatanggap ninyo po ba iyon?

Ms. Acosta. Yes po, kay bilang SDO po ako po ang accountable officer, ma'am.

Senator-Judge Hontiveros. So, kung wala pong alam si Colonel Lachica, kung wala pong alam si VP Sara Duterte sa paggamit nito, kung hindi ma-explain kung saan napunta ang pera, kayo lang ang mananagot. Tama po ba iyon?

Ms. Acosta. Mayroon naman pong itinalaga si Vice President, ma'am, na si Colonel Lachica na magiging security officer po, ma'am, na siya po ang mag-implement, ma'am, kasi wala po

akong eksperto, ma'am, kung paano po i-implement ang mga confidential activities po on the ground, ma'am.

Senator-Judge Hontiveros. *Ms. Gina, wala naman pong implementing officer sa memo circular, wala pong implementing officer sa ibang mga dokumento. Ang importanteng job doon na kayo ang nagpupuno ay accountable officer. So, okay lang po ba iyon na kung may mapatunayang ibang nagkasala, kayo ang mapaparusahan para doon?*

Ms. Acosta. *Ibig sabihin, ma'am, kung may mga mali po doon, sa akin po ang responsibilidad na accountable po, sa akin po?*

Senator-Judge Hontiveros. *Opo. Kapag may mali doon, kanina sinabi ninyo si VP Sara ang nagdesisyon na i-withdraw ang—encash ang total over four quarters ng P500 million. Kanina sinabi ninyo na si VP Sara ang nagdesisyon kanino ito ibibigay, si Colonel Lachica. Kung mapatunayan na mali iyong mga ginawang iyon ni VP Sara, okay lang ba sa inyo na kayo ang mapaparusahan sa desisyon ng iba?*

Ms. Acosta. *Kasi ako po ang accountable officer, ma'am.*

Senator-Judge Hontiveros. *So, okay lang po sa inyo, kayo po ang sasalo ng sisi ng iba?*

The Presiding Officer. *Kindly wind up, Senator-Judge Risa.*

Senator-Judge Hontiveros. *Winding up, Mr. Presiding Officer.*

Tama—fair po ba iyon? May ibang nagdesisyon, may ibang nagpagawa, kaya lang kayo iyong nakalagay doon sa blangko na accountable officer, kahit hindi kayo ang nagdesisyon sa pag-encash, hindi kayo ang nagdesisyon sa ibibigay kay Colonel Lachica, fair ba iyon, kayo po ang mapaparusahan?

Ms. Acosta. *Alam ko po, ma'am, na alam po ni Ma'am Vice President Sara Duterte ang ginagawa niya.*

Senator-Judge Hontiveros. *I hope po alam niya ang ginagawa niya, and I hope po maging fair ang kinalabasan nitong lahat ng proseso sa inyo. Salamat kaayo, Ms. Gina.*

Ms. Acosta. *Salamat, ma'am.*

Senator-Judge Hontiveros. *Maraming salamat po, Mr. Presiding Officer.*

The Presiding Officer. *Thank you, Senator-Judge Hontiveros.*

Senator-Judge Lacson, you may proceed, sir. You have two minutes when you are ready.

QUESTIONS OF SENATOR-JUDGE LACSON

Senator-Judge Lacson. *Thank you, Mr. Presiding Officer.*

Good afternoon, Ms. Gina.

Ms. Acosta. *Good afternoon po, sir, Your Honor.*

Senator-Judge Lacson. *Question number one: between you, as the SDO, and Colonel Lachica, as the security officer, sa ilalim ng batas ng Republika, sino ang may fiduciary responsibility?*

Ms. Acosta. *Sir, puwede po, Your Honor, puwede po matanong ano po iyong fidus...?*

Senator-Judge Lacson. *Ah, iyon iyong may responsibilidad pag in-entrust ka ng pera, ikaw may responsibilidad. So, between you and Colonel Lachica, sino iyong may responsibilidad sa pag-e-entrust ng pera? Public funds, ikaw?*

Ms. Acosta. *Ako po, Your Honor.*

Senator-Judge Lacson. *Thank you. Yes. So, each of the four times na nag-withdraw ka ng P125 million, diretso mo bang nire-release kaagad kay Colonel Lachica? Hindi mo na idinadaan ito sa inyong vault? May vault ka sa office, hindi ba?*

Ms. Acosta. *Opo, Your Honor.*

Senator-Judge Lacson. *Iyong buong P125 million, hindi na ito dumadaan sa vault mo sa office?*

Ms. Acosta. Are you referring *po kung anong—ano pong...*

Senator-Judge Lacson. *Hindi. Kapag kasi iyong vault, kaya ka kailangan may vault bilang SDO, paglalagyan mo iyon ng cash para safe, para secure.*

Ms. Acosta. *Opo.*

Senator-Judge Lacson. *Paglalagyan mo rin iyon ng mga classified documents para safe, para secure.*

Ms. Acosta. *Opo.*

Senator-Judge Lacson. *So, pagkagaling mo sa bangko, dinadaan mo muna sa vault o diretsong binibigay mo na kay Colonel Lachica?*

Ms. Acosta. *Pag na-encash na po ang tseke, Your Honor, habang papauwi po ako, tinawagan ko po si Colonel Lachica na na-encash na po ang...*

Senator-Judge Lacson. *Hindi, pakisagot lang, dumadaan ba sa vault ng office mo o direktso kay Colonel?*

Ms. Acosta. *Iyong first po na withdrawal, Your Honor, for 2022 po, hindi na po naipasok sa vault, Your Honor.*

Senator-Judge Lacson. *Iyong pangalawa, pangatlo, pang-apat?*

Ms. Acosta. Half-half po, Your Honor.

Senator-Judge Lacson. *Paano iyong half-half?*

Ms. Acosta. *Iyong 2023 po—*

Senator-Judge Lacson. *Kalahati ng 125, kay Colonel; kalahati sa vault?*

Ms. Acosta. *Hindi po, Your Honor. Ganito po, Your Honor.*

Senator-Judge Lacson. *Sige.*

Ms. Acosta. *Iyong 2023 po, Your Honor, ganoon pa rin ang ginagawa ko, Your Honor, i-inform ang Bise Presidente na na-encash ko na ang tseke, and then I also called up Security Officer Colonel Lachica na na-encash ko na ang tseke, then agad po magpunta po, magsagot po sa akin si Colonel Lachica na, "Yes, Ma'am Gina, pupunta ako." Pero beforehand pa po, Your Honor, nagbigay po ng advance ng copy si Colonel Lachica sa mga expenses na to be incurred na ...*

Senator-Judge Lacson. *Hindi, hindi iyon ang tanong ko.*

Ms. Acosta. ... ginatawag ko, Your Honor, iyong object of expenditure, Your Honor.

Senator-Judge Lacson. *Huwag mo nang haluan ng iba, Ms. Gina, ano. Ang tanong ko lang, iyong mismong cash. Each of the four times na nag-withdraw ka, direktso iyong P125 million kay Colonel Lachica, o mayroon kang ipinasok sa vault?*

Ms. Acosta. *Iyong—*

Senator-Judge Lacson. *Lahat. Each of the four times.*

Ms. Acosta. *Hindi lahat, Your Honor. Iyong first—iyong last quarter po of 2022, Your Honor, lahat po ng P125 million, ni-release ko po kay Colonel Lachica. Pero iyong first quarter po ng 2023, Your Honor, ang hiningi lang po, ang binigay lang, ang ni-release ko lang po kay Colonel Lachica, based sa kaniyang object of expenditures, is mga around 80 million lang po, Your Honor. Hindi ko kabisado po, Your Honor, ang exact amount, Your Honor. Basta mga 80 million plus or more, Your Honor.*

Senator-Judge Lacson. *Okay, iyong sumunod na quarter?*

Ms. Acosta. *Then after that, Your Honor, mag-submit siya sa akin ng fund utilization report, Your Honor.*

Senator-Judge Lacson. Hindi, after withdrawal.

Ms. Acosta. After withdrawal, *iyong* second quarter, Your Honor, ng 2023, three times *ko na po nai-release kay* Colonel Lachica. And same also with the third quarter of 2023, three times *ko po nai-release*.

Senator-Judge Lacson. Three tranches?

Ms. Acosta. Oo, three tranche—

Senator-Judge Lacson. Tranches.

Ms. Acosta. Oo, three tranches.

Senator-Judge Lacson. So, okay, *lipat na tayo ng topic. Kasi sa pagkaalam ko*, and I assume *alam mo rin ito, na kapag purchase ng supplies, maski pa gamitin sa confidential activities, kailangang may official receipts, may sales invoices, hindi ba, na pirmado ng totoong tao, ha, hindi alias, pag supplies? Hindi iyong purchase of information. Nag-purchase ka ng table, sabi nga ni Senator Erwin, nag-purchase ka ng silya, nag-purchase ng medicines, ito, hindi pupuwede iyong classified—maski classified ang paggagamitan, kailangan pa ring mayroong sales invoice, mayroong receipts, official receipt na pirmado ng totoong tao. Do you agree?*

Ms. Acosta. *Sa na—sa nabasa ko po sa JC, Your Honor, hindi naman po nakalagay doon na ...*

Senator-Judge Lacson. *Hindi.* I am telling you that that is supposed to be the practice.

Ms. Acosta. *Kung regular po na transaksyon, Your Honor?*

Senator-Judge Lacson. No, supplies. Supplies.

Ms. Acosta. *Regular po ang pag-transact, Your Honor, hindi po in relation sa confidential fund?*

Senator-Judge Lacson. No, no, supplies. *Maski gamitin pa sa confidential activities, pag supplies, kailangang may sales invoice, kailangang mayroong official receipt na pirmado ng totoong tao. Do you agree?*

Ms. Acosta. *Hindi ako ma—ang sagot ko po, Your Honor, is iyong nabasa—*

Senator-Judge Lacson. *You don't agree?*

Ms. Acosta. *Iyong nabasa ko sa JC, Your Honor, hindi naman po nire-require doon ang pangalan or ang invoice, Your Honor, sa JC, Your Honor. Iyon ang understanding ko sa JC po, Your Honor.*

Senator-Judge Lacson. Well, anyway, I won't argue with you.

Iyong physical sa financial plan, ikaw ang project accountable officer. Ministerial ba iyong pag-prepare mo at pagpirma mo doon sa PFP?

Ms. Acosta. *Ano po, Your Honor, ginagawa ko po iyon, Your Honor, with the inputs and guidelines po ng security officer, Your Honor.*

Senator-Judge Lacson. *Wala kang oversight? Kung anong sabihin ni Colonel Lachica—prepare, pirma, approve ng SDO?*

Ms. Acosta. *Gi-discuss po namin, Your Honor, based po sa program po ng Office of the Vice President, Your Honor.*

Senator-Judge Lacson. *Nauubos iyong oras ko. Uulitin ko iyong tanong ko, ano. Kasi kung ministerial, sabi ko nga kanina, opening na tanong ko, mayroon kang—ikaw ang mayroong fiduciary responsibility. Kung ministerial ka lang, hindi mo ginagawa iyong trabaho mo, delikado ka. Pero kung hindi—sabi mo kasi, narinig ko iyong sagot mo kay Attorney Ligutan—"Pag satisfied po ako, pipirma ako." So hindi ministerial, hindi ba?*

Ms. Acosta. *Gi-discuss po namin, Your Honor, iyong PAP, Your Honor, hindi po...*

Senator-Judge Lacson. *Tapos na oras ko. Sige maraming salamat. Wala akong makitang, makuha ang sagot sa iyo.*

QUESTIONS OF SENATOR-JUDGE SOTTO

The Presiding Officer. Senator-Judge Sotto is recognized for his interjections.

You may proceed, sir. You have two minutes.

Senator-Judge Sotto. Thank you, Mr. Presiding Officer. Mr. President. Thank you.

Madam Witness, being the special disbursing officer, you are the only official allowed to disburse the funds. *Tama po ba?*

Ms. Acosta. Based *sa* JC *po*, Your Honor, *ako po ang* person *mag-disburse*, Your Honor.

Senator-Judge Sotto. Correct. Now, can you delegate these powers to others?

Ms. Acosta. *Gi-disburse ko po ang* confidential fund, Your Honor, *sa aming* security officer, Your Honor.

Senator-Judge Sotto. *Hindi. Iyong pagiging* disbursement officer *ninyo*, are you allowed to delegate to others?

Ms. Acosta. *Basta*, Your Honor, *ang aking pag-disburse, gi-disburse ko po sa* security officer, Your Honor. *Iyan po ang trabaho ko*, Your Honor, *gi-disburse, i-release*.

Senator-Judge Sotto. *Oo*. So, therefore, the answer is no. You cannot delegate your powers to others, *ano? Iba iyon, nire-release mo eh, iyon ang sabi mo, eh, hindi ba?* All right.

Now, my question is this. *Hindi ka puwedeng mag-delegate sa mga* regional officers. *Wala kayong* regional officers, *ano, sa OVP?*

Ms. Acosta. *Wala kaming* regional *po*, Your Honor.

Senator-Judge Sotto. *Iyon. Kasi* in your utilization report submitted to Senate President Migz Zubiri, you have 132 areas nationwide, new activities within 11 days, and even over the holidays. So *kanino ninyo dinelegate (delegate) itong 132 areas na nag-distribute kayo kung hindi ka puwedeng mag-delegate ng power, ikaw lang mag-isa?*

Ms. Acosta. Your Honor, *may itinalaga po ang Bise Presidente na* security officer, Your Honor, *na siya po ang mag-i-implement, siya po ang mag-conduct ng* confidential, *siya po ang mag-implement sa mga* confidential operations, Your Honor, on the ground *kasi siya po ang eksperto*, Your Honor.

Senator-Judge Sotto. So *kaya niya iyon*, expertise *niya 132 areas in 11 days, siya lang mag-isa, si Colonel Lachica?*

Ms. Acosta. *Hindi ko iyan masabi*, Your Honor, *kasi ang alam ko lang si Colonel Lachica po ay siya po ang itinalaga na* security officer, Your Honor, *ng Office of the Vice President, at siya po ang aming* commanding chief, Your Honor for the VPSPG, Your Honor.

Senator-Judge Sotto. *Ay, parang—Ayaw ko nang marinig iyong* template, Mr. President. Thank you.

The Presiding Officer. Senator-Judge Marcos is recognized.

QUESTIONS OF SENATOR-JUDGE MARCOS

Senator-Judge Marcos. *Magandang hapon po. Maraming salamat*, Presiding Judge.

At maikli lang iyong mga tanong ko, huwag kayong mag-alala. So mula noong kinuha ninyo iyong pera sa bangko at tinurn (turn) over kay Colonel Lachica, may pagkakataon ba na hinawakan iyong pera ni VP Sara?

Ms. Acosta. *Wala, ma'am.*

Senator-Judge Marcos. *At masasabi mo ba kung nakita man lang kahit isang sentimo ng pera ni VP?*

Ms. Acosta. *Wala, ma'am.*

Senator-Judge Marcos. *Puwede mo bang sabihin, o alam, kung kinuha, inangkin, inagaw ni VP, kahit isang sentimo, nitong confidential funds na ito?*

Ms. Acosta. *Hindi ko nakita, ma'am.*

Senator-Judge Marcos. *Ay, ganoon pala, eh. Pero ang alam ko, kanina sinabi mo, iyong liquidation ng supporting documents, ito ang responsibilidad ninyo na iprepara iyong mga dokumento para sa COA at sa mga opisyal. Tama po ba? Iyong mga documents, hindi ba iyon ang trabaho mo bilang SDO?*

Ms. Acosta. *Kasali po iyon, ma'am.*

Senator-Judge Marcos. *Uh-hmm. Noong naghahanda ka nitong mga papeles na ito, katabi mo ba si VP para tingnan iyong mga daan-daan, libo-libong mga dokumento tungkol sa confidential funds? Nandoon ba siya?*

Ms. Acosta. *Wala po siya, ma'am. Nagbi-base lang po ako, ma'am, kung paano iyon gagawin po doon sa JC, ma'am.*

Senator-Judge Marcos. *Tinitingnan ba niya iyong bawat isa na mga acknowledgment receipt, iyong iba't iba pang papel for personal authentication? Tinitingnan ba niya iyan?*

Ms. Acosta. *Basta, ma'am, iyong mga acknowledgment receipts ma'am, galing po iyon kay security officer, ma'am, at ibinigay po niya sa akin, ma'am.*

Senator-Judge Marcos. *At siya ba ang nagbigay sa iyo? Inabot ba niya iyong mga resibong iyan na tinatanong ngayon ng prosekusyon?*

Ms. Acosta. *Inabot po sa akin, ma'am, na naka-envelope po ng brown envelope ni security officer, ma'am, na si Colonel Lachica, ma'am.*

Senator-Judge Marcos. *Colonel Lachica at hindi si VP Sara ang nagbigay sa inyo ng mga papeles. Siya ba ang kumuha ng mga signatureS ng mga nakapirma sa resibo?*

Ms. Acosta. *Si Colonel Lachica po ang security officer, ma'am, at siya po ang nag-implement, ma'am, ng mga various confidential activities po, ma'am, on the ground.*

Senator-Judge Marcos. *May nakita ba kayo na may kaduda-duda, alanganin, kakaiba sa mga dokumento? Sabi ninyo, wala naman suspicious, irregular, or questionable, hindi ba? Kanina? Tama po ba iyon? Doon sa mga dokumento, wala ka naman nakita na findings na may suspicious, irregular, o questionable, hindi ba?*

Ms. Acosta. *May ano po lang iyon, ma'am, iyong mga walang name, walang pirma, walang date, at bini-verify ko po iyon kay security officer po, ma'am, na si Colonel Lachica.*

Senator-Judge Marcos. *So, pinuno ninyo ito at tinama, iyon ba? At masasabi ba ninyo na alam ni VP Sara na may depekto? Alam ba niya na may kakulangan, may pagkamali sa mga supporting documents o hindi?*

Ms. Acosta. *Wala akong alam, ma'am.*

Senator-Judge Marcos. *Last question na lang po, kumusta iyong asawa ninyo na binisita ninyo? Alam ko, undergoing treatment sa Davao.*

Ms. Acosta. *Hindi po maganda, ma'am. I'm sorry.*

Senator-Judge Marcos. *I'm sorry also. Pinagdadasal namin siya.*

Ms. Acosta. *Okay lang po, ma'am. I'm sorry. Sorry po.*

Senator-Judge Marcos. *Thank you po. That will be all, Presiding Judge.*

The Presiding Officer. *Thank you, Senator-Judge Marcos.*

Inom kayo ng kaunting tubig, Ma'am Gina.

Next to interject, make his interjections rather, would be Senator-Judge Aquino. You have two minutes, sir. You may proceed when you're ready, and when the witness is ready as well.

QUESTIONS OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino. Mr. Presiding Officer—yes. Let's give the witness some time.

Sige, ma'am

The Presiding Officer. Are you okay, Ma'am Gina. Can you continue?

Ms. Acosta. *Sandali lang, sir.*

The Presiding Officer. *Oo. Inuman ninyo po ng tubig, ma'am.*

Ms. Acosta. I'm sorry. I'm sorry to each one of you. I'm sorry *po*.

The Presiding Officer. It's okay, ma'am. Are you okay, ma'am? Can you continue?

Ms. Acosta. Okay *po*. Okay *po*.

Senator-Judge Aquino. Okay. *Maraming salamat—*

The Presiding Officer. You may proceed, Senator-Judge Aquino.

Senator-Judge Aquino. *Maraming salamat, Mr. Presiding Officer.*

Madam Witness, *kailan ninyo po unang nakita iyang mga kakaibang pangalan, iyang Piattos, Belat, Pagong, Pusa at iba pa? When was the first time ninyo iyan nakita?*

Ms. Acosta. *Iyon pong nag-ano na po ako, sir, nag—iyon pong na-receive ko po iyon galing kay Security Officer Lachica po, Your Honor, kasi binabangga ko po iyon kung tama po ba, mag-coincide po ba at mag-tally po ba, ang hiningi niya sa akin before na nakasulat po sa object of expenditures, mag-tally po ba sa ibinigay niya sa akin na fund utilization report at saka iyang mga ARs, Your Honor.*

Senator-Judge Aquino. So, *bago pa po ito nilabas sa Kongreso, you are aware already of these names?*

Ms. Acosta. *Sa maaalala ko, Your Honor, hindi kaayo ma-remember, Your Honor, kasi sa kadaghan—sa dami-dami pong mga ARs na umabot po ng almost 800, Your Honor.*

Senator-Judge Aquino. *Oo, pero—*

Ms. Acosta. *Hindi na maaalala, Your Honor, kung anong particular name po, Your Honor. Kasi po, doon po ako nag-concentrate Your Honor, nagta-tally sa amount po at sa anong klase pong expenses na dapat po—na kung anong expenses po dapat within the guidelines po sa JC ang mga expenses na na-incur, Your Honor.*

Senator-Judge Aquino. So, *kaklaruhin ko po, ah. Noong una pong ibinigay sa inyo, wala ho kayong napansing kakaibang pangalan? Napansin ninyo na lang noong lumabas na ito sa balita?*

Ms. Acosta. *Ano, may napansin po ako, ano, pero hindi ko po binigyan po ng lalong ano, lalong concentration ko po, Your Honor, kasi doon po ako nag-concentrate sa expenses po at saka sa amount po na dapat po mag-tally sa kinuha niya na—sa ni-release ko po na pera sa kanya, Your Honor.*

Senator-Judge Aquino. Okay. So, *lumabas na po sa balita, sa Kongreso itong mga kakaibang pangalan, doon ninyo po ba naisip, "Naku, baka hindi totoong tao itong mga ito? Baka mga pekeng pangalan ito." Naisip ninyo po iyon, ma'am?*

Ms. Acosta. *Ano na po, Your Honor, kasi iyang nag-verify po ako kay Colonel Lachica, Your Honor, ang sabi po niya sa akin na, "Ma'am Gina, those are sensitive information po at saka confidential in nature po."*

Senator-Judge Aquino. *Iyang binerify (verify) ninyo po kabuuan— "Colonel Lachica, okay ba itong lahat?" or inisa-isa ninyo— may mga pangalan na kakaiba, may mga datos na mali-mali— paano po iyang pag-verify po ninyo? As a whole or in specific ways?*

Ms. Acosta. *Iyang mga nadaanan ko lang po na mga acknowledgment receipts, Your Honor.*

Senator-Judge Aquino. *May binerify po kayong pangalan na kakaiba?*

Ms. Acosta. *Hindi ko maalala, Your Honor, kasi more on po ako sa expenses po at saka iyang sa amount po, Your Honor.*

Senator-Judge Aquino. *Okay. So ibig sabihin po, noong panahong ibinigay po iyan sa inyo the first time, hindi ninyo talaga pinansin iyong mga pangalan? So, para po sa inyo, noong first time po iyan nakarating sa inyo, tingin ninyo po ba totoong tao iyong mga pangalan o ang tingin ninyo po ay alias po sila?*

Ms. Acosta. *Sa tingin ko po, Your Honor, naniwala po ako kay Colonel Lachica, Your Honor. Kung ano po ang ibinigay na mga forms o mga reports na galing sa kaniya, Your Honor, nagtiwala po ako na totoo po iyon, Your Honor, at okay po iyon, Your Honor, kasi siya po ang itinalaga ni Vice President. May tiwala po din si Vice President Sara sa kaniya, Your Honor.*

Senator-Judge Aquino. *Madam Witness, I just want to be clear, gusto ko lang malinaw na malinaw. Sa tingin ninyo po totoong tao iyong mga pangalang iyon o sa tingin ninyo po mga alias po sila ng mga totoong tao?*

Ms. Acosta. *Sa tingin ko po, the moment na sinabi po ni Colonel Lachica na confidential in nature po, sa tingin ko po mga alias po iyon, Your Honor.*

Senator-Judge Aquino. *Okay. So ngayon sinasabi mo na from the first time, tingin mo alias na sila. Hindi ninyo po tinanong kung nasaan iyong listahan noong mga totoong pangalan?*

Ms. Acosta. *Hindi na po ako nagtanong, Your Honor, kasi confidential in nature po iyon, Your Honor, at saka mga sensitive information po, Your Honor, sabi po ni Security Officer Lachica, Your Honor.*

Senator-Judge Aquino. *Opo. Pero pagdating naman po ni Colonel Lachica, tatanungin rin naman namin siya kung nasaan iyong listahan noong mga pangalang iyon.*

So ito po, lumabas ho ito more than one year na, ano? More than one year na ho pinag-uusapan iyong mga pangalang ito. And more than one year na rin po inuusig ang OVP, ang DepEd. From that time until now, hindi ho kayo nag-internal investigation kung totoo ba iyong mga pangalan; nasaan iyong totoong listahan; iyong totoong names ng mga alias? Nagkaroon ho ba kayo ng internal investigation?

Ms. Acosta. *Wala po akong—wala ako niyan, Your Honor.*

Senator-Judge Aquino. *Hindi ho kayo nagtaka kasi kayo po iyong accountable? Inamin ninyo po kanina kay Senator-Judge Hontiveros na kayo po iyong accountable sa lahat ng ito. Hindi ho ba to your benefit na malaman ninyo kung ano talaga iyong totoong sitwasyon? So more than one year na po ito, walang internal investigation. Hindi ho kayo nangahas— alamin natin kung sino si Piattos, sino si Belat, sino si Pusa, sino si Pagong? Wala ho kayong ganiyang pagtatangka o wala ho kayong ganiyang effort sa inyo pong opisina?*

Ms. Acosta. *Kasi po, Your Honor, sa GC po, ang understanding ko po, Your Honor, hindi naman po kailangan po, Your Honor, na ano, na aliases ba o hindi, Your Honor, ang nakalagay po sa acknowledgment, Your Honor. In fact, Your Honor, wala pong format kung ano po ang form or template po ng acknowledgment receipt, Your Honor.*

Senator-Judge Aquino. *Last point, Mr. Presiding Officer.*

More than one year na po ito, Ms. Acosta. Hindi ho ba, kung una pa lang itong binanggit ng mga congressmen, may listahan na kayo— "Ito po iyong totoong tao, alias po iyan— hindi po iyan totoong tao, ito po ang mga pangalan nila, ito po ang mga mukha nila"? O kung ayaw ninyo pong ipakita sa publiko, sa executive session po natin ipakita. Never ho kayo nagtangka na buuin ang listahang iyan o makuha ang impormasyong iyan? Iniwan ninyo na po kay Lachica?

Ms. Acosta. *Confidential in nature po iyon, Your Honor, kaya hindi na po ako nagtanong kasi confidential po, Your Honor.*

Senator-Judge Aquino. *Okay. Tatanungin rin po namin si Colonel Lachica pagdating po niya dito. Maraming salamat, Madam Witness.*

The Presiding Officer. Thank you, Senator-Judge Aquino.

With the permission of Senator-Judge Zubiri, Senator-Judge Lapid is availing of the privilege of interjecting. So may I give him priority, Senator-Judge Zubiri?

Senator-Judge Lapid is recognized. You may proceed when you're ready, sir.

QUESTIONS OF SENATOR-JUDGE LAPID

Senator-Judge Lapid. *Salamat po, Presiding Officer.*

Ipa-follow up ko lang po iyong tanong ni Senator-Judge Lacson kanina. Iyong pangalawang deliver ninyo sa P125 million— kung inilagay ninyo sa kaha, ang sabi ninyo ibinigay ninyo iyong otsenta kay Lachica, kay Colonel— saan napunta iyong P45 million? Kanino ninyo ibinigay?

Ms. Acosta. *Sa aming vault pa po iyon, Your Honor.*

Senator-Judge Lapid. *Noong kinuha ninyo iyong apat na bag sa bangko, nakita ba ni Vice President Sara iyon? Binuksan mo sa harap niya o hindi na, idineretso mo na kay Colonel Lachica?*

Ms. Acosta. *Pagkuha ko po ng pera sa bangko, inilagay ko sa bag, Your Honor. Dinala po namin iyon sa opisina po namin at inilagay ko po sa aking extension office, Your Honor.*

Senator-Judge Lapid. *Hindi mo inilagay sa vault?*

Ms. Acosta. *Iyong first withdrawal po, Your Honor, iyong 2022, hindi na po nailagay sa vault, Your Honor.*

Senator-Judge Lapid. *Hindi, iyong pangalawa. Sabi mo naibigay mo kay Lachica iyong otsenta. Iyong P45 million, saan mo inilagay? Kanino mo ibinigay?*

Ms. Acosta. *Inilagay ko po sa aming vault, Your Honor. Then after po na i-release ko po iyong first release ko na P80 million plus, after mga one month po, Your Honor, nag-submit po sa akin si Security Officer Lachica, Your Honor, ng fund utilization report, Your Honor, at saka may dala na po din siyang object of expenditure, Your Honor, na iyon ang binabasehan ko po, Your Honor, na i-release ko po iyong remaining pera, Your Honor.*

Senator-Judge Lapid. *Iyon nga po, at marami rin pong nagtatanong, pero hindi ko itatanong kung sino iyong Piattos, kung anong alias. Sabi nga po ni Senator Risa Hontiveros, may kapangalan siya, may ka-birthday pa siya. Mayroon din pong sinabi iyong Prosecutor na may dalawang Lapid na nandodoon. Papasalamat po ako kung totoong Lapid iyon, kamag-anak ko po kasi. Sabi po kasi ng tatay ko, basta Lapid, kamag-anak ko. Kaya magpapasalamat po ako sa Defense at kay Lachica kung nabigyan iyong kamag-anak ko. Eh kung hindi, kung alias iyon, papaano iyong pangalan at apelyido namin na in-alias ninyo lang pala, hindi totoong tao?*

Ms. Acosta. *Your Honor, iyong mga documents po na iyan ay galing po sa security officer, Your Honor, na si Colonel Lachica, Your Honor, na itinalaga po ni Vice President, Your Honor. Kaya po ako, nag-rely po ako, Your Honor, sa kaniya, kasi mayroon po siyang office order, Your Honor, na siya ang security officer, Your Honor, at siya po ang mag-implement ng mga various confidential operational activities, Your Honor.*

Senator-Judge Lapid. *Bakit ninyo pinagkatiwalaan si Colonel Lachica? May nakita ba kayong background niya noong siya— Active pa siya hanggang ngayon, ano? Mayroon ba siyang intelligence funds doon sa office niya, na sarili niya? Kasi karamihan ng mayor, local official, military, police, army, navy, may mga intelligence fund po iyan. Siya ba, mayroon bang sariling intelligence fund?*

Ms. Acosta. *Hindi ko alam, Your Honor.*

Senator-Judge Lapid. *Hindi mo inalam?*

Ms. Acosta. *Hindi ko alam, Your Honor.*

Senator-Judge Lapid. *Iyon lang po. Maraming salamat.*

The Presiding Officer. Thank you, Senator-Judge Lapid.

Senator-Judge Zubiri, you may proceed, sir. You have two minutes, when you're ready.

QUESTIONS OF SENATOR-JUDGE ZUBIRI

Senator-Judge Zubiri. *Ayoko nang magtanong sana, Mr. Presiding Officer. Napakaganda ng mga tanong ni Senator Lapid. Anticlimactic na po ako pagka ganito.*

Maayong hapon, palangga. Maayong hapon. Silingan man ta, Ma'am Gina.

Ms. Acosta. *Maayong hapon sab, sir, Your Honor.*

Senator-Judge Zubiri. Yes, Ma'am. Ma'am, *kasi iyong mga tanong kanina about sa funds, nabigay ninyo po lahat kay Colonel Lachica. Pero hindi ninyo rin po alam kung na-misuse ni Colonel Lachica iyong pondo? Hindi ninyo rin po malalaman iyan? For example, nagbigay po siya ng P100,000 kay Piattos pero sa totoo lang, hindi pala tao iyon, binulsa lang po nila—posible din po iyan kasi nabigay mo lahat ng pondo kay Colonel Lachica? Tama po iyon, Madam?*

Ms. Acosta. *Nag-base po ako, Your Honor, sa kaniyang isinabmit (submit) sa akin na fund utilization report, Your Honor, after po ma-implement po niya ang mga project po or activities po ng confidential funds, Your Honor.*

Senator-Judge Zubiri. *Oo nga. Kasi, Madam Witness, ganoon din po ang nangyayari ngayon pag mga AICS, misuse ng mga pondo ng gobyerno, may mga barangay official na nagpapapirma ng P5,000, iyon pala P2,000 lang pala iyong naibibigay doon sa recipient, iyong P3,000, binubulsa nila. Posibleng mangyari din po dito dahil iyong mga pinapirma na ibinigay sa iyo ay hindi po natin na-verify, totoo po iyon? Hindi naman na-verify?*

Ms. Acosta. *Bini-verify ko po iyon through Lachica, Your Honor. Kasi siya po ang nag-implement, Your Honor, siya po ang may alam, Your Honor. Siya po ang eksperto, Your Honor.*

Senator-Judge Zubiri. So, *iisang tao lamang ang iyong gisaligan—iyong pinaniwalaan mo, Madam?*

Ms. Acosta. *Kay sa iya—kay sa lang pud ang akong gi-rilisan (release) og kuwarta, Your Honor.*

Senator-Judge Zubiri. So, *katong gi-lista—iyong nalista po na mga gamot, iyong mga expenses, gasolina—walang resibo po iyon? Ni isa walang resibo?*

Ms. Acosta. *Wala po, Your Honor, kay confidential in nature po said Colonel Lachica, Your Honor.*

Senator-Judge Zubiri. *O pero, palangga, wala ka nahadlok? Wala ka nahadlok? In other words, hindi po kayo natakot? Kasi you're the SDO eh, you're the accounting officer. Alam ko lahat ng LGUs, lahat ng mga government agencies, pati Philippine Sports Commission, hindi po naglalabas ng pondo iyan kung walang resibo ni piso. Talagang pambili lang ng equipment para sa sports, kailangan may resibo po at bine-verify pa iyong resibo ay official receipt, hindi po ano lang, iyong acknowledgment receipt. Wala mong nahadlok, Ma'am?*

Ms. Acosta. *Ako, Your Honor, nag-trust ako kay Colonel Lachica, Your Honor, kasi nag-trust po si VP Sara kay siya po ang gitudlo nga security officer, Your Honor. At saka ang gigastusan po, Your Honor, is confidential in nature, Your Honor. Sa pagka—ako ang understanding, Your Honor, kung i-divulge or isana—itug-an o isulti kung kinsaang nag—kinsaang—kinsatong tawhana, Your Honor, mapeligro o mabutan sa masama.*

Senator-Judge Zubiri. *Delikado—sa alanganin.*

Ms. Acosta. *Oo, masama ang tao, Your Honor.*

Senator-Judge Zubiri. *Oo. Okay. I have no further questions.*

Ms. Acosta. *Kay confidential in nature man 'to, Your Honor.*

Senator-Judge Zubiri. *Salamat. Salamat kaayo, palangga.* Thank you.

Ms. Acosta. *Salamat po.*

The Presiding Officer. Thank you, Senator-Judge Zubiri.

For the information of the Senator-Judges, we shall try to wrap this up by 3:00 p.m. and according to the Senate President, we shall convene session at 3:30 p.m.

The Senate President is recognized.

QUESTIONS OF SENATE PRESIDENT GATCHALIAN

The Senate President. Thank you, Mr. Presiding Officer.

Magandang hapon muli, Ms. Acosta. According sa joint circular, *kailangan 'pag nagsa-submit ng liquidation report, kasama doon iyong documentary evidence of payments.* In this case, *iyong acknowledgment receipts.*

Doon sa apat ninyong liquidation report, bakit po walang mga documentary evidence of payments? Bakit po walang acknowledgment receipts?

Ms. Acosta. *Wala pa po, Your Honor, kasi kinokolekta pa po ang mga acknowledgment receipts, Your Honor. Considering po, Your Honor, na iba-iba pong location, Your Honor, ang pag-implement po ng confidential activities or operations, Your Honor.*

The Senate President. *Pero klaro sa joint circular na dapat naka-attach iyong documentary evidence of payments, iyong acknowledgment receipts. At bakit hindi ninyo hinintay dumating iyong acknowledgment receipts?*

Ms. Acosta. *May deadline po, Your Honor, kung kailan po i-submit ang liquidation report, Your Honor, sa COA, Your Honor, in every confidential fund na na-release, Your Honor.*

The Senate President. *Nag-demand ba kayo—sino ba ang—kanino manggagaling iyong acknowledgment receipts?*

Ms. Acosta. *Sa security officer po, Your Honor, na si Colonel Lachica, Your Honor.*

The Senate President. *Sinong gumawa noong mga acknowledgment receipts?*

Ms. Acosta. *Nagbigay lang po ako sa kaniya ng USB template po ng acknowledgment receipt, Your Honor.*

The Senate President. *So, siya gumawa rin?*

Ms. Acosta. *Basta ibinigay ko po sa kaniya ang template na naka-USB po, Your Honor.*

The Senate President. *Hindi kayo ang gumawa noong acknowledgment receipts?*

Ms. Acosta. *Iyon po ang gina—ang gibigay ko lang po sa kaniya, Your Honor, is iyong template, Your Honor.*

The Senate President. *Bakit hindi ninyo dinemand (demand) sa kaniya iyong acknowledgment receipts bago ninyo i-submit iyong liquidation report? Bakit hindi ninyo sinabi, "Ibigay mo na sa akin dahil may deadline tayo"?*

Ms. Acosta. *Wala pa po—hindi pa po niya nakolekta lahat, Your Honor. Pero may ina-attach po kami, Your Honor, iyong certification, Your Honor.*

The Senate President. *Pero iyong certification, nakasulat din doon kailangan iyong documentary evidence of payments, 'no? Nakasulat din doon. Hindi ka ba nag-report kay VP Sara na violation ito ng joint circular? Bakit mo isinaalang-alang ang iyong pangalan na maba-violate itong joint circular? Hindi ka ba nagsumbong kay VP Sara na, "Magkakaroon tayo ng violation"?*

Ms. Acosta. *Your Honor, pagpa-receive po ng aming liaison officer sa aming liquidation report, Your Honor, tinanggap naman po ng COA, Your Honor—*

The Senate President. *Hindi. Hindi naman sa tinanggap, ang importante—*

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Ms. Acosta. — *hindi man nila ibinalik sa amin, Your Honor.*

The Senate President. *Hindi. Ang importante ngayon, iyong joint circular—iyong compliance sa joint circular. Iyon ang mahalaga ngayon. Kaya hindi mo ba sinabi kay VP Sara na, “Mayroon tayong problema— baka mademanda tayo sa mga susunod”?*

Ms. Acosta. *Hindi po, Your Honor, kasi tinanggap naman po ng COA ang aming liquidation report, Your Honor.*

The Senate President. *Ngayon na posibleng makasuhan ka, narinig mo naman kanina, at alam ko may mga kasong ipinayl (file) sa iyo, nagkaroon ka ba ng meeting kay VP Sara kung paano ayusin itong problema at kasong kinakaharap mo?*

Ms. Acosta. *Iyong nag—parang iyong napaylan (file)—*

The Senate President. *Hindi ba, mayroon kang kaso ngayon?*

Ms. Acosta. *Oo, iyong napaylan po kami sa—napaylan po ako sa Ombudsman, Your Honor.*

The Senate President. *Correct. So, nag-usap ba kayo ni VP Sara na, “Paano— ano ang gagawin natin dito sa problemang kinakaharap ninyo sa confidential funds”?*

Ms. Acosta. *Binigyan po niya kami ng abogado, Your Honor.*

The Senate President. *Pero kayo mismo ni VP Sara, nakapag-usap ba kayo kung paano— kasi kumuha ka ng instructions sa kaniya, hindi ba? Dapat magkaroon din kayo ng pag-uusap kung paano malampasan itong kaso.*

Ms. Acosta. *Iyon po, Your Honor, binigyan po niya kami ng abogado, Your Honor.*

The Senate President. *Iyon lang ang solusyon? Bigyan ng abogado?*

Ms. Acosta. *Opo, Your Honor.*

The Senate President. *Thank you, Mr. Presiding Officer.*

QUESTIONS OF SENATOR-JUDGE TULFO (E)

The Presiding Officer. *Senator-Judge Erwin Tulfo, you have two minutes, sir. You may proceed when you're ready.*

Senator-Judge Tulfo (E). *Ms. Gina Acosta, una po, sorry po doon sa balita tungkol sa iyong asawa, ano po. Sorry to hear that.*

Mabilisan lamang po. Kanina sabi ninyo, iyong tables and chairs na worth P3.5 million ho yata sa confidential fund ay binili kasi gagamitin sa, ‘ika nga, confidential or intelligence operations, tama po? Iyon po ang sabi ninyo kanina sa akin.

Ms. Acosta. *Iyon po—*

Senator-Judge Tulfo (E). *Opo.*

Ms. Acosta. — *kasi galing po iyon sa security officer, Your Honor.*

Senator-Judge Tulfo (E). *Ah, siya ang nagsabi sa iyo na: “Ibili natin ng chairs and tables”?*

Ms. Acosta. *Ang dumating na lang po sa akin, Your Honor, is iyong mga ano na lang po, Your Honor, iyong mga acknowledgment receipt, Your Honor, na galing po sa kaniya kasi siya po ang nag-implement, Your Honor.*

Senator-Judge Tulfo (E). *Okay. Pero alam ninyo ho iyong— I’m sure, hindi ninyo kabisado iyong joint memorandum circular po na 2015-01? Hindi ninyo po memorize, ano po?*

Ms. Acosta. *Hindi ko po lahat na-memorize, Your Honor.*

Senator-Judge Tulfo (E). *Iyong Section 4.8, Section 4.11, alam ninyo ba kung anong sinasabi po nito?*

Ms. Acosta. *Puwede po maghingi ng kopya, Your Honor?*

Senator-Judge Tulfo (E). *Mayroon po ako, pero ang sinasabi po doon sa Section 4.8, 4.11—kokorekin (correct) lang po kita, ano po? Hindi po pupuwedeng gamitin ang confidential fund sa pagbibili ng furniture ayon po iyan sa JMC 2015-01, Section 4.8 hanggang Section 4.11, dahil ang confidential fund—ito po, para sa inyong kaalaman, ano po, Ma'am? Kasi hindi ko rin kayo masisi baka hindi po ninyo memorized: "Purchase of information, rental of transport vehicles for surveillance, rental of incidental expenses of safe houses, at purchase of highly specialized technical equipment"—ibig sabihin, mga surveillance equipment, mga camera, iyon po ang pupuwede.*

Tapos ang sinasabi po dito, iyong paggamit daw po ng confidential fund for office setup, furniture, or general supplies is prohibited dahil ito "bypasses standard public procurement transparency rules without serving direct classified surveillance function." Kahit na po ito gagamitin para sa intelligence surveillance operations, hindi po pupuwede dahil iyang mga upuan, tables po na iyan, will fall under the MOOE or Capital Outlay. Next time, Ma'am, ha? Para may idea na kayo, ano, kung saka-sakaling maging—in the future, maging SDO ulit kayo, iyan po ang pagbabasehan natin. All right?

Ms. Acosta. Retired na po ako niyan, Your Honor.

Senator-Judge Tulfo (E). Ah, okay. But for your information Ma'am, ano po?

Ms. Acosta. Salamat po, Your Honor.

Senator-Judge Tulfo (E). Thank you po.

The Presiding Officer. Thank you, Senator-Judge Erwin.

Senator-Judge Pangilinan, you have two minutes, Sir. You may proceed when you're ready.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. *Maraming salamat. Again, magandang hapon. Ms. Acosta, doon sa usapin ng surveillance activities worth P122 million ng mga gamot, nakalagay doon sa acknowledgment receipt na iyong mga gamot ay bilang rewards, tama?*

Ms. Acosta. *Hindi ko—can I have a copy?*

Senator-Judge Pangilinan. Would either the Defense or the Prosecution provide copies of—

The Presiding Officer. Can assisting counsel provide Ms. Gina with a copy of the—I believe the liquidation report should contain that information—with the page, kindly assist Senator-Judge Pangilinan.

The Presiding Officer. Can Assisting Counsel provide Ms. Gina with a copy of the—I believe the liquidation report should contain that information.

Will the page kindly assist Senator-Judge Pangilinan.

Ms. Acosta. Salamat po, sir. Salamat, Your Honor.

Senator-Judge Pangilinan. So, nakalagay diyan, medicines bilang reward para sa informer. Bakit binabayaran ng gamot o binibigyan ng reward ng gamot ang informer?

Ms. Acosta. Your Honor, hindi ko po alam ito, Your Honor, kasi galing po ito kay security officer, Your Honor, na siya po ang nagpa-implement, Your Honor. Siya po ang implementor, Your Honor.

Senator-Judge Pangilinan. Yes, pero matagal ka nang nagha-handle ng confidential funds, 2015 pa. Ganoon ba ang gawi, na binibigyan ang informer ng reward sa surveillance activities at ang bayad ay gamot? Kasi ang total po niyan is a hundred twenty-two million pesos worth of medicines, in three tranches, at P112 million worth of supplies, also in three tranches. Iyong medicines lang medyo reward. Nagtataka ako paano naging reward sa informer ang gamot?

Ms. Acosta. Hindi po ako makapag-explain, Your Honor, kasi hindi po ako ang nag-implement, Your Honor. Ako po ay nag-disburse lang po, Your Honor. Hindi po ako nag-implement on the ground, Your Honor. Si security officer po na si Colonel Lachica po, Your Honor.

Senator-Judge Pangilinan. *Pero kayo ang authorized to disburse. Kayo ang accountable officer. Paano ninyo—ikaw mismo, bilang accountable officer, ano ang sa iyo palagay mong paliwanag na iyong informer gamot ang binibigay bilang reward? Kasi iyon ang nakalagay sa acknowledgment receipt.*

Ms. Acosta. *Hindi ko po ma-explain, Your Honor, kasi hindi po ako ang gumawa nito, Your Honor. Si Colonel Lachica na security officer po, siya po ang nag-implement, Your Honor.*

Senator-Judge Pangilinan. *So, gaya ng nabanggit siguro kanina, hindi rin natin alam kung talagang gamot ang binili o mayroon talagang gamot na P122 million na pinurchase (purchase). At bilang accountable officer, hindi mo rin masabi kung talagang medicine iyon, hindi po ba, dahil—*

Ms. Acosta. *Nag-base lang po ako, Your Honor, sa binibigay po na mga documents na galing po sa security officer, Your Honor, na siya po ang nag-implement on the grounds, Your Honor.*

Senator-Judge Pangilinan. *Okay. Kanina nabanggit mo na dala-dala ninyo iyong bag, apat na bag, bumalik kayo sa opisina. Kanino ninyo tinurn (turn) over iyong apat na bag ng P125 million? Noong una, iyong first, last quarter.*

Ms. Acosta. *Ni-release ko po iyon, Your Honor, sa security officer, Your Honor, na iyan po ang sabi ng Vice President, Your Honor, na 'pag ma-encash ko po ang tseke, i-release ko po kay Colonel Lachica.*

Senator-Judge Pangilinan. *Saan ninyo ni-release? Sa opisina na?*

Ms. Acosta. *Sa opisina na po, doon sa aking extension office, Your Honor.*

Senator-Judge Pangilinan. *Sino ang kasama ni Colonel Lachica noong pagbigay mo noong apat na bag?*

Ms. Acosta. *Mayroon po siyang kasama pero nasa labas lang po, hindi po pumasok sa aking extension office, Your Honor. Mga VPSPG po, Your Honor.*

Senator-Judge Pangilinan. *So, sa loob ng extension office, sino ang nandoon?*

Ms. Acosta. *Ako po, Your Honor, at then pumasok po si Colonel Lachica, Your Honor.*

Senator-Judge Pangilinan. *So, dalawa lang kayo sa loob ng opisina?*

Ms. Acosta. *Opo, Your Honor.*

Senator-Judge Pangilinan. *At pagka nagtu-turn over ka ng 70 o 80 million, dalawa lang kayo lagi sa tatlong beses?*

Ms. Acosta. *Yes, Your Honor, pero pina-receive ko po sa kaniya, Your Honor, doon po sa object of expenditures na binigay niya sa akin.*

Senator-Judge Pangilinan. *Yes, yes. Pero ibig sabihin, kayong dalawa lang ang maaaring magsabi na talagang tinurn over mo sa kaniya?*

Ms. Acosta. *Gi-turn over ko po sa kaniya, Your Honor, kasi—*

Senator-Judge Pangilinan. *Walang ibang kasama roon?*

Ms. Acosta. *Wala po, Your Honor.*

Senator-Judge Pangilinan. *Okay. Last wrap-up.*

Sa Davao City ba, noong ikaw ang SDO, mayroon ding security officer?

Ms. Acosta. *Mayroon po, Your Honor.*

Senator-Judge Pangilinan. *So, ganoon din ang sistema, tinu-turn over mo iyong buong pondo sa security officer?*

Ms. Acosta. *Pag magbigay—yes, Your Honor, pero magbigay po sila ng object of expenditures.*

Senator-Judge Pangilinan. *Yes. Sino iyong security officer na iyon sa Davao?*

Ms. Acosta. *Dalawa po sila, Your Honor. Si Sir Benny De Leon at saka si—nakalimot ko, Your Honor, sorry.*

Senator-Judge Pangilinan. *At ganoon din—one last question— ganoon din ang sistema? Kasi dito sa last, iyong three tranches na totaling almost 500 million, ni isa walang official receipt, walang sales invoice, tama? Dito sa OVP, tama?*

Ms. Acosta. *Ang alin? Nawala ako, Your Honor. I'm sorry.*

Senator-Judge Pangilinan. *Iyong liquidation, walang sales invoice, walang official receipt. Puro acknowledgment receipt. Kasi iyon ang sinabi ng COA. You confirm that?*

COA already said, *lahat ng mga liquidation reports, walang sales invoice at walang official receipts, puro acknowledgment receipts. So, you acknowledge that, tama?*

Ms. Acosta. *Sandali lang, Your Honor, ha.*

The Presiding Officer. The witness already answered actually, Senator-Judge Pangilinan, twice earlier that *walang official receipt sa liquidation report na pinayl (file) nila sa COA.*

Senator-Judge Pangilinan. Yes. *At ganoon din sa Davao noong ikaw ay SDO?*

Ms. Acosta. *Oo. Wala po, Your Honor. Wala.*

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Madam Witness, *magbibigay na lang ako ng scenario kasi predictable iyong mga sagot mo. So, hopefully ito maiba iyong sagot mo. I'll give you a scenario, halimbawa, ako si Lachica, and then binigyan mo ako ng 100 million. Pagbalik, mayroon na akong dalang Ferrari, Lamborghini, Patek Philippe, Rolex, and then sinabi niya, "Huwag kang mag-alala, confidential in nature ito, sensitive in nature. Ako iyong eksperto, ako ang nakakaalam sa ground"? Anong gagawin mo, palulusutin mo pa rin o kukuwestiyunin mo?*

Ms. Acosta. *Wala pong ganiyan si Colonel Lachica, Your Honor.*

Senator-Judge Tulfo (R). *Hindi. Halimbawa nga lang. Scenario nga po.*

Ms. Acosta. *Hindi ko masabi, Your Honor, kasi wala po, Your Honor. Dili ako magsagot ana, Your Honor, kay wala akong naka-experience ana, Your Honor.*

Senator-Judge Tulfo (R). Okay.

Ms. Acosta. I'm sorry, Your Honor. *Dili ko makasagot, Your Honor.*

Senator-Judge Tulfo (R). Understood. So, the reason I asked that *kasi paulit-ulit na lang iyong sagot mo. So, binibigyan kita ng extreme scenario na para ang sasagutin mo it's either, "I don't know, wala akong alam, o hindi niya gagawa iyon," which na-predict ko na.*

Last question *na lamang. Follow-up kasi natanong iyong tungkol sa Davao. Magkaiba iyong naging scenario sa Davao at saka sa OVP. Sa Davao, nag-comply yata, hindi ba? Iyong noong SDO ka doon, whereas sa Manila OVP, hindi. Tama? Iyon ang pinagkaiba. Kasi sa Davao, hindi ka na-flag down ng COA.*

Ms. Acosta. *Wala po kaming AOM, Your Honor.*

Senator-Judge Tulfo (R). Last *na lamang. You know what, madam, seriously from my heart, naawa ako sa iyo. Naawa ako sa iyo kasi I believe in my heart, hindi ka korap, ni singkong duling wala kang ginalaw doon sa confidential funds na daan-daang million and bilyones. Ang masakit nito, iyong mga taong nakinabang doon, binulsa iyong ilang halaga sa perang iyon or totally binulsa iyong mga perang iyon, pangingsi-ngisi ngayon habang ikaw dito gini-grill ka, at pinagpapawisan ka, kawawa ang dating mo at baka makulong ka pa. My heart goes to you. Maraming salamat.*

QUESTIONS OF SENATOR-JUDGE EJERCITO

Senator-Judge Ejercito. Thank you, Mr. Presiding Officer. *Isa lang tatanungin ko kasi nakikinig naman ako sa inyo, Ginang Acosta. At consistent naman iyong inyong sagot na*

nagtiwala kayo kay Colonel Lachica, kaya hindi na kayo nagtanong kahit minsan. Kapag sinabing confidential in nature, ang tanong ko lang, hindi na ba puwedeng ano iyon? Iyon ba ay ano na, na hindi na puwedeng matanong? Dahil ang pagkakaalam ko, dahil ako ay nagnegosyo rin noon at naging mayor din, na natural po sa mga disbursing officer, sa mga accountant ang pagtatanong, lalo na 125 million po ito.

Ang tanong ko lang Mr. Presiding Officer, isa lang. Doon ba sa mga pagkakataong iyon, sa ilang beses kayong nag-disburse ng 125 million, hindi ba sumagi sa inyong isipan na minsan ay magtanong kung saan ginagamit iyong ganoon kalaking pera? Kasi alam ko natural iyan, ma'am, sa mga accountant, sa mga finance person. Matanong talaga iyan. So iyon lang, ni minsan ba sumagi sa inyong isipan na makapagtanong kung paano ginamit iyong 125 million?

Ms. Acosta. *Nag-verify po ako kay security officer, Your Honor.*

Senator-Judge Ejercito. *Opo, narinig ko na rin kanina iyon eh. Kaya lang ang tanong ko lang, kung minsan po naisip ninyo bang tanungin kung paanong ginamit? Kasi paulit-ulit na nagtiwala kayo kay Colonel Lachica dahil siya po ang designated na security officer ng inyong head of agency. Pero iyon lang po, dahil, iyon nga eh, dahil natural nga po dapat sa mga finance person ang magtanong. So, iyong sa mga ilang beses na nag-disburse kayo ng 125 million, ni minsan sumagi ba sa inyong isipan na magtanong na kung paano ito ginamit? Iyon lang po.*

Ms. Acosta. *Confidential in nature po, Your Honor.*

Senator-Judge Ejercito. *Okay na ho, Mr. Presiding Officer. Wala tayong makukuha. [laughter] Sige po.*

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. *Salamat pong muli, Mr. President.*

Una, Ms. Gina, puhon, gumaling agad ang inyong bana.

Ms. Acosta. *Salamat, ma'am.*

Senator-Judge Hontiveros. *Isa pa iyan. Tatlong tanong na lamang po sa inyo. Sabi ninyo po sa amin, kayo mismo ay nakapansin na may kakulangan doon sa acknowledgment receipts. Pero noong vinerify (verify) ninyo ang mga iyon kay Colonel Lachica, tinanggap ninyo na lang na "confidential" ang paliwanag niya. So, sa intindi ninyo po, ano po iyong required doon sa Joint Circular, tiwala ba o resibo?*

Ms. Acosta. *Basta, ma'am, ako po, ma'am, nagtiwala po ako sa mga dokumento po na ibinigay ng aming security officer, ma'am, kasi siya po ang tinalaga na mag-implement po ng mga various confidential expenses, ma'am. At saka si Vice President Sara po na head ng aming office ang nag-designate sa kaniya, ma'am, bilang security officer, ma'am.*

Senator-Judge Hontiveros. *Okay po. Pangalawang tanong ko: Tuwing ibinibigay ninyo po iyong tig-P125 million kay Colonel Lachica, iyong apat na quarters na iyon, nire-report ninyo po ba iyon kay VP Sara Duterte na, "Ma'am, ibinigay ko na po iyong 125 million kay Colonel Lachica?"*

Ms. Acosta. *Yes po, ma'am.*

Senator-Judge Hontiveros. *Okay.*

Ms. Acosta. *Naka-record po iyon sa CDR po, ma'am, na nag-release po ako kay Colonel Lachica.*

Senator-Judge Hontiveros. *At naka-record sa CDR na ni-report ninyo iyong pagbibigay na iyon kay VP Sara Duterte?*

Ms. Acosta. *Tinext (text) ko lang po siya, ma'am.*

Senator-Judge Hontiveros. *Tinext ninyo siya. And huling tanong po: Sa pagkakaintindi ninyo, si VP Sara rin po ang nagbibigay ng instructions kay Colonel Lachica kung anong gagawin sa pera. Tama po ba iyon?*

Ms. Acosta. *Hindi ko alam, ma'am.*

Senator-Judge Hontiveros. *Hindi ninyo alam. All right. Salamat muli...*

Ms. Acosta. *Salamat, ma'am.*

QUESTIONS OF THE PRESIDING OFFICER

The Presiding Officer. Just a few from the Presiding Officer.

Ma'am Gina, kaunti na lang po. Sabi ninyo lahat ng sinasabi ni Colonel Lachica pinapaniwalaan ninyo base sa tiwala, ang ginagawa ninyo lamang ay tingnan kung tumutugma o nagta-tally iyong pera. Tama po?

Ms. Acosta. Yes po, Your Honor.

The Presiding Officer. *Eh bakit sabi po ng COA sa notice of suspension nila, hindi nag-tally iyong pera? Sumobra po iyong pinadala ninyong acknowledgment receipts ng 150,000. So, mali po iyong tally ninyo.*

Ms. Acosta. *Iyon po iyong instance, Your Honor, iyong after po na na-release ko po iyong 125 million kay Sir Lachica, Your Honor, tumawag po siya sa akin na kailangan pa niya ng 150K po, Your Honor, for security purposes, Your Honor.*

The Presiding Officer. *Saan po galing iyon eh 125 million lang po iyong perang winidraw (withdraw) ninyo sa bangko?*

Ms. Acosta. So, at that time, Your Honor, tumawag ako kay Asec Lemuel Ortonio, Your Honor, informing him, Your Honor, na tumawag po sa akin si Security Officer Colonel Lachica na kailangan po niya ng 150 for security, Your Honor.

The Presiding Officer. *Saan galing po iyong pera na binigay ninyo sa kaniya?*

Ms. Acosta. Kay Asec Lemuel Ortonio po, Your Honor.

The Presiding Officer. *Saan po naman niya nakuha iyong pera?*

Ms. Acosta. *Hindi ko alam, Your Honor.*

The Presiding Officer. *Hindi na rin po kayo nagtanong?*

Ms. Acosta. *Hindi. Basta binigyan niya po ako ng 150,000, Your Honor.*

The Presiding Officer. *Ngayon, iyong winidro (withdraw) po ninyo sa bangko, hindi ba cash advance po iyon, iyong apat na quarter?*

Ms. Acosta. As cash advance po, Your Honor, so kailangan i-liquidate po, Your Honor.

The Presiding Officer. *Magkano po ang bond ninyo?*

Ms. Acosta. *Hindi ko ka-memorize, Your Honor. I'm sorry.*

The Presiding Officer. *Pero saklaw po iyong amount na 125 million?*

Ms. Acosta. *Hmm.*

The Presiding Officer. *Hindi ninyo alam, ma'am?*

Ms. Acosta. *Basta iyong sabi ng accountant, ang maalala ko, Your Honor, na ang bond ko po ay ka-level po kung magkano po ang ika-cash advance ko, Your Honor.*

The Presiding Officer. *Ma'am, ang kinash (cash) advance ninyo po 125, hindi pa po ninyo nali-liquidate, nag-cash advance uli kayo ng 125 million uli para sa first quarter; nag-cash advance uli kayo ng another 125, wala pa pong tinanggap na liquidation. So, magkano po ang kabuuang bond ninyo? Aabot po ba ng limang daang milyon iyong bond ninyo para sa limang daang milyon?*

Ms. Acosta. Parang eight mil—

The Presiding Officer. Eight?

Ms. Acosta. *Basta mayroong eight iyon, Your Honor, I'm sorry, dili ko ka-memorize, Your Honor.*

The Presiding Officer. *Pero saklaw iyang wini-withdraw ninyong cash advance?*

Ms. Acosta. *Saklaw yata, Your Honor.*

The Presiding Officer. *Hindi po puwede kung hindi saklaw. Sa malamang saklaw, hindi ba?*

Ngayon, kanina pa kayo sabi nang sabing dinisbers (disburse) ninyo kay Lachica, si Lachica nag-implement. Ano po bang ibig sabihin ninyo ng "implement"? Iyang walong iba't ibang lugar sa Pilipinas na binayad, binayaran sa loob ng parehong araw, sino po ang gumastos noon?

Ms. Acosta. *Ang nag-implement po si Colonel Lachica po, Your Honor, ako po ang nag-disburse sa kanya.*

The Presiding Officer. *Pakinggan ninyo po iyang tanong ko. Binigay ninyo po iyang 125 million kay Colonel Lachica, ayon mismo sa acknowledgment receipts na hawak ninyo, na tinally (tally) ninyo. Sabi ninyo rin po kanina, nagbigay ng pera sa iba't ibang tao, sa iba't ibang lugar sa parehong petsa. Sino po ang nagbigay noong perang iyon doon sa mga nakapangalan sa acknowledgment receipt?*

Ms. Acosta. *Hindi ko po alam, Your Honor, kasi hindi po ako ang nag-implement ng mga confidential activities or operations, Your Honor.*

The Presiding Officer. *Hindi rin si Colonel Lachica?*

Ms. Acosta. *Hindi ko masasabi, Your Honor, basta ako Your Honor, si Colonel Lachica po...*

The Presiding Officer. *Ma'am, ma'am...*

Ms. Acosta. *...ang security officer, Your Honor.*

The Presiding Officer. *Ma'am, ma'am, sorry po, hindi ko puwedeng tanggapin iyon dahil iba't ibang lugar, lima hanggang walo, iba't ibang lugar, dinisbers iyang pera, kahit po si Colonel Lachica, hindi naman po siya si Superman, hindi naman niya kayang gawin iyon na siya lang. So, ano po iyang malamang sagot sa tanong? Hindi po si Colonel Lachica iyang nagbigay ng mga perang iyon sa mga taong nakapirma sa acknowledgment receipt. Malamang ibang tao iyon. Malamang po, hindi ba?*

Ms. Acosta. *Parang, Your Honor, parang iyang issue na iyon, Your Honor, is parang sa DepEd po yata.*

The Presiding Officer. *Wala pong ganoon sa OVP?*

Ms. Acosta. *Wala pong issue na ganoon, Your Honor.*

The Presiding Officer. *Paano ninyo po nalaman iyang sa DepEd?*

Ms. Acosta. *Kasi iyon po ang nalaman ko, Your Honor. Sa amin po sa AOM, wala pong ganoon, Your Honor.*

The Presiding Officer. *Wala pong issue sa AOM kaugnay niyan, alam ko. Wala pong issue sa AOM. Hindi po in-issue sa AOM iyang mga alias, iyang paggamit ng iba't ibang pangalang kakaiba, wala po sa AOM iyon. Ang tanong ko po, Ma'am Gina: Si Colonel Lachica ba na binigyan ninyo ng kabuuang pera ang nagbigay din ng pera doon sa mga may acknowledgment receipt? Siya din mismo ba o may ginamit din siyang ibang tao?*

Ms. Acosta. *Your Honor, hindi ko po iyan masagot, Your Honor, kasi wala po ako sa ground, Your Honor. Si Colonel Lachica po ang nag-implement, Your Honor.*

The Presiding Officer. *Ibig sabihin po ba na nag-implement, siya iyang nag-disburse?*

Ms. Acosta. *Siya po ang nag-implement, Your Honor, kung may binayaran po siya, Your Honor.*

The Presiding Officer. *Ma'am, kung siya po ang nag-implement, ibig sabihin siya ang nag-disburse doon sa mga taong nakatanggap diumano. Opo?*

Ms. Acosta. *Basta ako, Your Honor, ako po ang nag-disburse sa kaniya, Your Honor; siya po ang nag-implement, Your Honor. Siya po ang implementor.*

The Presiding Officer. *Kayo ang nag-disburse sa kaniya, siya ang nag-disburse sa iba. Kayo ang nag-disburse sa kaniya, siya ang nagbayad sa iba. O kayo po iyong nagbayad sa kaniya at binayad niya sa iba? Disburse po iyong sa inyo, hindi ba?*

Ms. Acosta. *Ako po ang nag-disburse sa kaniya, Your Honor, tapos kung may binayaran man po siya, kasi siya po ang nag-implement, Your Honor.*

The Presiding Officer. *So, nagdi-disburse din siya?*

Ms. Acosta. *Basta ako, Your Honor, nag-disburse ako bilang SDO, Your Honor.*

The Presiding Officer. *Ulitin ko, ma'am, ha. Ma'am, hindi po komplikado ito. Disbursing officer kayo kaya nga SDO, eh. Nag-disburse po kayo sa kaniya.*

Ms. Acosta. *Opo.*

The Presiding Officer. *Iyong ginawa ba niyang pagbabayad, hindi ba disbursement din iyon?*

Ms. Acosta. *Nagbayad siya, Your Honor.*

The Presiding Officer. *Hindi ba disbursement din po iyon? Dinisbers (disburse) niya iyong pera. Hindi naman niya—Binulsa ba ni Colonel Lachica iyong pera?*

Ms. Acosta. *Wala.*

The Presiding Officer. *Hindi. Tamo, siguradong-sigurado kayo, "hindi." So, pinambayad niya? So, dinisbers (disburse) nga niya doon sa mga taong nakatanggap ayon sa acknowledgment receipts?*

Ms. Acosta. *Dinisbers (disburse) po niya, Your Honor, during the implementation po ng confidential activities and operation, Your Honor, sa ground, Your Honor.*

The Presiding Officer. *So, iyong implementation nga po niya, kasama doon iyong pag-disburse ng pera.*

Ms. Acosta. *Ano po, Your Honor?*

The Presiding Officer. *Iyong implementation, na kanina n'yo pa po sinasabi, kasama doon, kasama sa pag-implement ang pag-disburse ng pera.*

Ms. Acosta. *Kay nag-implement na siya, Your Honor, hindi ko na alam, Your Honor, kung paano po niya—kung paano po niya gibayaran ang mga tao, Your Honor.*

The Presiding Officer. *Hindi ko po tinatanong kung paano niya binayaran, ang sinasabi ko po, siya iyong nagbayad ng pera, siya iyong nag-disburse ng pera sa iba't ibang pinagbigyan niya. Walang napunta sa kaniya.*

Ms. Acosta. *Siya po ang nagbayad, Your Honor. Walang napunta sa kaniya.*

The Presiding Officer. *Okay. Thank you very much, Ma'am Gina.*

Ms. Acosta. *Salamat po.*

The Presiding Officer. *One final point from Senator-Judge Kiko, and then we will excuse you, Ma'am Gina.*

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. *Thank you, Mr. Presiding Officer. It is actually a follow-up to your question, Mr. Presiding Officer.*

Under Joint Circular 2015, No. 1, the SDO is mandated to disburse the funds directly, hindi ba, to the final legitimate recipient or purpose. Si Colonel Lachica ba ang ano, legitimate recipient, final legitimate recipient or purpose?

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Ms. Acosta. *Hindi po, Your Honor.*

Senator-Judge Pangilinan. Uh-huh. *Kaya ibig sabihin, dapat doon—ang magdi-disburse na SDO, kayo po iyon, kayo dapat, hindi po ba, ang magbibigay doon sa mga tatanggap, tulad ng—iyon na nga, iyong mga may alias? Pero ang sinasabi ninyo, ang defense po ninyo is, dahil confidential in nature at wala kayong access to—wala kayong security clearance, hindi na ninyo puwedeng pakialaman bilang SDO iyong mga ginastos sa mga confidential activities. Parang ganoon po sinasabi ninyo, ano? Tama?*

Ms. Acosta. *Bineripay (verify) ko naman po sa kaniya, Your Honor.*

Senator-Judge Pangilinan. *Pero—okay, yes. Iyon na nga. Iyon lang. Iyon lang, actually, na dapat ang SDO, under the Joint Circular, should be the one to disburse the amounts to the—and disbursement means final recipient or purpose. Hindi naman po si Colonel Lachica iyong final recipient at hindi rin siya iyong for final purpose, mayroon pang iba.*

But iyong depensa po ninyo, kaya kayo pinuwera ni Colonel Lachica, ay dahil ito ay confidential activities, wala kayong security clearance kaya hindi kayo dapat nangingialam or hindi ninyo na kailangang alamin pa kung paano ginagastos ito. Basta mayroong sinasabi nga ninyong liquidation and supporting documents. Tama?

Ms. Acosta. *Mayroon po siyang sina-submit sa akin, Your Honor.*

Senator-Judge Pangilinan. *Okay. Maraming salamat. Thank you.*

Ms. Acosta. *Salamat din.*

The Presiding Officer. Thank you, Senator-Judge Kiko.

Madam Gina, you are excused. Maraming salamat po sa panahon, sa pasensiya, sa pagtugon sa mga katanungan ng mga abogado ng magkabilang panig, at ganoon din ng Senator-Judges. Salamat po sa oras. You are excused, Ma'am. You may step down from the witness stand.

Ms. Acosta. *Salamat po sa lahat. Salamat po. Magandang hapon.*

ADMINISTRATIVE MATTERS

Presiding Officer Escudero addressed the following administrative matters:

1. **Letter of Mr. Lemuel Ortonio.** The Court acknowledged receipt of a letter from Mr. Lemuel Ortonio, Assistant Chief of Staff of the OVP, informing the Court that his licensure examinations originally scheduled on August 19 to 20 was suspended due to inclement weather and rescheduled to September 1 and 2. A subpoena had nonetheless been issued requiring his attendance at the trial today and the following day. Accordingly, Mr. Ortonio was expected to appear the following day as the next witness for the Prosecution. The Court noted and expressed appreciation for Mr. Ortonio's manifestation regarding the postponement of his examinations.
2. **Medical condition of Mr. Edward Fajarda.** The Court acknowledged receipt of a letter from Gabriel & Mendoza Law Offices, together with a medical certificate concerning Mr. Edward Fajarda, former SDO of the Department of Education (DepEd), who was scheduled to testify on August 24, 25, and 26. The documents stated that Mr. Fajarda had been confined in the intensive care unit for observation after suffering a stroke affecting the lower posterior portion of his brain. Although he had subsequently been transferred to a regular room, Counsel requested that he be excused from attending the hearings.

The Court noted the medical certificate submitted by Counsel and Mr. Fajarda's physician. Before acting on the request to excuse him from the hearings, however, the Court directed Dr. Renato Sison, Head of the Senate Medical and Dental Bureau, to examine Mr. Fajarda,

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verify his medical condition with his attending physicians, and submit a report to the Court. The report shall state whether Mr. Fajarda is unable to testify during the current week and, if possible, indicate when he may be able to testify.

3. The Presiding Officer deferred action on the manifestation of Atty. Sheila Sison, Counsel for the Respondent, dated August 12, 2026, which was to be considered after hearing the response of Attorney Ligutan. Due to time constraints, however, consideration of the matter was deferred until the following day.

REQUEST OF THE COUNSEL FOR THE PROSECUTION

Representative Gerville Luistro requested that the Impeachment Court furnish the Panel of Prosecutors with a certified true copy of the medical certificate of Mr. Fajarda. She expressed the Panel's understanding of and concern over Mr. Fajarda's medical condition and its possible effect on the ongoing impeachment proceedings. In response, Presiding Officer Escudero directed the Clerk of Court to furnish both parties with a copy of the letter, together with the report of Dr. Sison.

Representative Luistro further noted that Mr. Fajarda's medical certificate dated August 20, 2026, required him to rest for two weeks, with the prescribed period ending on September 3, 2026. Accordingly, she requested, on behalf of the Panel of Prosecutors, that September 7, 2026 be reserved for the presentation of Mr. Fajarda as witness for the Prosecution. The Presiding Officer duly noted the request.

On Mr. Ortonio, Representative Luistro confirmed that he would be presented as a Prosecution witness the following day. To maximize the schedule, she likewise requested the issuance of subpoenas to three AFP officials, namely: Colonel Manaros Boransing II, Colonel Magtangol Panopio, and Major General Adonis Bajao, for their appearance on August 26, 2026. She stated that in case their testimonies are not completed on that date, the Prosecution would make the appropriate manifestation for the possible reissuance of subpoenas the following week.

INQUIRY OF THE PRESIDING OFFICER

Responding to Presiding Officer Escudero's inquiry regarding the status of the three AFP officials, Representative Luistro stated that Major General Bajao was believed to have retired, while Colonels Boransing and Panopio remain in active service. She clarified that the testimony of these officials would pertain to the DepEd's confidential funds.

The Presiding Officer then pointed out that a particular colonel had been repeatedly identified in the testimony of Ms. Acosta but was not among the three officials for whom the issuance of subpoenas was sought. Representative Luistro confirmed that Colonel Lachica was also among the Prosecution's prospective witnesses. She however explained that the Panel of Prosecutors would review its witness list and make a final determination on the witnesses to be presented before the Impeachment Court. Presiding Officer Escudero reiterated that Colonel Lachica had figured prominently in Ms. Acosta's testimony, which Representative Luistro acknowledged.

RULING OF THE PRESIDING OFFICER

Presiding Officer Escudero directed the issuance of subpoenas to the three identified current and/or former officials of the AFP for their attendance at the impeachment proceedings beginning Wednesday, August 26, 2026. Upon inquiry, Representative Luistro confirmed that the witnesses would be presented in the following order: Colonel Manaros Boransing II, Colonel Magtangol Panopio, and Major General Adonis Bajao.

Accordingly, the Presiding Officer ordered the issuance of the corresponding subpoenas for the August 26, 2026 hearing and, if necessary, for the succeeding trial dates on September 1 and 2, 2026, after Representative Luistro clarified that August 31 was a holiday.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Attorney Sison deferred to the Court's ruling on the issuance of subpoenas to the three AFP officials but placed on record the Counsel for the Respondent's objection to the short notice, which she maintained was inconsistent with the Pre-Trial Order and the Court's earlier directive requiring at least five days' notice before the presentation of intended witnesses. She emphasized that the witnesses had been disclosed only on the present day, leaving the Counsel for the Respondent insufficient time to substantively prepare for cross-examination. She further sought clarification on whether such shortened notice would be permitted in future proceedings and whether the same standard would apply to both parties.

In response, Presiding Officer Escudero explained that the Court would first hear Mr. Ortonio's testimony, which could extend until Wednesday, and that, at most, only the direct examination of Colonel Boransing would be conducted that day. He gave assurance that Counsel for the Respondent would be given sufficient time to prepare for cross-examination. He further indicated that the cross-examination would most likely take place the following Tuesday, thereby giving Counsel for the Respondent more than five days to prepare.

MANIFESTATION OF THE COUNSEL FOR THE PROSECUTION

Representative Luistro clarified that the Panel of Prosecutors' disclosure of the three new witnesses from the AFP was not deliberate but was necessitated by the unavailability of Mr. Fajarda, former SDO of the Department of Education and the next Prosecution witness, who would be unable to testify on Tuesday and Wednesday. Presiding Officer Escudero duly noted and accepted the explanation, particularly in light of the pending medical assessment of Mr. Fajarda by the Senate's chief physician.

CLARIFICATION BY THE COUNSEL FOR THE RESPONDENT

Attorney Sison clarified that she had not alleged any evasion on the part of the Prosecution but had merely sought clarification regarding the presentation of witnesses.

The Presiding Officer acknowledged Attorney Sison's clarification and stated that the Counsel for the Respondent's earlier manifestation had been understood by the Chair.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Attorney Sison stated that the Counsel for the Respondent had received the Panel of Prosecutors' request for stipulation dated August 24, 2026 regarding material facts concerning witness Edward Fajarda. She clarified that the Counsel for the Respondent was willing to stipulate only with respect to Items 1 and 2, namely, that Mr. Fajarda served as Executive Assistant and SDO for the confidential funds of the DepEd during the tenure of Respondent Vice President Sara Duterte as Secretary of Education, and that, in such capacity, he was tasked with the disbursement and liquidation of the P112.5 million in DepEd confidential funds involved in the case.

Attorney Sison expressly declined to stipulate on Items 3 through 11, explaining that such stipulations could potentially result in inferences or conclusions being drawn from one stipulated fact to another. Presiding Officer Escudero duly noted the position of Counsel for the Respondent and confirmed that Items 1 and 2 had been stipulated to, such that no further evidence on those matters would be required when Mr. Fajarda is eventually presented as a witness.

ADJOURNMENT OF THE IMPEACHMENT TRIAL

Presiding Officer Escudero reiterated that the Chair would issue its ruling the following day on the matter raised by Counsel for the Respondent and would likewise hear Attorney Ligutan, subject to the availability of time. He then informed the Senator-Judges that the plenary session would be called at 4:00 p.m., pursuant to the directive of the Senate President.

He thereafter declared the impeachment trial adjourned until ten o'clock in the morning of the following day.

It was 3:27 p.m.

I hereby certify to the correctness of the foregoing.

Approved on August 25, 2026

Atty. RENATO N. BANTUG JR.

Clerk of Court

